Dear Parent/Guardian:

Welcome to the Cabot School District. I am honored to serve as your Superintendent and to partner with you in providing the very best educational experience for your child. The 2026-2027 Student Handbook contains important information, including district policies, procedures, and expectations required by the State of Arkansas.

I am filled with excitement and optimism as we begin this new school year. We are fortunate to have an exceptional team of educators and support staff, as well as a deeply involved community. Together, we create an environment where students are encouraged to grow, learn, and succeed. With your continued support, I am confident this will be a rewarding and successful year for all.

Communication is key to that success. Please stay in touch with your child's teachers and school administrators. If you're unsure who to contact at the district level, Ms. Karen Davis is always happy to assist at karen.davis@cps.k12.ar.us or (501) 843-3363. I also welcome the opportunity to hear from you directly, so feel free to email me anytime at michael.byrd@cps.k12.ar.us.

I also encourage you to download our official Cabot Public Schools mobile app, a convenient way to stay connected. You'll find news, notifications, lunch menus, calendars. Transportation updates, and more – all in one place. The app is free and available now in the App Store and on Google Play.

Even if you don't use the app, we'll continue to sharing updates through our websites, emails, texts, phone calls, social media, school newsletters, and announcements.

We are committed to making this a great year for your child. Thank you for your continued support of the Cabot School District.

Sincerely,

Michael Byrd
Superintendent of Schools

**WELCOME**

A very cordial welcome is extended to each of you attending Cabot Schools. You are beginning a new phase of your life -- a very important one -- that carries with it many opportunities and responsibilities. As you attend Cabot Schools, you will receive training which is designed to prepare you to take your place in the adult world.

**MISSION**

Preparing our students for tomorrow's opportunities: every child, every classroom, every day.

**ALMA MATER**

Hail to thee, dear Cabot High School,
In thee do we trust.
Thou art great, and in thy wisdom,
We have found thee just.
Lingering in our fondest memories,
Thou shalt blaze our trail.
We will always praise thy honor,
Hail to Thee! All Hail!

## MEMBERS OF THE CABOT SCHOOL BOARD

Mrs. Sally Beebe

Mrs. Pam Clem

Dr. James Hertzog

Mr. Blake Lively

Mrs. Sarah Owen

Mr. Kevin Tipton

Mr. Joe Trusty

## SCHOOL DISTRICT ADMINISTRATION

Michael Byrd, Superintendent

Aaron Randolph, Assistant Superintendent

Dr. Benjamin Darley, Assistant Superintendent

## Directors and Supervisors

| | |
|---|---|
| Stacy Allen | Director of K-6 Teaching and Learning |
| Haley Beavert | Director of Special Programs |
| Karen Davis | Executive Director of Administrative Operations |
| Dr. Melanie Duerkop | Director of Federal Programs &<br>Teacher Development, Evaluation & Accountability |
| Dr. Alana Graham | Director of 7-12 Teaching and Learning |
| Sherri Jennings | Director of Recruitment, Retention, and Development |
| Suzie Kelley | Director of Pre-K Programs |
| Kevin Luck | Executive Director of Finance |
| Andy Martin | Director of Technology |
| Liz Massey | Director of Communications |
| Vonda Morgan | Health Services Coordinator |
| Patrick Raper | Director of Transportation |
| Aaron Reed | Director of Custodial Services |
| Scott Reed | Director of Athletics |
| Dwayne Roper | Cabot Public Schools Police Department Chief |
| Leila Seigrist | General Counsel |
| Justin Skidmore | Supervisor of Construction and Operations |
| Emily Taylor | Director of Counseling |
| Pam Waymack Wilson | Director of Assessment & Professional Development |
| Erin Wilkes | Director of Food Service |

# TABLE OF CONTENTS


| | |
|---|---|
| CABOT SCHOOL DISTRICT CALENDAR | 8 |
| SCHOOL LISTING | 9 |
| **SECTION 1 - GENERAL INFORMATION** | |
| PLEDGE OF ALLEGIANCE AND MOMENT OF SILENCE (4.46) | 13 |
| NATIONAL ANTHEM (4.44) | 13 |
| STUDENT HANDBOOK (4.42) | 14 |
| EMERGENCY INFORMATION | 14 |
| FAMILY AND COMMUNITY ENGAGEMENT (FACE) | 14 |
| STUDENT VISITORS (4:16) | 15 |
| CONTACT WITH STUDENTS WHILE AT SCHOOL (4:15) | 15 |
| CLASSROOM DISRUPTIONS | 17 |
| MEAL DELIVERIES TO STUDENTS | 17 |
| NON-DISCRIMINATION AND SECTION 504 | 17 |
| ANNUAL REQUIRED NOTIFICATION | 18 |
| PRIVACY OF STUDENTS' RECORDS AND DIRECTORY INFORMATION (4.13) | 18 |
| NOTIFICATION OF RIGHTS UNDER THE FAMILY EDUCATION RIGHTS & PRIVACY ACT (5.26) | 21 |
| TELEPHONE USE AND MESSAGES | 21 |
| HOMESCHOOLING (4.6) | 22 |
| CLOSED CAMPUS (4.10) | 24 |
| EQUAL EDUCATION OPPORTUNITY (4.11) | 24 |
| STUDENT ORGANIZATION/EQUAL ACCESS (4.12) | 24 |
| PICTURE PUBLICATION | 25 |
| STUDENT PUBLICATIONS AND THE DISTRIBUTION OF LITERATURE (4.14) | 25 |
| FREEDOM OF SPEECH AND ASSEMBLY | 27 |
| STUDENT RELIGIOUS EXPRESSION | 27 |
| STUDENT DRESS AND GROOMING (4.25) | 29 |
| STUDENT IDENTIFICATION (4.57) | 30 |
| STUDENT NAME, TITLE, AND PRONOUN (4.62) | 30 |
| STUDENT USE OF MULTIPLE OCCUPANCY ROOM (4.61) | 31 |
| VEHICLES (4.33) | 31 |
| PARKING AREAS AND AUTOMOBILES (SECONDARY GRADES 9-12) | 32 |
| ASSEMBLIES | 33 |
| MANDATORY DRUG TEST POLICY (4.24.1) | 33 |
| **SECTION 2 - ENROLLMENT AND ATTENDANCE POLICIES** | |
| RESIDENCE REQUIREMENTS (4.1) | 33 |
| ENTRANCE REQUIREMENTS (4.2) | 34 |
| COMPULSORY ATTENDANCE REQUIREMENTS (4.3) | 40 |
| ATTENDANCE REQUIREMENTS FOR STUDENTS IN GRADES 9 – 12 | 41 |
| ENROLLMENT FROM HOME SCHOOL OR NON-ACCREDITED SCHOOL | 42 |
| HOMELESS OR DISPLACED STUDENTS (4.40) | 42 |
| STUDENT TRANSFERS (4.4) | 42 |
| SCHOOL CHOICE (4:5) | 44 |

**STUDENTS WHO ARE IN FOSTER CARE (4.52)** **50**
**PLACEMENT OF MULTIPLE BIRTH SIBLINGS (4.53)** **52**
**ABSENCES (4.7)** **52**
**MAKE UP WORK (4.8)** **55**
**TARDINESS AND EARLY CHECKOUT (4.9)** **57**

**SECTION 3 – STUDENT BEHAVIOR POLICIES**
**STUDENT DISCIPLINE (4.17)** **57**
**CONSEQUENCES** **58**
**SUSPENSION FROM SCHOOL (4.32)** **58**
**EXPULSION (4.31)** **60**
**DISCIPLINE FOR STUDENTS WITH DISABILITIES** **62**
**DISRUPTION OF SCHOOL (4:20)** **62**
**PROHIBITED CONDUCT (4:18)** **64**
**ANTISEMITISM PROHIBITED (4.65)** **65**
**OFF-CAMPUS EVENTS** **67**
**POSSESSION AND USE OF CELL PHONES, AND OTHER ELECTRONIC DEVICES (4.47)** **67**
**BULLYING (4.43)** **70**
**ASSAULT, BATTERY, VERBAL ABUSE AND THREATS OF VIOLENCE (4:21)** **74**
**WEAPONS AND DANGEROUS INSTRUMENTS (4.22)** **76**
**TOBACCO AND TOBACCO PRODUCTS (4.23)** **77**
**DRUGS AND ALCOHOL POLICY (4.24)** **77**
**ALTERNATIVE SCHOOL** **79**
**CONDUCT TO AND FROM SCHOOL AND TRANSPORTATION ELIGIBILITY (4.19)** **79**
**GANGS AND GANG ACTIVITY (4.26)** **81**
**STUDENT SEXUAL HARASSMENT (4.27)** **81**
**LASER POINTERS (4.28)** **90**
**TECHNOLOGY DEVICE USE POLICY (4.29)** **90**
**DAMAGING, DESTROYING OR STEALING SCHOOL PROPERTY (4.58)** **91**
**SEARCH, SEIZURE AND INTERROGATIONS (4.32)** **91**
**ACADEMIC INTEGRITY** **93**

**SECTION 4 – SAFETY AND SECURITY**
**SCHOOL RESOURCE OFFICERS** **93**
**SURVEILLANCE AND OTHER STUDENT MONITORING (4.48)** **94**
**WEATHER RELATED CLOSING PROCEDURES** **94**
**EMERGENCY DRILLS (4.37)** **95**

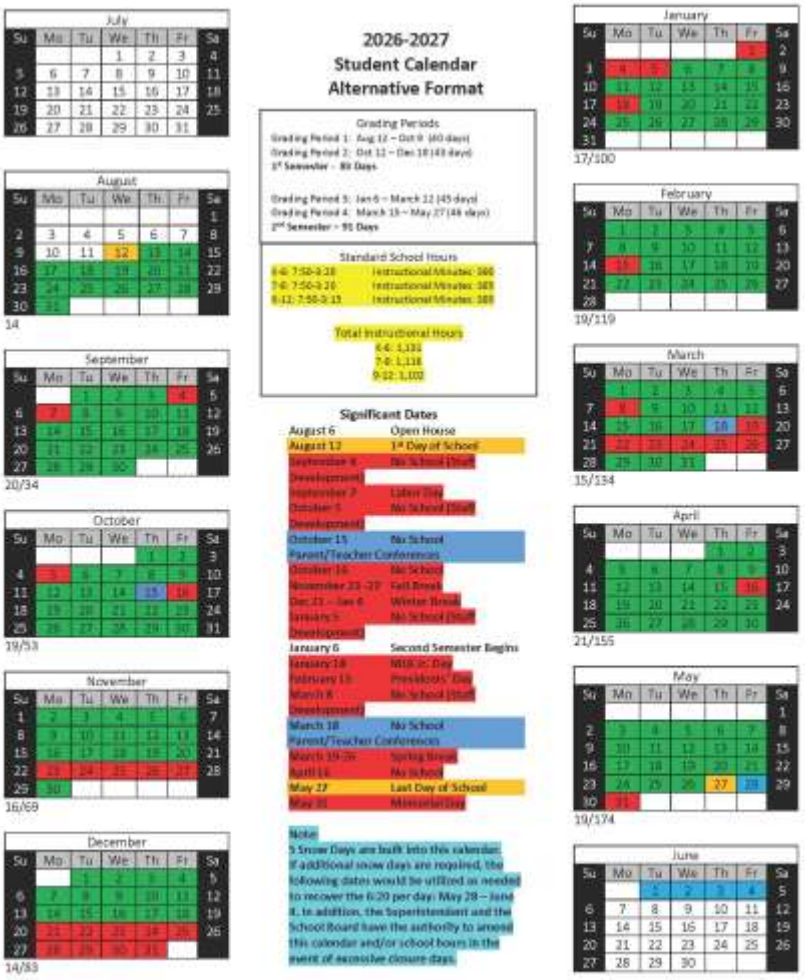
**SECTION 5 – HEALTH AND WELLNESS POLICIES**
**SCHOOL LUNCH SUBSTITUTIONS (4.50)** **95**
**FOOD SERVICE (4.51)** **95**
**SNACKS AND TREATS AT SCHOOL (6:9)** **97**
**COMMUNICABLE DISEASES AND PARASITES (4.34)** **97**
**IMMUNIZATION REQUIREMENTS** **98**
**PHYSICAL EXAMINATIONS OR SCREENINGS (4.41)** **101**
**PERSONAL ILLNESS** **101**
**TOILET TRAINING (4.56)** **109**

**CHRONIC ILLNESS** **109**
**STUDENT MEDICATIONS (4.35)** **110**
**STUDENT ILLNESS/ACCIDENTS/INSURANCE (4.36)** **116**

**SECTION 6 - ACADEMIC POLICIES AND PROCEDURES**
**CABOT CHARTER SCHOOL: CPA, CPDA, & ALE** **117**
**CABOT PANTHER DIGITAL ACADEMY (CPDA)** **117**
**ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME SCHOOLED STUDENTS (4.59)** **118**
**GRADING AND REPORTING (5:15)** **119**
**NINE WEEK EXAMS (GRADES 7-12)** **120**
**CONCURRENT CREDIT (5:18)** **121**
**HOMEWORK (5:14)** **121**
**STUDENT USE OF ARTIFICIAL INTELLIGENCE (4.64)** **123**
**PROMOTION/RETENTION/COURSE CREDIT FOR K-12 SCHOOLS (5:12)** **124**
**ACCELERATION POLICY** **125**
**SPECIAL EDUCATION (4:49)** **127**
**PERMANENT RECORDS (4:38)** **128**
**DROPPING AND CHANGING COURSES** **128**
**GRADE POINT AVERAGE AND RANK-IN-CLASS PROCEDURES (5:19)** **128**
**RETAKING A COURSE TO IMPROVE GPA** **129**
**CORRESPONDENCE COURSES** **129**
**GRADUATION HONORS (4:20)** **130**
**HONORS PROGRAM CURRICULUM (5:16.1)** **130**
**MINIMUM CORE CURRICULUM COURSES RECOMMENDED BY HIGHER ED** **131**
**ACADEMIC LETTERS** **131**
**MEDALLIONS** **131**
**CLASSIFICATION OF STUDENTS** **132**
**EXTRACURRICULAR ACTIVITIES (5:22)** **132**
**FREE TEXTBOOKS (4:41)** **134**
**ARKANSAS DIRECT ADMISSION PROGRAM** **134**
**GRADUATION REQUIREMENTS** **134**
**GRADUATION CEREMONY** **138**
**CABOT FRESHMAN ACADEMY** **138**

**SECTION 7- FORMS**
**FORMS** **138**

# CABOT SCHOOL DISTRICT CALENDAR 2026-2027



## SCHOOL LISTING

**Cabot High School** **843-3562**
401 N. Lincoln Street
Cabot, AR 72023

| | |
|---|---|
| Principal | Mike Falcinelli |
| Assistant Principal/ Student Success Coordinator | Adam Koehler |
| Assistant Principal | SueAnn Whisker |
| Assistant Principal | Mike Sprawls |
| Assistant Principal | Tim Harrison |
| Assistant Principal | Angela Beason |
| Assistant Principal | Mike Nash |
| Coordinator of Career Tech and STEM/Home School Liaison | Dr. Nicole Gatewood |

**Cabot Freshman Academy** **743-3576**
18 Spirit Drive
Cabot, AR 72023

| | |
|---|---|
| Principal | Ahna Davis |
| Assistant Principal | Stephanie Jimmerson |
| Assistant Principal | Clark Bing |

**Cabot Junior High North** **743-3572**
38 Spirit Drive
Cabot, AR 72023

| | |
|---|---|
| Principal | Mandy Green |
| Assistant Principal | Jamie Tokarz |
| Assistant Principal | Mike Singleton |

**Cabot Junior High South** **743-3573**
38 Panther Trail
Cabot, AR 72023

| | |
|---|---|
| Principal | Charlotte Sandage |
| Assistant Principal | Linda Bevis |
| Assistant Principal | Tyler Tarrant |

**Cabot Panther Academy and CPDA** **743-3520**
21 Funtastic Drive
Cabot, AR 72023

| | |
|---|---|
| Principal | Carrie Lair |
| Assistant Principal | Kelly Howard |
| ALE Assistant Principal | Lance Schichtl |

**Cabot Middle School North** **743-3571**
1900 N. Lincoln Street
Cabot, AR 72023

| | |
|---|---|
| Principal | Micah House |
| Assistant Principal | Kevin Floyd |
| Assistant Principal | Michelle Jones |

**Cabot Middle School South** **743-3570**
2555 Kerr Station Road
Cabot, AR 72023

| | |
|---|---|
| Principal | Amy Butler |
| Assistant Principal | Dawn Peeples |
| Assistant Principal | Ben Brockinton |

**Central Elementary School** **743-3564**
36 Pond Street
Cabot, AR 72023

| | |
|---|---|
| Principal | Jenny Blackwell |
| Assistant Prin. /Inst. Facilitator | Mary Campbell |

**Eastside Elementary School** **743-3563**
17 Bellamy Street
Cabot, AR 72023

| | |
|---|---|
| Principal | Jill Fletcher |
| Asst. Prin. /Inst. Facilitator | Jill Geran |

**Magness Creek Elementary School** **743-3565**
16150 Hwy. 5
Cabot, AR 72023

| | |
|---|---|
| Principal | Amy Morrow |
| Asst. Prin. /Inst. Facilitator | Heidi Veal |

**Mountain Springs Elementary School** **743-3575**
3620 Mt. Springs Road
Cabot, AR 72023
Principal Macy Welch
Asst. Prin. /Inst. Facilitator Sarah Camp

**Northside Elementary School** **743-3568**
814 W. Locust Street
Cabot, AR 72023
Principal Miriam Berryhill
Asst. Prin. /Inst. Facilitator Michelle Atherton

**Southside Elementary School** **743-3576**
2600 S. Pine Street
Cabot, AR 72023
Principal Tori Harrison
Asst. Prin. /Inst. Facilitator Madison Hurley-Darr

**Stagecoach Elementary** **743-3574**
850 S. Stagecoach Road
Cabot, AR 72023
Principal Julia Treadway
Asst. Prin. /Inst. Facilitator Stephanie Ford

**Ward Central Elementary School** **743-3569**
1570 Wilson Loop
Ward, AR 72176
Principal Tobie Sprawls
Asst. Prin./Inst. Facilitator Crystal Carranco

**Westside Elementary** **743-3566**
1701 S. 2nd Street
Cabot, AR 72023
Principal Stephanie Strunk
Asst. Prin. /Inst. Facilitator Allan West

**Cabot Learning Academy (CLA)** **743-3540**
407 South Polk Street
Cabot, AR 72023
Principal Kim Griffin
Asst. Principal Justin Wylie

**Cabot Pre-K North** **424-4450**
1348 Main Street
Austin, AR 72007
Director of Pre-K Suzie Kelley
Assistant Principal Lori Lombardi

**Cabot Pre-K South** **424-4451**
25 Panther Trail
Cabot, AR 72023
Director of Pre-K Suzie Kelley
Assistant Principal Lori Lombardi

# SECTION 1 - GENERAL INFORMATION

**PLEDGE OF ALLEGIANCE AND MOMENT OF SILENCE (4.46)**

The Pledge of Allegiance shall be recited:

1. During the first class period of each school day;
2. At the commencement of each school-sanctioned after-school assembly; and
3. At the commencement of each school-sanctioned sporting event; however, if two (2) or more school-sanctioned sporting events occur on the same day at the same school, then the Pledge may be recited at only one (1) of the school-sanctioned sporting events.

Students choosing to participate in the recitation of the Pledge shall do so by facing the flag with their right hands over their hearts, or in an appropriate salute if in uniform, while reciting the Pledge. Students choosing not to participate shall either stand or sit quietly while other students recite the Pledge.

Students shall not be compelled to recite the Pledge, but students who choose not to recite the Pledge shall not disrupt those students choosing to recite the Pledge. Students choosing not to recite the Pledge who do not disrupt those students who choose to recite the Pledge shall not be subject to any comments, retaliation, or disciplinary action.

Following the recitation of the Pledge, there shall be an observance of one (1) minute of silence. During the one (1) minute of silence, each student may reflect, pray, meditate, or engage in any other silent activity that is not likely to interfere with or distract another student. Students who do not disrupt the one (1) minutes of silence shall not be subject to any comments, retaliation, or disciplinary action.

**NATIONAL ANTHEM (4.44)**

Each school in the District shall broadcast The Star-Spangled Banner at:

- The commencement of each school-sanctioned sporting event; however, if two (2) or more school-sanctioned sporting events occur on the same day at the same school, then the broadcast of The Star-Spangled Banner may be performed at only one (1) of the events; and
- At least one (1) time each week during school hours.

The broadcast of The Star-Spangled Banner shall be selected from any recording that adheres to the Division of Elementary and Secondary Education (DESE) Rules, or, when appropriate, performed from original sheet music that adheres to DESE rules by:

- A school-sanctioned band program;
- A school-sanctioned chorale program, vocal group, or vocalist; or

- The attendees of a school-sanctioned event led by a vocalist selected by the principal of the school hosting the school-sanctioned event.

Students shall not be compelled to participate in the performance of The Star-Spangled Banner, but students who choose not to participate in the performance of The Star-Spangled Banner shall not disrupt those students choosing to participate. Students choosing not to participate in the performance of The Star-Spangled Banner who do not disrupt the participate of the performance shall not be subject to any comments, retaliation, or disciplinary action.

**STUDENT HANDBOOK (4.42)**

It shall be the policy of the Cabot School District that the most recently adopted version of the Student Handbook be incorporated by reference into the policies of this district. In the event that there is a conflict between the student handbook and a general board policy or policies, the more recently adopted language will be considered binding and controlling on the matter provided that parent(s) of the student, or the student, if eighteen (18) years of age or older, have acknowledged receipt of the controlling language.

Principals shall review all changes to the student policies and ensure that such changes are provided to the students and parents, either in the Handbook or, if changes are made after the handbook is printed, as an addendum to the handbook.

Principals and counselors shall review policies 4.45 (SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS FOR THE CLASSES OF 2025) and 4.45.1 (SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS) and the current Division of Elementary and Secondary Education (DESE) Standards for Accreditation Rules to ensure that there is no conflict. If a conflict exists, the Principal and/or Counselor shall notify the Superintendent and Curriculum Coordinator immediately, so that correction may be made and notice of the requirements given to students and parents.

**EMERGENCY INFORMATION**

The emergency information that parents/guardians are requested to provide each year is critically important in the case of emergencies. Student safety and wellbeing often hinge on the accuracy of the information on this form. During emergency situations, precious moments are lost when information is not accurate and up-to-date. NOTIFY THE SCHOOL immediately when telephone numbers, addresses, place of employment or any other essential emergency contact information changes.

**FAMILY AND COMMUNITY ENGAGEMENT (FACE)**

Each school in the Cabot School District has a Family and Community Engagement (FACE) Plan. These are comprehensive plans that help encourage involvement, develop

meaningful partnerships, and meet the needs of families, communities, and the schools. The purpose of FACE efforts are to:

1. ENGAGE: The Cabot School District wants to hear from our families and communities.
2. BUILD: The Cabot School District wants to build staff skills to effectively connect with and assist families.
3. SUPPORT: The Cabot School District wants to support parents to help students succeed.
4. FUND: The Cabot School District wants parents to have a voice in how Title I funds for Family and Community Engagement are used.
5. PARTNER: The Cabot School District wants to collaborate with families and the community to support students.

Building FACE plans can be found on our district website by selecting the "Departments" tab and then selecting "Counseling."

**STUDENT VISITORS (4:16)**

Student visitors in the classroom can be disruptive to the educational process. Student visitation is strongly discouraged. Any visitation to the classroom shall be allowed only with the permission of the school principal.

**CONTACT WITH STUDENTS WHILE AT SCHOOL (4:15)**

Visitors to the school should use the designated visitor entrance to the school and report immediately to the school office to identify themselves and their business on campus. Visitor entrances are equipped with security measures which require office notification prior to entering the student areas. For safety and security, all visitors will register in the school office and obtain the appropriate identification badge. All persons on school grounds, in school buildings, or at school-sponsored events must identify themselves to school employees upon request. Building principals will develop specific guidelines regarding visitors to their campus. Law enforcement officers will assist when necessary to deal with unidentified persons on school grounds.

CONTACT BY PARENTS: Parents wishing to visit their children during the school day shall register first with the office.

CONTACT BY NON-CUSTODIAL PARENTS: If there is any question concerning the legal custody of the student, the custodial parent shall present documentation to the principal or his/her designee establishing the parent's custody of the student. It shall be the responsibility of the custodial parent to make any court ordered "no contact" or other restrictions regarding the non-custodial parent known to the principal by presenting a copy of a file-marked court order. Without such a court order on file, the school will release the child to either of his/her parents. Non-custodial parents who file with the principal a date-stamped copy of current court orders granting unsupervised visitation may, to the extent authorized by the court order, eat lunch, volunteer in their child's classroom, or otherwise have contact with their child during school hours with the prior approval of the school's

principal. Such contact is subject to the limitations outlined in Policy 4.16, Policy 6.5, and any other policies that may apply. The District shall not act as a supervisor for non-custodial parent visitation purposes under any circumstance.

CONTACT BY LAW ENFORCEMENT, SOCIAL SERVICES OR BY COURT ORDER: State law requires that the department of Human Services employees, local law enforcement, or agents of the Crimes Against Children Division of the Department of Arkansas State Police, may interview students without a court order for the purpose of investigating suspected child abuse. In instances where the interviewers deem it necessary, they may exercise a "72-hour hold" without first obtaining a court order. Other questioning of students by non-school personnel shall be granted only with a court order directing such questioning, with permission of the parents of a student (or the student if above eighteen [18] years of age), or in response to a subpoena or arrest warrant.

If the District makes a report to any law enforcement agency concerning student misconduct or if access to a student is granted to a law enforcement agency, the principal or the principal's designee shall make a good faith effort to notify the student's parent, legal guardian, or other person having lawful control of the student, or person standing in loco parentis on student enrollment forms. The principal or the principal's designee shall not attempt to make such contact if presented documentation by the investigator that notification is prohibited because a parent, legal guardian, person having lawful control of the student, or person standing in loco parentis is named as an alleged offender of the suspected child maltreatment. This exception applies only to interview requests made by a law enforcement officer, an investigator of the Crimes Against Children Division of the Department of Arkansas State Police, or an investigator or employee of the Department of Human Services.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student or a warrant for arrest, or to an agent of state social services or an agent of a court with jurisdiction over a child with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, or other persons having lawful control of the student, or person standing in loco parentis notice that the student has been taken into custody by law enforcement personnel or a state's social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number.

CONTACT BY OTHER ADULTS: Correcting or questioning of a student by another student's parent/guardian is never appropriate and will not be allowed. District administrators have authority to regulate parents' visits to a school if this policy is violated.

## CLASSROOM DISRUPTIONS

**(Appointments, early check-outs, flowers, balloons, etc.)**

Cabot Schools place a high priority on classroom instruction time. Every effort is made to eliminate unnecessary and unscheduled disruptions. The following are some ways parents can help:

- Schedule appointments so students are not checked out of school or returned to school during a class;
- Do not check students out of school during the last fifteen (15) minutes of the day except in emergency situations or for medical appointments;
- Arrange transportation with your child before sending him/her to school. Calling the school office to have a message sent to your child is very disruptive. Should this be necessary, we ask that you do so before 2:45. Parents should notify their child's teacher in writing if the child is being transported home in a way other than the usual way. If a daycare is involved, the parent should do the communicating with the daycare as well as the school. Parents must notify the school to change the transportation plan for elementary students; otherwise elementary students will go home according to the original plan.
- Refrain from sending flowers to school. If flowers are sent, the student will be notified but the flowers will be kept in the office until the end of the day, when the student may come by the office to pick them up. Flowers in glass vases will not be sent on the bus;
- Do not send Balloons; they will not be accepted for delivery to students.
- Elementary/Middle School students should refrain from bringing toys/games from home unless they are for a specified classroom activity.

## MEAL DELIVERIES TO STUDENTS

Food deliveries for students may only be made by a parent/guardian listed on their student contact list, who has appropriate access. In addition, no parent/guardian may deliver food to any student but their own. It must be brought into the main office in order for identification verification to be made. No drop-off delivery meals or food from any commercial business or vendor including but not limited to Uber Eats, DoorDash, or Bite Squad will be accepted.

If a parent/guardian of a student wishes to eat lunch with his/her student on campus, a separate space will be provided for the parent and student to enjoy their meal.

## NON-DISCRIMINATION AND SECTION 504

No student shall be discriminated against because of age, color, disability, parental status, marital status, race, national origin, religion, gender or veteran status.

It is the policy of the Cabot School District to provide a free appropriate public education to each qualified student with a disability within its jurisdiction, regardless of the nature or

severity of the disability. It is the intent of the district to ensure that students who are disabled within the definition of Section 504 of the Rehabilitation Act of 1973 are identified, evaluated and provided with appropriate educational services. Parents who have a temporary or permanent disability may request the district to provide appropriate accommodations necessary for them to participate in essential instructional activities of their students. Students who are at least eighteen (18) years of age may submit their own requests.

Under Section 504, due process rights of qualified students with disabilities and their parents are guaranteed in the Cabot School District. The Director of Special Programs serves as the Coordinator of Section 504 and other equity issues for the Cabot School District and may be contacted at the district office, 602 North Lincoln Street, Cabot, Arkansas, 72023, or by phone at 501-843-3363, between the hours of 8:00 a.m. and 4:30 p.m., Monday through Friday. Each school has a 504 Team Chairperson who may be contacted at his/her respective buildings.

**ANNUAL REQUIRED NOTIFICATION**

This is to inform the parents, teachers, guardians and school employees that the Asbestos Hazard Emergency Response Act (AHERA) Inspection and Management Plan for the Cabot Public Schools is located in the Administrative office of each campus and can be reviewed during normal business hours.

**PRIVACY OF STUDENTS' RECORDS AND DIRECTORY INFORMATION (4:13)**

Except when a court order regarding a student has been presented to the district to the contrary, all students' education records are available for inspection and copying by the parents of any student who is under the age of eighteen (18). At the age of eighteen (18), the right to inspect and copy a student's records transfers to the student. A student's parent or the student, if over the age of eighteen (18), requesting to review the student's education records will be allowed to do so within no more than forty-five (45) days of the request. The district forwards education records, including disciplinary records, to schools that have requested them and in which the student seeks or intends to enroll, or is already enrolled so long as the disclosure is for purposes related to the student's enrollment or transfer. The district shall receive written permission before releasing education records to any agency or individual not authorized by law to receive and/or view the education records without prior parental permission. The district shall maintain a record of requests by such agencies or individuals for access to, and each disclosure of, personally identifiable information from the education records of each student. Disclosure of education records is authorized by law to school officials with legitimate educational interests. A personal record kept by a school staff member is not considered an education record if it meets the following tests:

- it is in the sole possession of the individual who made it;
- it is used only as a personal memory aid; and
- information contained in it has never been revealed or made available to any other person, except the maker's temporary substitute.

For the purposes of this policy, a school official is a person employed by the school as an administrator, supervisor, instructor, or support staff member (including health or medical staff and law enforcement unit personnel); a person serving on the school board; a person or company with whom the school has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent or student serving on an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks.

For the purposes of this policy a school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibility, contracted duty, or duty of elected office.

The district discloses personally identifiable information from an education record to appropriate parties, including parents, in connection with an emergency if knowledge of the information is necessary to protect the health or safety of the student or other individuals. The superintendent or designee shall determine who will have access to and the responsibility for disclosing information in emergency situations.

When deciding whether to release personally identifiable information in a health or safety emergency, the district may take into account the totality of the circumstances pertaining to a threat to the health or safety of a student or other individuals. If the district determines that there is an articulable and significant threat to the health or safety of a student or other individuals, it may disclose information from education records to any person whose knowledge of the information is necessary to protect the health or safety of the student or other individuals.

For purposes of this policy, the Cabot School District does not distinguish between a custodial and non-custodial parent, or a non-parent such as a person acting in loco parentis or a foster parent with respect to gaining access to a student's records. Unless a court order restricting such access has been presented to the district to the contrary, the fact of a person's status as parent or guardian, alone, enables that parent or guardian to review and copy his child's records.

If there exists a court order which directs that a parent not have access to a student or his/her records, the parent, guardian, person acting in loco parentis or an agent of the Department of Human Services, must present a file-marked copy of such order to the building principal and the superintendent. The school will make good-faith efforts to act in accordance with such court order, but the failure to do so does not impose legal liability upon the school. The actual responsibility for enforcement of such court orders rests with the parents or guardians, their attorneys and the court which issued the order.

A parent or guardian does not have the right to remove any material from a student's records, but such parent or guardian may challenge the accuracy of a record. The right to

challenge the accuracy of a record does not include the right to dispute a grade, which must be done only through the appropriate teacher and/or administrator, the decision of whom is final. A challenge to the accuracy of material contained in a student's file must be initiated with the building principal, with an appeal available to the superintendent or his designee. The challenge shall clearly identify the part of the student's record the parent wants changed and specify why he/she believes it is inaccurate or misleading. If the school determines not to amend the record as requested, the school will notify the requesting parent or student of the decision and inform them of their right to a hearing regarding the request for amending the record. The parent or eligible student will be provided information regarding the hearing procedure when notified of the right to a hearing.

Unless the parent or guardian of a student (or student, if above the age of eighteen [18]) objects, directory information about a student may be made available to the public, military recruiters, post-secondary educational institutions, prospective employers or those students, as well as school publications such as annual yearbooks and graduation announcements. "Directory Information" includes, but is not limited to, a student's name, address, telephone number, electronic mail address, photograph, date and place of birth, classes in which he/she is enrolled, dates of attendance, his/her placement on the honor roll (or the receipt of other types of honors), as well as his/her participation in school clubs and extracurricular activities, among others. If the student participates in inherently public activities (for example-basketball, football or other and interscholastic activities) the publication of such information will be beyond the control of the district. Directory information also includes a student identification (ID) number, user ID, or other unique personal identifier used as a student for purposes of accessing or communicating in electronic systems and a student ID number or other unique personal identifier that is displayed on a student's ID badge, provided the ID cannot be used to gain access to such personal identification number (PIN), password or other factor known or possessed only by the authorized user.

The form for objecting to making directory information available is located at each school's office and must be completed and signed by the parent or age-eligible student and filed with the building principal's office no later than ten (10) school days after the beginning of each school year or the date the student is enrolled for school. Failure to file an objection by that time is considered a specific grant of permission. The district is required to continue to honor any signed "opt out" form for any student no longer in attendance at the district.

The right to opt out of disclosure of directory information under FERPA does not prevent the District from disclosing or requiring a student to disclose the student's name, identifier, or institutional email address in a class in which the student is enrolled.

All school records shall reflect the full legal name of all students as reflected on their birth certificates or as ordered by a court. Email addresses, attendance rosters, and any information or documentation generated from the Statewide Information System and Student Management System will also use only the student's legal name.

Parents and students over the age of eighteen (18) who believe the district has failed to comply with the requirements for the lawful release of student records may file a complaint with the U.S. Department of Education at: Family Policy Compliance Office, U.S. Department of Education, 400 Maryland Avenue, SW, Washington, DC 20202.

The District shall ensure that all contracts that disclose or make available student personally-identifiable information to vendors, including school service contract providers, school service on-demand providers, and other third parties, including without limitation subcontractors of contract providers, include express provisions that safeguard the privacy and security of student personally identifiable information that meet the requirements under A.C.A. § 6-18-2601 et seq. The District shall maintain a list of the school service contract providers that the District contracts with for school services that include or make available student personally-identifiable information. The list shall be updated at least once at the beginning of each semester and provided to parents upon request.

## NOTIFICATION OF RIGHTS UNDER THE FAMILY EDUCATION RIGHTS & PRIVACY ACT (5:26)

The Family Education Rights and Privacy Act (FERPA) became a federal law in November, 1974. The intent of this law is to protect the accuracy and privacy of students' educational records.

FERPA affords parents and students over eighteen (18) years of age ("eligible students") certain rights with respect to the student's educational records. They are:

1. The right to inspect and review the student's education records.
2. The right to request the amendment of the student's education records that the parent of eligible students believes are inaccurate or misleading.
3. The right to consent to disclosures of personally identifiable information contained in the student's education records, except to the extent that FERPA authorizes disclosure without consent. Upon request, the district discloses education records, without consent, to officials of another school district in which a student intends to enroll.
4. The right to file a complaint with the U. S. Department of Education concerning alleged failures of the district to comply with the requirements of FERPA.

A copy of the district's guidelines for compliance with the Family Educational Rights and Privacy Act is available from your schools' office.

## TELEPHONE USE AND MESSAGES

Students may use the telephone in the school office with the principal's permission only in case of emergency or for school business. Individuals will not be called from class to the telephone except in an emergency or for school business. The school secretary will take a message, to be delivered at a break, from a parent or guardian for any student.

Parents should not routinely phone the school with messages and directions about how their child should get home that day. Please arrange transportation with your children before sending them to school. When it is necessary to change transportation arrangements for your child, the parents/guardians should notify the teacher in writing about the change. If a phone call is necessary, please contact the school before 2:45.

**HOMESCHOOLING (4.6)**

Parents or legal guardians desiring to provide a homeschool for their children must give written notice to the Superintendent of their intent to do so and sign a waiver acknowledging that the State of Arkansas is not liable for the education of their children during the time the parents choose to homeschool. Notice shall be given:

1. At the beginning of each school year, but no later than August 15;
2. By December 15 for parents who decide to start homeschooling at the beginning of the spring semester; or
3. Five (5) school days prior to withdrawing the child (provided the student is not currently under disciplinary action for violation of any written school policy, including, but not limited to, excessive unexcused absences) and at the beginning of each school year thereafter.
4. Within thirty (30) calendar days of the parent or legal guardian establishing residency within the district during the school year.

Written notice of the parent or legal guardian's intent to homeschool shall be delivered to the Superintendent through any of the following methods:

- Electronically, including without limitation, by use of the Division of Elementary and Secondary Education's (DESE) online system, email, or facsimile
- By mail
- In person

The notice shall include:

1. The name, sex, date of birth, grade level, and the name and address of the school last attended, if nay;
2. The mailing address and telephone number of the home school;
3. The name of the parent or legal guardian providing the homeschool;
4. Indicate if the homeschooled student plans to seek a high school equivalency diploma during the current school year;
5. A statement that the parent or legal guardian agrees that the parent or legal guardian is responsible for the education of their children during the time the parents or legal guardian choose to home school; and
6. A signature of the parent or legal guardian.

To aid the district in providing a free and appropriate public education to students in need of special education services, the parents or legal guardians homeschooling their children shall provide information, which might indicate the need for special education services.

A student who has been temporarily issued items, resources, supplies, materials, or other property belonging to the District is eligible for enrollment in a homeschool during the school year after:

- The items, resources, supplies, materials, or other property belonging to the District have been returned to the District;

- The items, resources, supplies, materials, or other property belonging to the District have been paid for;
- The semester has ended.

The superintendent may waive the required five (5) school day waiting period for a student's enrollment in homeschool during a semester if the superintendent is satisfied with the return of temporarily issued items, resources, supplies materials, or other District property.

Students who reside within the Cabot School District boundary enrolled in homeschool or private school may enroll in academic courses, providing the enrollment does not create a financial loss for the district. (Act 430 of 2019).

**Enrollment or Re-Enrollment in Public School**

A homeschooled student who wishes to enroll or re-enroll in a District school shall submit:

- A transcript listing all courses taken and semester grades from the homeschool;
- Score of at least the thirtieth percentile on a nationally recognized norm-referenced assessment taken in the past year; and
- A portfolio of indicators of the homeschooled student's academic progress, including without limitation:
    - Curricula used in the homeschool;
    - Tests taken and lessons completed by the homeschooled student; and
    - Other indicators of the homeschooled student's academic progress.

If a homeschooled student is unable to provide a nationally recognized norm-referenced score, the District may either assess the student using a nationally recognized norm-referenced assessment or waive the requirement for a nationally recognized norm-referenced assessment score.

A homeschooled student who enrolls or re-enrolls in the District will be placed at a grade level and academic course level equivalent to or higher than the homeschooled student's grade level and academic course level in the homeschool:

1. As indicated by the documentation submitted by the homeschooled student;
2. By mutual agreement between the public school and the homeschooled student's parent or legal guardian; or
3. If the homeschooled student fails to provide the documentation required by this policy, with the exception of the nationally recognized norm-referenced assessment score, the District may have sole authority to determine the home-schooled student's grade placement and course credits. The District will determine the homeschooled student's grade placement and course credits in the same manner the District uses when determining grade placement and course credits for students enrolling or re-enrolling in the District who attended another public or private school.

The District shall afford a homeschooled student who enrolls or re-enrolls in a public school the same rights and privileges enjoyed by the District's other students. The District shall not deny a homeschooled student who enrolls or re-enrolls in the District any of the following on the basis of the student having attended a homeschool:

a. Award of course credits earned in the homeschool;
b. Placement in the proper grade level and promotion to the next grade level;
c. Participation in any academic or extracurricular activity;
d. Membership in school-sponsored clubs, associations, or organizations;
e. A diploma or graduation, so long as the student has enrolled or re-enrolled in the District to attend classes for at least the nine (9) months immediately prior to graduation; or
f. Scholarships.

**CLOSED CAMPUS (4.10)**

All schools in the district shall operate closed campuses. Students are required to stay on campus from their arrival until dismissal at the end of their regular school day unless given permission to leave the campus by a school official. Students shall follow procedures established by the building principal for signing out to leave campus.

**EQUAL EDUCATION OPPORTUNITY (4.11)**

No student in the Cabot School District shall be excluded from participation in, or denied the benefits of, or subjected to discrimination under any educational program or activity sponsored by the district on the basis of color, religion, national origin, sex, age, or disability. Issues, actions or procedures that may be considered discriminatory should be appealed to the Assistant Superintendent or his/her designee at the District Administration Building located at 602 North Lincoln Street, Cabot, or by telephone at 501-843-3363.

Any person may report sex discrimination, including sexual harassment, to the Title IX Coordinator in person or by using the mailing address, telephone number, or email address provided on the district website. A report may be made at any time, including during non-business hours, and may be on the individual's own behalf or on behalf of another individual who is the person alleged to be the victim of conduct that could constitute sex discrimination of sexual harassment.

**STUDENT ORGANIZATIONS / EQUAL ACCESS (4.12)**

Non-curriculum-related secondary school student organizations wishing to conduct meetings on school premises during non-instructional time shall not be denied equal access on the basis of the religious, political, philosophical, or other content of the speech at such meetings. Such meetings must meet the following criteria:

1. The meeting is to be voluntary and student initiated;
2. There is no sponsorship of the meeting by the school, the government, or its agents or employees;
3. The meeting must occur during non-instructional time;
4. Employees or agents of the school are present at religious meetings only in a non-participatory capacity;

5. The meeting does not materially and substantially interfere with the orderly conduct of educational activities within the school; and
6. Non-school persons may not direct, conduct, control, or regularly attend activities of student groups.

All meetings held on school premises must be scheduled and approved by the principal. Employees serving as club sponsors must be employed and housed in the same building as the club. The school, its agents, and employees retain the authority to maintain order and discipline, to protect the well-being of students and faculty, and to assure that attendance of students at meetings is voluntary. Fraternities, sororities, and secret societies are forbidden in the district's schools. Membership to student organizations shall not be by a vote of the organization's members, nor be restricted by the student's race, religion, sex, national origin, or other arbitrary criteria. Hazing, as defined by law, is forbidden in connection with initiation into, or affiliation with, any student organization, extracurricular activity or sports program.

## PICTURE PUBLICATION

From time to time the school may wish to publish individual or group accomplishments on school or district web pages, social media, yearbooks, or other media outlets. In these circumstances, published images of a student or reference to his/her work may include the use of the student's name. The student's address and/or phone number will not be published on the internet or the school or district web pages at any time. **Parents desiring that their child's picture and/or name not be used on a website or other publication should notify their child's principal each school year using the form available in the school office.**

## STUDENT PUBLICATIONS AND THE DISTRIBUTION OF LITERATURE (4.14)

Student Publications

All publications that are supported financially by the school or by use of school facilities, or are produced in conjunction with a class shall be considered school-sponsored publications. School publications do not provide a forum for public expression. Such publications, as well as the content of student expression in school-sponsored activities, shall be subject to the editorial control of the District's administration whose actions shall be reasonably related to legitimate pedagogical concerns and adhere to the following limitations:

1. Advertising may be accepted for publications that does not condone or promote products that are inappropriate for the age and maturity of the audience or that endorses such things as tobacco, alcohol, or drugs.
2. Publications (paper or electronic) may be regulated to prohibit writings which are, in the opinion of the appropriate teacher and/or administrator, ungrammatical, poorly written, inadequately researched, biased or prejudiced, vulgar or profane, or unsuitable for immature audiences.

3. Publications may be regulated to refuse to publish material which might reasonably be perceived to advocate drug or alcohol use, irresponsible sex, or conduct otherwise inconsistent with the shared values of a civilized social order, or to associate the school with any position other than neutrality on matters of political controversy.
4. Prohibited publications include:
    a. Those that are obscene as to minors;
    b. Those that are libelous or slanderous, including material containing defamatory falsehoods about public figures or governmental officials, which are made with knowledge of their falsity or reckless disregard of the truth;
    c. Those that constitute an unwarranted invasion of privacy as defined by state law;
    d. Publications that suggest or urge the commission of unlawful acts on the school premises;
    e. Publications which suggest or urge the violation of lawful school regulations; or
    f. Hate literature that scurrilously attacks ethnic, religious, or racial groups.

Student Publications on School Web Pages

Student publications that are displayed on school web pages shall follow the same guidelines as listed above plus they shall:

a. Not contain any non-educational advertisements;
b. Adhere to the restrictions regarding use of Directory Information as prescribed in policy, including not using a student's photograph when associated with the student's name unless written permission has been received from the student's parent or student if over the age of eighteen (18); and
c. State that the views expressed are not necessarily those of the School Board or the employees of the district.

Student Distribution of Non-school Literature, Publications, and Materials

A student or group of students who distribute ten (10) or fewer copies of the same non-school literature, publications, or materials (hereinafter "non-school materials"), shall do so in a time, place, and manner that does not cause a substantial disruption of the orderly education environment. A student or group of students wishing to distribute more than ten (10) copies of non-school materials shall have school authorities review their non-school materials at least three (3) school days in advance of their desired time of dissemination. School authorities shall review the non-school materials, prior to their distribution and will bar from distribution those non-school materials that are obscene, libelous, pervasively indecent, or advertise unlawful products or services. Material may also be barred from distribution if there is evidence that reasonably supports a forecast that a substantial disruption of the orderly operation of the school or educational environment will likely result from the distribution. Concerns related to any denial of distribution by the principal shall be heard by the Superintendent or Assistant Superintendent, whose decision shall be final.

The school principal or designee shall establish reasonable regulations governing the time, place, and manner of student distribution of literature-non-school materials.

The regulations shall:

1. Be narrowly drawn to promote orderly administration of school activities by preventing disruption and may not be designed to stifle expression;
2. Be uniformly applied to all forms of non-school materials;
3. Allow no interference with classes or school activities;
4. Specify times, places, and manner where distribution may and may not occur;
5. Not inhibit a person's right to accept or reject any literature distributed in accordance with the regulations; and
6. Students shall be responsible for the removal of excess literature that is left at the distribution point for more than three (3) days.

**FREEDOM OF SPEECH AND ASSEMBLY**

Students are entitled to expression of personal opinions as long as the rights of others are not violated and provided that the expression does not cause disruption of the educational process. Obscenities are prohibited.

Students may assemble peaceably. To avoid disruption of the educational process, all student meetings must function as a part of the educational process or as authorized by the principal. Meetings that interfere with the operation of the school are prohibited.

No student shall by the use of violence, force, noise, coercion, threat, intimidation, fear, passive resistance, or any other conduct, intentionally cause the disruption of any lawful mission, process, or function of the school, or engage in any such conduct for the purpose of causing disruption or obstruction of any lawful mission, process, or function. Nor shall any student encourage any other student to engage in such activities.

Disorderly activities by any student or group of students that adversely affect the school's orderly educational environment shall not be tolerated at any time on school grounds.

**STUDENT RELIGIOUS EXPRESSION (Act 788 of 2023)**

The Cabot School District Board of Directors does not allow the discrimination against a student based on a student's voluntary religious expression, if any. At the same time, the District shall provide a process to eliminate any actual or perceived sponsorship or attribution to the District of a student's public voluntary expression of a religious viewpoint, if any.

**Student Assignments**

Student assignments include, but are not limited to:

- Homework;
- Classwork;
- Artwork; and
- Other written or oral assignments.

A student may express the student's religious viewpoint, if any, in the student's assignments without discrimination based on the religious content, if any. A student's assignments shall:

1. Be graded and judged:
    - By ordinary academic standards of substance and relevance; and
    - Against other conventional, pedagogical topics as identified by the District curriculum; and
2. Not be penalized or rewarded based on the religious content, if any, of the student's assignments.

**Student Presenters**

A student's expression of a religious viewpoint, if any, on an otherwise permissible subject shall not be excluded from a forum, whether oral or in writing, where students are allowed to speak.

The District has the right to restrict student speech that is inappropriate in the school setting by being obscene, vulgar, offensively lewd, or indecent.

Review of written student forums shall be handled in accordance with Policy 4.14—STUDENT MEDIA AND THE DISTRIBUTION OF LITERATURE.

If the forum is a scheduled event with designated student speakers, the building principal shall have an opportunity to review pre-written remarks prior to the student's presentation at the scheduled forum. The principal may require the student to amend the student's remarks to the extent necessary to address any portions that are determined to be inappropriate. A student's refusal to amend the remarks that were determined to be inappropriate may be prohibited from participation in the forum. A student who diverts from the approved pre-written remarks during a speech in such a manner that is determined to be inappropriate by the building principal or another present District staff member may be asked to return to the approved remarks. If a student refuses to return to the approved remarks or continues to divert from the approved remarks in a manner that is determined to be inappropriate may be escorted from the forum and disciplined in accordance with the District's student discipline policies.

If the timing or format of the forum does not provide for pre-written remarks to be reviewed, then the building principal or other District staff shall have the authority to address a student whose remarks are determined to be inappropriate. The building principal or District staff member shall initially ask the student to cease the inappropriate remarks. If the student refuses or makes additional inappropriate remarks after being directed to cease such remarks, then the building principal or District staff member may escort the student from the forum and the student may be disciplined in accordance with the District's student discipline policies.

There shall be a disclaimer that a student speaker's speech does not reflect the endorsement, sponsorship, position, or expression of the District. The disclaimer shall be provided at all forums where students speak and at all graduation ceremonies. The disclaimer shall be provided orally or in writing as most appropriately fits the format of the forum.

Information on how to participate in a student forum shall be provided to all students.

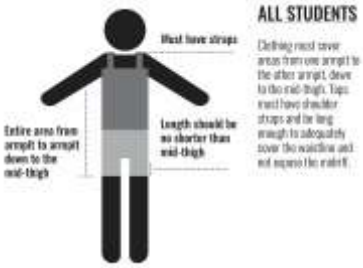
In addition to the salutatorian and valedictorian, other possible speakers at graduation may be selected from the top ten (10) graduates.

**STUDENT DRESS AND GROOMING (4:25)**

The Cabot School Board of Education recognizes that dress can be a matter of personal taste and preference. The primary responsibility for a student's attire and compliance with the district's dress code policy resides with the students and their parent(s)/guardian(s). At the same time, the district has a responsibility to promote an environment conducive to student learning. Therefore, dress that could be considered revealing, distracting, derogatory, offensive, intimidating, dangerous, or that could interfere with the educational process is prohibited. This includes but is not limited to face paint, costumes, clothing that advertises alcohol, tobacco or drugs, drug paraphernalia, profanity, weapons, pornography, sexually related material, or gangs. Students are prohibited from wearing, while on the school grounds during the school day, clothing that exposes underwear, stomach, back, buttocks, or the chest. This prohibition may not apply to uniforms worn by a student while participating in a school-sponsored activity or event, which will be regulated by the coach or sponsor of the activity.

The following guidelines outline appropriate dress in Cabot's schools:

- Pants, shorts, dresses and skirts must be no shorter than mid-thigh. Long dresses cannot have a slit that exceeds mid-thigh length;




- Tops with spaghetti straps are prohibited;
- Building administrators have the discretion to ban caps, hats, toboggans, hoods, etc. for their building;

- Dress codes for ceremonies, special events, and inclement weather will be determined by the school administrator.

It is the responsibility of administration to address a student that is in violation of the dress code policy. Students will only be addressed as a result of the dress code as outlined above. Students in violation of the dress code will be provided with options to comply during the school day:

- Students can choose to put on their own alternative clothing if already available at school.
- Students can choose to call parents/guardians to bring alternative clothing for the student to wear. Clothing should be provided in a timely manner to minimize the loss of instructional time.
- If available, students can choose to wear alternative clothing provided by the school.

The purpose of the dress code enforcement policy is to bring the student into compliance, not to bring disciplinary action against the student in violation of the dress code.

Pursuant to Ark. Code Ann. § 6-10-138, a student shall not be disciplined or discriminated against based upon the student's natural, protective, or cultural hairstyle. A student's natural, protective, or cultural hairstyle includes without limitation afros, dreadlocks, twists, locs, braids, cornrow braids, Bantu knots, curls, and hair styled to protect hair texture or for cultural significance.

**STUDENT IDENTIFICATION (4.57)**

All students, grades 7-12, will be issued picture identification cards with their legal name. These identification cards must be in a student's possession any time the student is on the school campus during regular school hours. If the identification card is lost, damaged or defaced (e.g. coloring, erasing, cutting, marking, covering with stickers, poking holes, etc.), the student will be responsible for the cost of the replacement card.

All persons on school grounds, in school buildings, or at school sponsored events must identify themselves by their legal name to school employees upon request. A student who refuses to identify themselves will be suspended from school.

**STUDENT NAME, TITLE, OR PRONOUN (4.62) (Act 542 of 2023)**

Unless the building principal has the written permission of the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student or the student if the student is an emancipated minor or over eighteen (18) years of age, a District employee shall not address a student with a:

1. Name other than that listed on the student's birth certificate, except for a derivative of the name; or
2. Pronoun or title that is inconsistent with the student's biological sex.

A student shall not be subject to discipline for declining to address a person using a:

a) Name other than that listed on the student's birth certificate, except for a derivative of the name; or
b) Pronoun or title that is inconsistent with the person's biological sex.

**STUDENT USE OF MULTIPLE OCCUPANCY ROOM (4.61) (Act 317 of 2023)**

**Definitions**

"Multiple occupancy room" means an area in a District building that is designed or designated to be used by one (1) or more individuals at the same time and in which one (1) or more individuals may be in various stages of undress in the presence of other individuals, which includes, without limitation, a restroom, locker room, changing room, or shower room.

"Sex" means the physical condition of being male or female based on genetics and physiology, which may be demonstrated by the sex identified on a student's original birth certificate.

Each multiple occupancy room in a District building shall be designated as either male or female. Except as permitted by this policy, a student shall not enter a multiple occupancy room that does not correspond to the student's sex.

An individual who is unwilling or unable to use a multiple occupancy room designated for the individual's sex shall be granted a reasonable accommodation, which may include, without limitation, access to a single-occupancy restroom or changing area. A reasonable accommodation shall not include access to a restroom or changing area that is designated for use by members of the opposite sex to an individual while members of the opposite sex of the individual are present or may be present in the restroom or changing area.

The prohibitions in this policy do not apply to an individual who enters a multiple occupancy room designated for use by the opposite sex when the individual enters for any of the following reasons:

- custodial, maintenance, or inspection purposes;
- To render emergency medical assistance;
- To address an ongoing emergency, including without limitation a physical altercation;
- To accommodate individuals protected under the Americans with Disabilities Act; or
- To assist young children who are in need of physical assistance when using a restroom or changing facility that is located in the District.

**VEHICLES (4.33)**

**High School, Cabot Panther Academy & Freshman Academy students, (grades 9-12),** who have presented a valid driver's license and proof of insurance to the appropriate office personnel, may drive his/her vehicle to school. Vehicles driven to school shall be parked in the area designated for student parking. Parking on school property is a privilege which

may be denied to a student for any disciplinary violation, at the discretion of the student's building principal.

Junior high school students with a valid driver's license are not allowed to drive motorized vehicles.

Students are not permitted to loiter in parking areas and are not to return to their vehicles during the school day for any reason unless given permission to do so by school personnel. Freshman must park in their assigned parking location.

It is understood that there is no expectation of privacy in vehicles in parking areas. Drivers of vehicles parked on a school campus will be held accountable for illegal substances or any other item prohibited by district policy found in their vehicle. The act of a student parking a vehicle on campus is a grant of permission for school or law enforcement authorities to search that vehicle.

The vehicle of a student, who leaves campus and returns to campus during the school day, in violation of the high school, Cabot Panther Academy & Freshman Academy policy, may be searched upon returning to the campus. Refusal to a search may result in disciplinary action up to and including a discipline conference with the superintendent or designee.

**PARKING AREAS AND AUTOMOBILES (SECONDARY GRADES 9-12)**

Students have the privilege of driving cars to school as long as the following requirements are met:

- Arrive at school on time;
- Cars are not to be removed from the parking area at any time during the school hours without the permission of the principal;
- Have a valid driver's license;
- Observe safe driving rules;
- Parental consent;
- Park in area assigned;
- Register car and secure a parking permit;
- No flags shall be flown on vehicles in school parking areas;
- Students shall not display any political signs on vehicles while in school parking areas;
- Students are to leave the parking areas upon arrival and return to the parking areas only at departure time. No loitering will be permitted in the parking areas;
- Do not park in handicapped area unless qualified;
- School may tow vehicles at owner's expense;
- Jr. High students cannot park vehicles on school property.

The violation of school driving and parking regulations will result in disciplinary action. **Consequences: Minimum-Warning; Maximum- Loss of driving/parking privileges and/or legal referral**

**ASSEMBLIES**

Assemblies of varying types are scheduled in Cabot Schools. Attendance at pay assemblies is voluntary, but all students are expected to attend all general assemblies. A fee may be assessed to the student for assemblies for which the school must pay.

Pep assemblies are occasionally held before athletic contests. These rallies are the responsibility of the cheerleaders and the student council. The athletic team and coaches will be present at pep assemblies.

Students are to sit in their assigned areas for all assemblies and to observe all school regulations.

**MANDATORY STUDENT DRUG TESTING POLICY (4.24.1)**

Cabot Public Schools recognizes that drug abuse is a significant health problem for students, detrimentally effecting overall health, behavior, learning ability, reflexes, and the total development of each individual. Our stakeholders are determined to help students by providing another incentive for them to say "No". It is critical that educators and parents continually seek ways to implement effective programs that provide the appropriate actions to address and foster a drug free environment in our schools. Drug abuse includes but is not limited to, the use of illegal drugs, alcohol, and the misuse of legal drugs and medications.

Guidelines for the Mandatory Student Drug Testing Policy can be found on the District website under the "Parents" link.

## SECTION 2 – Enrollment and Attendance Policies

**RESIDENCE REQUIREMENTS (4.1)**

**Definitions:**

**"In loco parentis"** means relating to the responsibility to undertake the care and control of another person in the absence of:

1. Supervision by the person's parent or legal guardian; and
2. Formal legal approval.

**"Reside"** means to be physically present and to maintain a permanent place of abode in the Cabot School District for an average of no fewer than four (4) calendar days and nights per week for a primary purpose other than school attendance.

**"Resident"** means a student whose parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis reside in the Cabot School District.

**"Residential address"** means the physical location where the student's parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis

reside. A student may use the residential address of a parent, legal guardian, person having lawful control of the student, or person standing in loco parentis only if the student resides at the same residential address and if the guardianship or other legal authority is not granted solely for educational needs or school attendance purposes.

The schools of the district shall be open and free through the completion of the secondary program to all persons between the ages of five (5) and twenty-one (21) years whose parents, legal guardians, persons having lawful control of the student, or person standing in loco parentis reside within the Cabot School District and to all persons between those ages who have been legally transferred to the Cabot School District for educational purposes.

Any person eighteen (18) years of age or older may establish a residence separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis for school attendance purpose.

In order for a person under the age of eighteen (18) years to establish a residence for the purpose of attending the district's schools separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis, the student is required to reside in the district for a primary purpose other than that of school attendance; however, a student previously enrolled in the district whose parents move the student into another district or who is placed under the legal guardianship of a noncustodial parent living outside the district by a custodial parent on active military duty may continue to attend district schools. A child in foster care who was previously enrolled in a district school and who has had a change in placement to a residence outside the district may continue to remain enrolled in his/her current school unless the presiding court rules otherwise.

Under instances prescribed in A.C.A. §6-18-203, a child or ward of an employee of the district or of the education coop to which the district belongs may enroll in the district even though the employee and the employee's child or ward reside outside the district.

**ENTRANCE REQUIREMENTS (4.2)**

To enroll in Cabot Public Schools, the child must be a resident of the Cabot School District as defined in district policy (RESIDENCE REQUIREMENTS), meet the criteria for HOMELESS OR DISPLACED STUDENTS (4:49) or STUDENTS WHO ARE IN FOSTER CARE (4:50), be accepted as a transfer student under the provision of the transfer policy, or participate under a school choice option and submit the required paperwork as required by the choice option under Policy 4.5.

Students may enter kindergarten if they will attain the age of five (5) on or before August 1 of the year in which they are seeking initial enrollment. Any student who has been enrolled in a state-accredited or state-approved kindergarten program in another state for a least sixty (60) days, will become five (5) years old during the year in which he/she is enrolled in kindergarten, and meets the basic residency requirements for school attendance,

may be enrolled in kindergarten upon written request to the Cabot School District. Any student who was enrolled in a state-accredited or state-approved kindergarten program in another state or in a kindergarten program equivalent in another country, becomes a resident of this state as a direct result of active military orders or a court-ordered change of custody, will become five (5) years of age during the school year in which he or she is enrolled in kindergarten, and meets the basic residency requirements for school attendance may be enrolled in kindergarten upon a written request to the District.

Any child who will be six (6) years of age on or before October 1 of the school year of enrollment and who has not completed a state-accredited kindergarten program shall be evaluated by the district and may be placed in the first grade if the results of the evaluation justify placement in the first grade and the child's parents or legal guardian agrees with placement in the first grade; otherwise, the child shall be placed in kindergarten.

Any child may enter first grade in one of Cabot's elementary schools if the child will attain six (6) years of age during the school year in which the child is seeking enrollment and the child has successfully completed a kindergarten program in a public school in Arkansas.

Any child who has been enrolled in the first grade in a state-accredited or state-approved elementary school in another state for a period of at least sixty (60) days, who will become six (6) years of age during the school year in which the student is enrolled in grade one (1), and who meets the basic residency requirements for school attendance may be enrolled in the first grade.

Students who move into the Cabot School District from an accredited school shall be assigned to the same grade as they were attending in their previous school (mid-year transfers) or as they would have been assigned in their previous school. Home-schooled students shall be evaluated by the district to determine their appropriate grade placement.

Any student 18 years or older enrolling in the Cabot School District may be required to attend one of the district's Cabot Panther Academy programs.

The district shall make no attempt to ascertain the immigration status, legal or illegal, of any student or the student's parent or legal guardian presenting for enrollment. Anyone questioning a person's legal status will be referred to legal authorities.

Prior to the child's admission to a Cabot School District school:

1. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall furnish the child's social security number, or if they request, the district will assign the child a nine (9) digit number designated by the Division of Elementary and Secondary Education.
2. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall provide the district with one (1) of the following documents indicating the child's age:
   a. A birth certificate;

b. A statement by the local registrar or a county recorder certifying the child's date of birth;
c. An attested baptismal certificate;
d. A passport;
e. A military ID;
f. An affidavit of the date and place of birth by the child's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis; or
g. Previous school records.

3. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall indicate on school registration forms whether the child has been expelled from school in any other school district or is a party to an expulsion proceeding. Any person who has been expelled from any other school district shall receive a hearing before the Board at the time the student is seeking enrollment in the District. The Board reserves the right to not allow the enrollment of such students until the time of the person's expulsion has expired following the hearing before the Board.
4. The child shall be age appropriately immunized from poliomyelitis, diphtheria, tetanus, pertussis, red (rubeola) measles, rubella, and other diseases as designated by the State Board of Health, or have an exemption issued by the Arkansas Department of Health. Proof of immunization shall be by a certificate of a licensed physician or a public health department acknowledging the immunization. Exemptions are also possible on an annual basis for religious reasons from the Arkansas Department of Health. To continue such exemptions, they must be renewed at the beginning of each school year. A child enrolling in a district school and living in the household of a person on active military duty has 30 days to receive his/her initial required immunizations and 12 months to be up to date on the required immunizations for the student's age.

**Uniformed Services Member's Children**

For the purposes of this policy:

"Activated reserve components" means members of the reserve component of the uniformed services who have received a notice of intent to deploy or mobilize under Title 10 of the United States Code, Title 32 of the United States Code, or state mobilization to active duty.

"Active duty" means full-time duty status in the active, uniformed services of the United States, including without limitation members of the National Guard and Reserve on active duty orders under 10 U.S.C. chapters 1209, , and 1211 or 42 U.S.C. § 204.

"Deployment" means a period of time extending from six (6) months before a member of the uniformed services' departure from their home station on military orders through six (6) months after return to the uniformed service member's home station.

“Dual status military technician” means a federal civilian employee who is:

a) Employed under 5 U.S.C. §3101 or 32 U.S.C. §709(b);
b) Required as a condition of employment to maintain membership in the Selected Reserve; and
c) Assigned to a civilian position as a technician in the organizing, administering, instructing, or training of the Selected Reserve or in the maintenance and repair of supplies or equipment issued to the Selected Reserve of the United States Armed Forces.

“Eligible child” means the children of:

- Active duty members of the uniformed services;
- Members of the active and activated reserve components of the uniformed services;
- Veterans of the uniformed services who are injured in the line of duty and medically separated or retired;
- Members of the uniformed services who die on active duty or as a result of injuries sustained on active duty;
- Dual status military technicians; and
- Traditional members of the National Guard and reserve components of the armed forces who are relocating to the state for employment or to serve as a member of an Arkansas-based reserve component unit.
-

“Traditional member of the National Guard or federal reserves” means an active member of the Selected Reserve subject to mobilization and deployment for which the member attends monthly and annual training periods.

“Transition” means the:

- Formal and physical process of transitioning from public school to public school; or
- Period of time in which a student moves from a sending district to a receiving district.

“Uniformed services” means the United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, United States Coast Guard, the National Oceanic and Atmospheric Administration Commissioned Officer Corps, the United States Commissioned Corps of the Public Health Services, and the state and federal reserve components of each of these bodies.

“Veteran” means an individual who served in the uniformed services and who was discharged or released from the uniformed services under conditions other than dishonorable.

The superintendent shall designate an individual as the District's military education coordinator, who shall serve as the primary point of contact for an eligible child and for the eligible child's parent, legal guardian, person having lawful control of the eligible child, or person standing in loco parentis. The individual the superintendent designates as the District's military education coordinator shall possess specialized knowledge regarding the educational needs and unique challenges faced by children of uniformed services families.

An eligible child as defined in this policy shall:

1. Be allowed to continue the student's enrollment at the grade level commensurate with the student's grade level the student was in at the time of transition from the student's previous school, regardless of age;
2. Be eligible for enrollment in the next highest grade level, regardless of age, if the student has satisfactorily completed the prerequisite grade level in the student's previous school;
3. Enter the District's school on the validated level from the student's previous accredited school when transferring into the District after the start of the school year;
4. Be enrolled in courses and programs the same as or similar to the ones the student was enrolled in the student's previous school to the extent that space is available. This does not prohibit the District from performing subsequent evaluations to ensure appropriate placement and continued enrollment of the student in the courses and/or programs;
5. Be provided services comparable to those a student with disabilities received in the student's previous school based on the student's previous Individualized Education Program (IEP). This does not preclude the District school from performing subsequent evaluations to ensure appropriate placement of the student;
6. Make reasonable accommodations and modifications to address the needs of an incoming student with disabilities, subject to an existing 504 or Title II Plan, necessary to provide the student with equal access to education. This does not preclude the District school from performing subsequent evaluations to ensure appropriate placement of the student;
7. Be enrolled by an individual who has been given the special power of attorney for the student's guardianship. The individual shall have the power to take all other actions requiring parental participation and/or consent;
8. Be eligible to continue attending District schools if the student has been placed under the legal guardianship of a noncustodial parent living outside the district by a custodial parent on active military duty.

Following the receipt of advanced notice and an enrollment application of an eligible student from a military family, the District shall:

- Provisionally enroll, provide placement for, and enter academic course requests on behalf of the incoming student based on the student's education record provided by the student's family or the sending district;
- Provide the uniformed services family with information regarding:

a) Career-ready pathways and other academic or education programs offered;
b) Required academic courses for each curriculum and elective course options;
c) School and community-sponsored extracurricular activities, including without limitation, individual team sports, clubs, junior reserve officer training corps opportunities, and Purple Star School program ambassadors;
d) Contact information for the designated military family education coordinator and the Purple Star School program military family education facilitator, if applicable; and
e) Other relevant information regarding the District.

In the event that official copies of an eligible child's education records are not available at the time the eligible child is transferring, then the District shall:

- Pre-register and place an eligible child based on the eligible child's unofficial education records pending receipt of the eligible child's official records; and
- Request the eligible child's official education records from the sending district.

The District shall not deny the enrollment of a uniformed service member dependent unless the District has reached the maximum student-to-teacher ratio allowed under federal law; state law; the Standards for Accreditation for Public Schools and School Districts; state rules; or other applicable federal regulations, and the District timely notifies the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis of the lack of capacity.

The District shall notify a prospective student's family in writing regarding whether the student's enrollment has been accepted or rejected within fifteen (15) calendar days of receiving the student's enrollment application and supporting documentation.

To facilitate a smooth transition between the student's previous coursework and the curriculum best suited to ensure educational success in the student's new school, the District may enroll an inbound transitioning eligible student in digital coursework, if available, at the request of the military family.

The District may request a waiver from the State Board as necessary to accommodate an eligible student.

**International Exchange Students**

"Host family" means the individual or family with whom an international exchange student is placed by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq...

"International exchange student" means a student who is placed with a host family by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq.

Before an international exchange student may attend a District school, the District requires all international student exchange visitor placement organizations that are placing international exchange students within the District to:

- Be certified by the Council on Standards for International Educational Travel;
- Provide documented proof of the international exchange student's English proficiency; and
- Notify the District at least three (3) weeks before the beginning of the academic semester the international exchange student plans to enroll in the District.

The District shall admit for enrollment and attendance an international exchange student who has been placed with a host family who resides within the District boundaries. The international exchange student shall attend the school in the District based on the attendance zone where the host family resides.

Upon an international exchange student's arrival, the international exchange student may be required to submit to quarantine to prevent the spread of infectious diseases as may be necessary, which shall not exceed seven (7) days unless otherwise recommended by the Arkansas Department of Health or the Centers for Disease Control and Prevention.

International exchange students are expected to follow the District handbook and student code of conduct as the District has the authority to expel a student for violations of the school district's written student discipline policies or if the international exchange student presents a danger to the District's students or employees.

Statewide assessment results achieved by an international exchange student enrolled in the District may be included in the District's results on the statewide assessments.

The District may provide English-language services to international exchange students as necessary.

**COMPULSORY ATTENDANCE REQUIREMENTS (4.3)**

Every parent, legal guardian, person having lawful control, or person standing in loco parentis of any child age five (5) through seventeen (17) years on or before August 1 of that year who resides, as defined by policy (RESIDENCE REQUIREMENTS), within a district shall enroll the child and ensure the attendance of the child at a district school with the following exceptions:

1. The child is enrolled in private or parochial school.

2. The child is being home-schooled and the conditions of the policy (4:5 HOME SCHOOLING) have been met.
3. The child will not be age six (6) on or before the minimum age date (see Entrance Requirements) of that particular school year and the parent, legal guardian, person having lawful control, or person standing in loco parentis of the child elects not to have the child attend kindergarten. A kindergarten waiver form prescribed by regulation of the Division of Elementary and Secondary Education must be signed and on file with the Director for Student Services at the district administrative office.
4. Any child who has received a high school diploma, G.E.D., or its equivalent as determined by the State Board of Education.
5. Any child age sixteen (16) or above whom is enrolled in a post-secondary vocational-technical institution, a community college, or a two-year or four-year institution of higher education.
6. Any child age sixteen (16) or seventeen (17) who has met the requirements to enroll in an adult education program as defined by A.C.A. § 6-18-201 (b).

**ATTENDANCE REQUIREMENTS FOR STUDENTS IN GRADES 9 – 12**

Students in grades nine through twelve (9-12) are required to schedule and attend at least 350 minutes of regularly scheduled class time daily. Part of this requirement may be met by students taking post-secondary courses. Eligible students' enrollment and attendance at a post-secondary institution shall count toward the required weekly time of school attendance. Each credit hour shall count as three (3) hours of attendance time. This means a three (3) hour course shall count as nine (9) hours of the weekly required time of attendance. Students in grade twelve must be enrolled in the number of credit-bearing courses necessary to complete all graduation requirements. They may enroll in up to three periods of "Independent Studies", but must be enrolled in four academic classes

**Study Halls**

Students may be assigned to no more than one (1) class period each day for a study hall that the student shall be required to attend and participate in for the full period. Such study halls are to be used for the purposes of self-study or for organized tutoring which is to take place in the school building.

**Extracurricular Classes**

Students may be assigned to no more than one (1) class period each day for organized and scheduled student extracurricular classes that the student shall be required to attend and participate in for the full class period. Extracurricular classes related to a seasonal activity shall meet for an entire semester whether or not the season ends prior to the end of the semester. Students must attend and participate in the class for the entire semester in order to receive credit for the course. For the purpose of this policy, extracurricular classes is defined as school sponsored activities which are not a Division of Elementary and Secondary Education approved course counting toward graduation requirements or classes that have not been approved by the Division of Elementary and Secondary Education for

academic credit. Such classes may include special interest, fine arts, technical, scholastic, intramural, and interscholastic opportunities.

**Course Enrollment Outside of District**

Enrollment and attendance in vocational-educational training courses, college courses, school work programs, and other department-sanctioned educational programs may be used to satisfy the student attendance requirement even if the programs are not located at the public schools. Attendance in such alternative programs must be pre-approved by the school's administration. The district shall strive to assign students who have been dropped from a course of study or removed from a school work program job during the semester into another placement or course of study. In the instances where a subsequent placement is unable to be made, the district may grant a waiver for the student for the duration of the semester in which the placement is unable to be made.

In rare instances, students may be granted waivers from the mandatory attendance requirement if they would experience proven financial hardships if required to attend a full day of school. For the purpose of this policy, proven financial hardships is defined as harm or suffering caused by a student's inability to obtain or provide basic life necessities of food, clothing, and shelter for the student or the student's family. The superintendent shall have the authority to grant such a waiver, on a case-by-case basis, only when convinced the student meets the definition of proven financial hardships.

In any instance where a provision of a student's Individual Education Plan (IEP) conflicts with a portion(s) of this policy, the IEP shall prevail.

**ENROLLMENT FROM HOME SCHOOL OR NON-ACCREDITED SCHOOL**

A student enrolling from home school or from a non-accredited school will be assessed by the school to determine the appropriate grade and/or class placement for the student.

**HOMELESS OR DISPLACED STUDENTS (4.40)**

The Cabot School District will afford the same services and educational opportunities to homeless or displaced children as are afforded to non-homeless or displaced children.

A homeless or displaced student shall be immediately eligible to participate in interscholastic activities at the school in which the student is enrolled.

For more information about available services, parents/guardians should contact the Director of Counseling or the Assistant Superintendent at 501-843-3363.

**STUDENT TRANSFERS (4.4)**

The District may reject a nonresident's application for admission if its acceptance would necessitate the addition of staff or classrooms exceed the capacity of a program, class, grade level, or school building, or cause the District to provide educational services not currently provided in the affected school. The District shall reject applications that would

cause it to be out of compliance with applicable laws and regulations regarding desegregation.

The Cabot School Board has granted the Superintendent authorization to approve legal transfer requests. Each transfer application not approved by the Superintendent shall be placed on the next regular or special called school board meeting agenda.

If the superintendent intends to recommend the Board deny the transfer application, the superintendent shall provide a written explanation of the reasons for the recommendation to the Board and the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

Transfer applications recommended for denial will be considered by the Board and shall be provided to the Board at least five (5) days prior to the meeting where the transfer will be on the agenda. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to a student who submits a transfer application shall be given five (5) minutes to present the student's case for a transfer to the Board. The transfer shall be considered individually and receive a separate vote by the Board.

The parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to the student who submitted a transfer application that was rejected may appeal the decision of the Board to the State Board of Education.

District staff shall evaluate any student transferring to a District school, including a review of a student's transcript, grades, course credits, and test scores, to determine the student's appropriate grade placement. Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public educational entities. A student transferring from homeschool will be placed in accordance with Policy 4.6 – HOMESCHOOLING.

Cabot School District students are assigned to a designated school by attendance zones. Students must attend the school in the zone where they reside, with the following exceptions: (a) Early Enrollment – with documentation establishing that a student will be changing residency, from one attendance zone to another within forty-five (45) days of the request, the district will allow early enrollment in the receiving attendance zone; and (b) Residency Zone Changes – parents/guardians may request that their child continue to attend the school in which they are currently enrolled until the end of the current school year when a change of residence causes a change in the student's attendance zone.

The Cabot School Board of Directors reserves the right, after a hearing before the board, not to allow any person who has been expelled from another district to enroll as a student until the time of the person's expulsion has expired.

Except as otherwise required or permitted by law, the responsibility for transportation of any nonresident student admitted to the Cabot School District shall be borne by the student or the student's parents. The District may enter into a written agreement with the student or student's parents to provide transportation to or from the district or both.

## SCHOOL CHOICE (4:5)

**Exemption:**
Districts shall be exempt from participation in the Public School Choice Act of 2015 and the Arkansas Opportunity Public School Choice Act of 2004 if the following criteria are met: The District is under an enforceable desegregation court order/court-approved desegregation plan that explicitly limits the transfer of students between school districts and has submitted the appropriate documentation to the Division of Elementary and Secondary Education (DESE). The District shall notify the superintendents of each of its geographically contiguous school districts of its exemption. The exemption prohibits the District from accepting any school choice applications from students wishing to transfer into or out of the District through standard School Choice or Opportunity School Choice.

**Definitions:**

"Lack of capacity" means, based on the maximum student to teacher ratio allows under federal law; state law; the Rules Governing the Standards for Accreditation for Arkansas Public Schools and School Districts; state rules; or other applicable federal regulations; that ninety-five percent (95%) or more of grade level seats are filled at the requested school/program as of the date of the application.

"Parent" includes parents, legal guardians, persons having lawful control of a student, and persons standing in loco parentis to a student.

"Sibling" means each of two (2) or more children having a parent in common by blood, adoption, marriage, or foster care.

**Annual Reporting**

The District shall report annually to the Secretary of the Department of Education the:

1. Number of transfer applications received;
2. Number of applications accepted;
3. Number of applications rejected; and
4. Reason(s) for each rejection.

The data for items one through four above shall be subdivided by whether the transfer application is to a non-resident:

1. School within the District under Standard School Choice;
2. District under Standard School Choice;
3. School within the District under Opportunity School Choice; or

4. District under Opportunity School Choice.

**Standard School Choice**

The Superintendent will consider all applications for School Choice received or postmarked no later than June 1, proceeding the fall semester the applicant would begin school in the District. The Superintendent or designee shall notify the parent or guardian and the student's resident district, in writing, of the decision to accept or reject the application by July 1 of the school year in which the student seeks to enroll.

The District shall advertise over broadcast media and either in print media or on the internet to inform students and parents in the District and in adjoining districts of the range of possible openings available under the School Choice program. The public pronouncements shall state the application deadline and the requirements and procedure for participation in the program.

The District may reject a nonresident's application for admission if the District lacks capacity. The District shall reject applications that would cause it to be out of compliance with applicable laws and regulations regarding desegregation. Letters of rejection shall state the reason(s) for the rejection.

A present or future sibling of a student who continues enrollment in this District may enroll in the District by submitting a Standard School Choice application. Applications of siblings of presently enrolled choice students are subject to the provisions of this policy including the capacity standards applicable to the year in which the sibling's application is considered by the District. A sibling who enrolls in the District through Standard School Choice is eligible to remain in the District until completing his/her secondary education.

The Board of Directors reserves the right, after a hearing before the board, not to allow any person who is currently under expulsion from another district to enroll in a District school.

**Application Process**

The student's parent shall submit a School Choice application on a form approved by DESE:

- This District and the student's resident district for students transferring into the District; or
- Only this District for students transferring to another school within the District.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, the transfer application must be postmarked, emailed, or hand delivered between January 1 and June 1. The District shall date and time stamp all applications the district receives as both the resident and nonresident district as they are received in the

District's central office. Except for applications from students who are transferring under Uniformed Service Member Dependent School Choice, applications postmarked, emailed, or hand delivered on or after June 2 will not be accepted. Statutorily, preference is required to be given to siblings of students who are already enrolled in the District. Therefore, siblings whose applications fit the capacity standards approved by the Board of Directors may be approved ahead of an otherwise qualified non-sibling applicant who submitted an earlier application as identified by the application's date and time stamp.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, no earlier than January 1 of each year, the Superintendent will consider all properly submitted applications for School Choice. By no later than the fifteenth ($15^{th}$) calendar day following the receipt of an application, the Superintendent shall notify the following, in writing, of the decision to accept or reject the application:

- For transfers within the District, the student's parents; or
- For transfers into the District, the student's parents and the student's resident district.

**Accepted Applications**

Applications which fit within the District's stated capacity standards shall be provisionally accepted in writing. A student's acceptance shall be effective on the earlier of:

1. The day the District provides notification to the student of the student's acceptance; or
2. The day the State Board grants an appeal of the student's application.

The written notice of acceptance shall inform the student that the student has ten (10) school days from when the notice is received to either:

A. Enroll in the District or in the other District school; or
B. Inform the District that the student intends to enroll in the District or the other District school at the start of the next school year.

The acceptance shall be null and void if the student fails to enroll within the ten (10) school day period or fails to inform the district within the ten (10) school day period of the student's intent to transfer at the start of the next school year.

Students admitted under this policy shall be entitled to continued enrollment until they graduate or are no longer eligible for enrollment in the District's schools. Any student admitted to this district under the provisions of this policy who fails to initially enroll under the timelines and provisions provided in this policy who chooses to return to the student's resident district or assigned school, or who enrolls in a homeschool or private school, voids the transfer and must reapply for a school choice admission if desiring to return to this district in the future.

**Rejected Applications**

The District may reject an application for a transfer into the District or another District school under Standard School Choice due to a lack of capacity. The District shall use the date and time stamp the District placed on a student's application to determine when the District has reached capacity. A student's application shall be used to determine capacity regardless of whether the student intends to transfer immediately or at the start of the next school year.

The decision to accept or reject an application shall not be based on the student's previous academic achievement; athletic or other extracurricular ability; English proficiency level; or previous disciplinary proceedings other than a current expulsion.

An application may be provisionally rejected if it is for an opening that was included in the District's capacity resolution but was provisionally filed by an earlier applicant. A provisionally rejected applicant could be provisionally approved and would have to meet the acceptance requirements to be eligible to enroll in the District or another District school if:

- A provisionally approved applicant subsequently does not enroll in the District;
- A provisionally approved applicant subsequently does not enroll in the District school the District student was seeking to transfer to; or
- A District student submits a School Choice application to transfer to another district or another school within the District. The superintendent shall notify the previously provisionally rejected student within fifteen (15) days of the change in status and shall provide notice of all final rejections by July 1.

Rejection of applications shall be in writing and shall state the reason(s) for the rejection. Unless the student's application was rejected due to the application not being timely received by the student's resident district only for transfers within the District or both the resident and nonresident districts for transfers into the District or another district, a student whose application was rejected may request a hearing before the State Board of Education to reconsider the application. The request for a hearing must be submitted in writing to the State Board within ten (10) days of receiving the rejection letter from the District.

**Facilities Distress School Choice Applications**

There are a few exceptions from the previsions of the rest of this policy that govern choice transfers triggered by facilities distress. Any student attending a school district that has been identified as being in facilities distress may transfer under the provisions of this policy, but with the following four (4) differences:

- The receiving district cannot be in facilities distress;
- The transfer is only available for the duration of the time the student's resident district remains in facilities distress;

- The student is not required to meet the June 1 application deadline; and
- The student's resident district is responsible for the cost of transporting the student to this District's school.

**Opportunity School Choice**

Transfers Into or Within the District

Unless there is a lack of capacity at the District's school or the transfer conflicts with the provisions of a Federal desegregation order applicable to the District, a student may transfer from the student's assigned school to another school in the District or from the student's resident district into the District if:

- Either:
    - The student's resident district has been classified by the state board as in need of Level 5 – intensive support; or
    - The student's assigned school has a rating of "F"; or
    - The parent or the student, if the student is eighteen (18) years of age or older, believes it is in the best interest of the student to transfer to a nonresident school district or nonresident school; and
- Except for students who are transferring under Uniformed Service Member Dependents School Choice, the student's parent or the student if the student is over eighteen (18) years of age has submitted an application of the student's request to transfer by no earlier than January 1 and no later than June 1 proceeding the fall semester the applicant intends to transfer in the District for students transferring within the District or both the sending and receiving school districts for students that are transferring into the District.

Except for students who are transferring under Uniformed Service Members Dependent School Choice or seeking to transfer within the District, the Superintendent shall notify in writing the parent or the student, if the student is eighteen (18) years of age, and the student's resident district whether the Opportunity School Choice application has been accepted or rejected by no later than July 1 of the school year the student is seeking to enroll. If the student is seeking a transfer within the District, the Superintendent shall notify in writing the parent or the student, if the student is eighteen (18) years of age, whether the Opportunity School Choice application has been accepted or rejected within fifteen (15) days from receipt of the student's application. The notification shall be sent via First-Class Mail to the address on the application.

If the application is accepted, the notification letter shall state the deadline by which the student must enroll in the receiving school or the transfer will be null and void.

If the District rejects the application, the District shall state in the notification letter the specific reasons for the rejection. Unless the student's application was rejected due to the application not being timely received by the District for students transferring within the

District or both the resident and nonresident districts for students that are transferring into the District, a parent or the student, if the student is over eighteen (18) years of age, may appeal the District's decision to deny the application to the State Board of Education. The appeal must be in writing to the State Board of Education via hand delivery or certified mail, return receipt requested, no later than ten (10) calendar days, excluding weekends and legal holidays, after the notice of rejection was received from the District.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, a student's transfer under Opportunity School Choice is effective at the beginning of the next school year and the student's enrollment is irrevocable for the duration of the school year and is renewable until the student completes high school or is beyond the legal age of enrollment. This provision for continuing eligibility under Opportunity School Choice does not negate the student's right to apply for transfer to a district other than the student's assigned school or resident district under the Standard School Choice provisions of this policy.

**Uniformed Service Member Dependent School Choice**

"Uniformed service member" means an active or reserve component member of the:

- United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, or United States Coast Guard;
- National Oceanic and Atmospheric Administration Commissioned Officer Corps; or
- United States Commissioned Corps of the Public Health Service.

"Uniformed service veteran" means a former uniformed service member who has been discharged under conditions other than dishonorable.

A student shall be eligible for school choice under Uniformed Service Member Dependent School Choice if the student is a dependent of a:

- Uniformed service member in full-time active-duty status;
- Surviving spouse of a uniformed service member;
- Reserve component uniformed service member during the period six (6) months before until six (6) months after a Title 10, Title 32, or state active duty mobilization and service; or
- Uniformed service veteran who is returning to civilian status at the conclusion of the uniformed service veteran's active duty status.

A student's parent shall submit a school choice application by mail, e-mail, or in person to the student's resident district only for transfers within the District or to both the nonresident district and resident district. The application shall be accompanied by:

a. A copy of the identification card of the student's parent that qualifies the student under this section; and
b. A copy of the official orders, assignment notification, or notice of mobilization of the student's parent

The application deadline required under Standard School Choice and Opportunity School Choice shall not apply to uniformed service member dependents.

The parent shall be notified in writing whether the student's application has been accepted or rejected within fifteen (15) days of the receipt of the application by:

a) The District superintendent for students transferring within the District; or
b) The superintendent of the nonresident district for student's transferring to a nonresident district.

A student's transfer under the Uniformed Services Member Dependent School Choice is effective immediately upon the written notification of an acceptance.

A student shall be permitted only one (1) school transfer per academic year.

A student's parent/guardian shall be responsible for transportation of the student.

**STUDENTS WHO ARE IN FOSTER CARE (4.52)**

The District will afford the same services and educational opportunities to children in foster care that are afforded other children and youth. The district shall work with the Department of Human Services ("DHS"), the DESE, and individuals involved with each child in foster care to ensure that the foster child is able to maintain the foster child's continuity of educational services to the fullest extent that is practical and reasonable.

The Superintendent or the superintendent's designee shall appoint an appropriate staff person to be the local educational liaison for children in foster and youth whose responsibilities shall include ensuring the timely school enrollment of each child in foster care and assisting children in foster care who transfer between schools by expediting the transfer of relevant educational records.

The district, working with other individuals and agencies shall, unless the presiding court rules otherwise, ensure that the child in foster care remains in the foster child's current school, even if a change in the child's foster care placement results in a residency that is outside the district. In such a situation, the District will work to arrange for transportation to and from school for the child in foster care to the extent it is reasonable and practical.

Upon notification to the district's foster care liaison by a child's foster care caseworker that a child who is in foster care's school enrollment is being changed to one of the district's schools, the school receiving the child must immediately enroll the foster child. Immediate enrollment is required even if a child lacks the required clothing, academic or medical records, or proof of residency.

The grades of a child who is in foster care shall not be lowered due to absence from school that is caused by a change in the child's school enrollment, the child's attendance at dependency-neglect court proceedings, or other court-ordered counseling or treatment.

Any course work completed by the child in foster care prior to a school enrollment change shall be accepted as academic credit so long as the child has satisfactorily completed the appropriate academic placement assessment.

If a child in foster care was enrolled in a district school immediately prior to completing the foster child's graduation requirements while detained in a juvenile detention facility or while committed to the Division of Youth Services of DHS, the district shall issue the child a diploma.

**Foster Child School Choice**
If DHS approves a request from a foster parent, or the foster child if the foster child is eighteen (18) years of age, to transfer to another school in the District or into the district as being in the best interest of the foster child, the District shall allow the foster child to transfer to another school in the District or into the District if the foster parent, or the foster child if the foster child is eighteen (18) years of age, submits a request to transfer on a form approved by DESE that is postmarked by no later than June 1 of the year the student seeks to begin the fall semester at another school in the District or in the District.

By July 1 of the school year in which the student seeks to transfer under this section, the superintendent shall notify the foster parent, or the foster child if the foster child is eighteen (18) years of age, in writing whether the application has been accepted or rejected. If the application is accepted, the superintendent shall state in the notification letter a reasonable deadline for the foster child to enroll in the new school or the District and that failure to enroll by the date shall void the school choice acceptance. If the application is rejected, the superintendent shall state in the notification letter the reason for the rejection and that the foster parent, or the foster child if the foster child is eighteen (18) years of age, may submit a written appeal of the rejection to the State board within ten (10) days of receiving the notification letter.

The District shall only reject a Foster Child School Choice application if the public school or District has reached the maximum student-to-teacher ratio allowed under federal law; state law; the standards for accreditation; or other applicable State rule or Federal regulation.

A foster child whose application is rejected by the District may submit a written request within ten (10) days following the receipt of the rejection letter from the superintendent to the State Board of Education for the State Board to reconsider the transfer.

A Foster Child School Choice transfer shall remain in effect until the foster child:

- Graduates from high school; or
- Transfers to another school or school district under:
    - The Foster Child School Choice Act;
    - Opportunity Public School Choice Act;
    - The Public School Choice Act of 2015; or

- Any other law that allows a transfer.

The District shall accept credits toward graduation that were awarded by another public school district.

When a foster child transfers from the foster child's school of origin to another school in the District or into the District, the foster child or the foster parent is responsible for the foster child's transportation to and from the school the foster child transferred to. The District and the foster parent, or the foster child if the foster child is eighteen (18) years of age, may enter into a written agreement for the District to provide the transportation to and from the school the foster child transferred to.

**PLACEMENT OF MULTIPLE BIRTH SIBLINGS (4.53)**

The parent, guardian or other person having charge or custody of multiple birth siblings in grades pre-K through 6 may request that the multiple birth siblings are placed in either the same or separate classrooms. The request shall be in writing not later than the 14th calendar day prior to the first day of classes at the beginning of the academic year. The school shall honor the request unless it would require the school to add an additional class to the sibling's grade level. If one parent of multiple birth siblings requests a placement that differs from that of the other parent of the same multiple birth siblings, the school shall determine the appropriate placement of the siblings.

The school may change the classroom placement of one or more of the multiple birth siblings if:

- There have been a minimum of 30 instructional days since the start of the school year; and
- After consulting with each classroom teacher in which the siblings were placed, the school determines the parent's classroom placement request is:
    - Detrimental to the educational achievement of one or more of the siblings;
    - Disruptive to the siblings' assigned classroom learning environment; or
    - Disruptive to the school's educational or disciplinary environment.

If a parent believes the school has not followed the requirements of this policy, the parent may appeal the multiple birth siblings' classroom placement to the Superintendent. The Superintendent's decision regarding the appeal shall be final.

Legal Reference: A.C.A. § 6-18-106

**ABSENCES (4.7)**

Education is more than the grades students receive in their courses. Important as that is, students' regular attendance at school is essential to their social and cultural development and helps prepare them to accept responsibilities they will face as an adult. Interactions with other students and participation in the instruction within the classroom enrich the learning environment and promote a continuity of instruction, which results in higher

student achievement. In recognition of the need for students to regularly attend school, the district's policy governing student absences is as follows:

Students shall not be absent, as defined in this policy more than eight (8) days in a semester. When a student has four (4) absences, his/her parent, guardian, or person in loco parentis shall be notified that the student has missed half the allowable days for the semester. Prompt notification shall be by telephone or by regular mail. Any elementary student arriving after 8:45 until 11:45 would be marked as a half day morning absence. Any elementary student leaving after 11:45 and before 3:05 would be marked as a half day afternoon absence. Secondary students accrue absences per class period missed.

The District shall notify the prosecuting authority along with the parent, guardian, or person in loco parentis when a student accumulates nine (9) unexcused absences in the course of a semester. Additionally, the student shall not receive credit for the course. If the student fails to receive credit for a sufficient number of courses and at the discretion of the principal after consultation with persons having knowledge of the circumstances of the absences, the student may be denied promotion or graduation. Unexcused absences, however, shall not be a reason for expulsion or dismissal of a student.

It is the Arkansas General Assembly's intention that students having excessive absences due to illness, accident, or other unavoidable reason be given assistance in obtaining credit for their courses. Therefore, at any time prior to when a student exceeds the number of allowable absences (unless unable to do so due to unforeseen circumstances), the student, or his/her parent, guardian, or person in loco parentis may petition the school or district's administration for special arrangements to address the student's absences. If formal arrangements are granted, they shall be formalized into a **written agreement** which will include the conditions of the agreement and the consequences for failing to fulfill the agreement's requirements. The agreement shall be signed by the student, the student's parent, guardian, or person in loco parentis, and the school or district administrator or designee. Unless a student's excessive absence is due to an unforeseen circumstance, the District may accept a doctor's note for a student's excessive absence. Exception may also be made to satisfy Individual Education Plans or 504 Plans.

Days missed due to in-school or out-of-school suspension shall not count toward the allowable number of days absent.

**Excused Absences**
Absences that are not charged against the allowable number of absences are those where the student was on official school business or when the absence was due to one of the following reasons and the student brings a written statement upon his/her return to school from the parent, guardian, person in loco parentis, or appropriate government agency stating such reason:

1. To participate in an FFA, FHA, or 4-H sanctioned activity;
2. To participate in the election poll workers program for high school students;

3. To serve as a page for a member of the General Assembly;
4. To visit his/her parent or legal guardian who is a member of the military and has been called to active duty, is on leave from active duty, or has returned from deployment to a combat zone or combat support posting;
5. In order to complete Arkansas National Guard Basic Training between grades eleven (11) and twelve (12).
6. For purposes pre-approved by the school administration such as school-sponsored activities, visiting prospective colleges, to obey a subpoena, or to attend an appointment with a government agency;
7. Due to a student having been sent home from school by a school nurse due to illness;
8. Doctor's visit with doctor's note.
9. Absences due to conditions related to pregnancy or parenting, including without limitation;
    - Labor, delivery, and recovery;
    - Prenatal and postnatal medical appointments and other medically necessary pregnancy-related absences;
    - The illness or medical appointment of a child belonging to a parent who is enrolled at a District school;
    - A legal appointment related to pregnancy, including without limitation:
        - Adoption;
        - Custody; and
        - Visitation
    - A reasonable amount of time to accommodate a lactating student's need to express breast milk or to breastfeed the student's child on the District's campus; and
    - At least ten (10) school days of absences for both a parenting mother and a parenting father after the birth of a child.
10. Absences for a student who is the child of a fallen service member or fallen first responder;
    - Due to a mental health concern; or
    - To attend an event from a sponsoring organization that provides support to families of fallen service members or first responders or provides support for traumatic loss, grief, or resiliency.
11. Upon the written consent of a student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student, the District shall grant an excused absence for the following purposes:
    - Social or public policy advocacy; or
    - Attempts to influence legislation or other governmental policy-making at the local, state, or federal level.
12. Up to one (1) time during each scheduled election, a student shall not be considered absent from school for the time the student accompanies the student's parent when the parent is exercising the parent's right to vote in a scheduled election.

In order for the absence to be considered excused; the student must:

a) Provide a written statement from a treating physician if the student's absence is due to an illness or medical issue;
b) Bring a written statement to the principal or designee upon the student's return to school from the student's parent/legal guardian stating the reason for the student's absence. Parent notes will not be accepted for illnesses or medical issues;
c) Provide documentation as proof of a student's participation in an activity or program scheduled and approved by the 4-H program that is provided by a 4-H county extension agent, 4-H educator, or other appropriate entity associated with the 4-H activity or program; or
d) The student's parent or legal guardian, person having lawful control of the student, or person standing in loco parentis to the student provides written documentation that the student's absence is to attend an event from a sponsoring organization that;
    - Provides support to families of fallen service members or fallen first responders or provides support for traumatic loss, grief, or resiliency; and
    - May be verified as an organization that provides support to the military and first responder community by reviewing the Resources Page for Military Family Engagement on the Department of Education website.

A student shall not be eligible to receive an excused absence for #10 above if:

- The student is not in good academic standing;
- The student does not have a prior record of good attendance; or
- The absence occurs during a date on which standardized testing is administered.

The District shall annually provide a report by June 30 to the Division of Elementary and Secondary Education that contains the following:

- The number of absences required until number 11;
- The number of absences granted until umber 11; and
- The states purposes of the absence.

**Unexcused Absences**

Any absence from school for any reason other than those listed in items 1 – 12 above in the Excused Absence section shall be an unexcused absence.

The district shall notify the Department of Finance and Administration whenever a student fourteen (14) years of age or older is no longer in school. The Department of Finance and Administration is required to suspend the former student's operator's license unless he/she meets certain requirements specified in the code.

## MAKE UP WORK (4.8)

Students who miss school due to an absence shall be allowed to make up the work they missed during their absence under the following rules.

1. Students are responsible for asking the teachers of the classes they missed what assignments they need to make up or access them via Google Classroom while they are away.
2. Teachers are responsible for providing the missed assignments when asked by a returning student either in person or via-Google Classroom.
3. Students are required to ask for their assignments on their first day back at school or their first class day after their return; elementary and middle school teachers will take more responsibility and have more flexibility in helping student make up work.
4. Make-up tests are to be rescheduled at the discretion of the teacher, but must be aligned with the schedule of the missed work to be made up.
5. Students shall have one class day to make up their work for each class day they are absent. This includes absences that occur due to COVID-19 positive tests or for being identified as a probable close contact.
6. In grades 7-12 make-up work which is not turned in within the make-up schedule for that assignment may receive a zero or a reduced score.
7. Students are responsible for turning in their make-up work without the teacher having to ask for it.
8. Students who are absent on the day their make-up work is due must turn in their work the day they return to school whether or not the class for which the work is due meets the day of their return.
9. As required/permitted by the student's Individual Education Program or 504 Plan.

Work may not be made up for credit for absences in excess of the number of allowable absences in a semester **unless** the absences are part of a signed agreement as permitted by policy (Absences 4:7)

Work for students serving an out-of-school suspension or expulsion shall be in accordance with the District's programs, measures, or alternative means and methods to continue student engagement and access to education during the student's period of suspension or expulsion.

In addition to the make-up work process above, at the conclusion of a pregnancy-related or parenting-related period of absence, a student may choose from various options to make up missed work, including without limitation:

a. Retaking a semester at the District school where the student is enrolled;
b. Participating in an online course credit recovery program;
c. Being granted six (6) weeks to continue at the same pace and finish the semester at a later date, provided that the student may:
    - Complete the student's coursework within the current school year; or
    - Attend previously scheduled summer school classes made available by the District Where the student is enrolled; and
d. Receiving home-based instruction services.

**TARDINESS AND EARLY CHECKOUT (4.9)**

Promptness is an important character trait that district staff are encouraged to model and help develop in our schools' students. At the same time, promptness is the responsibility of each student. Students who are late to class show a disregard for both the teacher and their classmates which compromises potential student achievement. The secondary schools will be consistent on discipline and tardiness as well as making sure that the information is sent to parents and students at the beginning of the school year.

Elementary and Middle School students must be escorted to the office by the parent/guardian for sign-in.

High school and Cabot Panther Academy students are not allowed to check out via note or phone call between the hours of 11:00 a.m. and 12:45 p.m. If a student needs to check out during this time, a parent/guardian must be physically present to check the student out. Administration reserves the right to approve check outs during extenuating circumstances.

## SECTION 3 – Student Behavior Policies

**STUDENT DISCIPLINE (4.17)**

The Cabot Board of Education has a responsibility to protect the health, safety, and welfare of the district's students and employees. To help maintain a safe environment conducive to high student achievement, the Board establishes policies necessary to regulate student behavior and promote an orderly school environment that is respectful of the rights of others and ensures the uniform enforcement of student discipline. Students are responsible for their conduct that occurs:

- At any time on the school grounds
- Off school grounds at a school-sponsored function, activity, or event; and
- Going to and from school or a school activity.

The district's administrators may also take disciplinary action against a student for off-campus conduct occurring at any time that would have a detrimental impact on school discipline, the educational environment, or the welfare of the students and/or staff. A student who has committed a criminal act while off campus and whose presence on campus could cause a substantial disruption to school or endanger the welfare of other students or staff is subject to disciplinary action up to and including expulsion. Such acts could include but are not limited to a felony or an act that would be considered a felony if committed by an adult, an assault or battery, drug law violations, or sexual misconduct of a serious nature. Any disciplinary action pursued by the district shall be in accordance with the student's appropriate due process rights.

The District shall incorporate the District's multi-tiered behavioral intervention procedures in accordance with Policy 9.2 in the application of student discipline.
The school district's administration and a handbook review committee will review the student policies annually. Parents, teachers or students who would like to recommend

student policy revisions should submit their request in writing to the Assistant Superintendent by April 1 of each school year to be considered for the following school year. The School Board shall approve any changes to student discipline policies.

The district's student discipline policies shall be posted on the district website. Printed copies shall be distributed to each parent/student who requests one during the first week of school each year and to new students upon their enrollment. Each student and his/her parent or legal guardian shall sign and return to the school an acknowledgement form documenting that they have received the policies.

The district shall develop and provide programs, measures, or alternative means and methods for continued student engagement and educational access during periods of suspension or expulsion

The superintendent is authorized to modify the penalties set forth in the district's student discipline policies on a case-by-case basis.

It is required by law that the principal or the person in charge report to the police any incidents the person has personal knowledge of or has received information leading to a reasonable belief that a person has committed or threatened to commit an act of violence or any crime involving a deadly weapon on school property or while under school supervision. If the person making the report is not the Superintendent, that person shall also inform the Superintendent of the incident. Additionally, the principal shall inform any school employee or other person who initially reported the incident that a report has been made to the appropriate law enforcement agency. The Superintendent or designee shall inform the Board of Directors of any such report made to law enforcement.

The superintendent shall make a report annually to the Cabot School Board on student discipline data, which shall include, without limitation: the number of incidents of bullying reported and the actions taken regarding the reported incidents of bullying.

## CONSEQUENCES

The Cabot School District uses a variety of consequences to address inappropriate student behavior. The range of consequences is as follows:

**Minimum – Conference with the Student**
**Maximum – Expulsion from School**

## SUSPENSION FROM SCHOOL (4.32)

Students cannot benefit from the educational opportunities the school environment affords when they are not in school. Administrators, therefore, shall strive to find ways to keep students in school as participants in the educational process. There are instances, however, when the needs of the other students or the interests of the orderly learning environment require the removal of a student from school. The Board authorizes school principals or their designees to suspend students for disciplinary reasons for a period of time not to

exceed ten (10) school days, including the day upon which the suspension is imposed. The suspension may be in school or out of school. Students are responsible for their conduct that occurs: at any time on the school grounds; off school grounds at a school-sponsored function, activity, or event; going to and from school or a school activity. A student may be suspended for behavior including, but not limited to that which:

1. Is in violation of school policies, rules, or regulations;
2. Substantially interferes with the safe and orderly educational environment;
3. School administrators believe will result in the substantial interference with the safe and orderly educational environment; and/or
4. Is insubordinate, incorrigible, violent, or involves moral turpitude.

The school principal or designee shall proceed as follows in deciding whether to suspend a student:

1. The student shall be given written notice or advised orally of the charges against him/her;
2. If the student denies the charges, he/she shall be given an explanation of the evidence against him/her and be allowed to present his/her version of the facts;
3. If the principal finds the student guilty of the misconduct, he/she may be suspended.

When possible, notice of the suspension, its duration, and any stipulations for the student's re-admittance to class will be given to the parent(s),legal guardian(s), person(s) with lawful control of the student, person(s) standing in loco parentis prior to the suspension. Such notice shall be handed to the parent(s),legal guardian(s), person(s) having lawful control of the student, person(s) standing in loco parentis or mailed to the last address reflected in the records of the school district.
Generally, notice and hearing should precede the student's removal from school, but if prior notice and hearing are not feasible, as where the student's presence endangers persons or property or threatens disruption of the academic process, thus justifying immediate removal from school, the necessary notice and hearing should follow as soon as possible.

It is the responsibility of a student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to provide current contact information to the district which the school shall use to immediately notify the parent, legal guardian, person having lawful control of a student, or person standing in loco parentis upon the suspension of a student. The notification shall be by one of the following means, listed in order of priority:

- A primary call number (contact may be by voice, voice mail or text message);
- An email address;
- A first class letter to the last known mailing address.

The district shall keep a log of contacts attempted and made to the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis`.

During the period of suspension, students shall not be permitted on any school campus except to attend a student/parent/administrator conference arranged in advance with the principal.

Students assigned to in-school suspension may participate in school sponsored activities as approved by the principal.

**APPEALS TO SUSPENSION:**
Suspensions initiated by the principal or his/her designee may be appealed to the Superintendent or his/her designee, but not to the Board. Suspension appeals to the Superintendent/designee must be submitted in writing to the Principal. Information included in the appeal must list the reason(s) for the appeal, along with the actions taken by the appellant to remedy the situation prior to the appeal. Each of the organizational levels within the district must be addressed in the appeal.

Suspension initiated by the Superintendent may be appealed to the Board. Suspension appeals to the school board must be submitted in writing to the Superintendent. Information included in the appeal must list the reason(s) for the appeal, along with the actions taken by the appellant to remedy the situation prior to the appeal. Each of the organizational levels within the district must be addressed in the appeal.
Out-of-school suspension (OSS)shall not be used to discipline a student in kindergarten through fifth ($5^{th}$) grade unless the student's behavior:

- Poses a physical risk to himself or herself or to others;
- Causes a serious disruption that cannot be addressed through other means; or
- Is the act of bringing a firearm on the school campus.

**EXPULSION (4.31)**
The Board of Education may expel a student for a period longer than ten (10) school days for violation of the district's written discipline policies. The Superintendent may make a recommendation of expulsion to the Board of Education for student conduct

- Deemed to be of such gravity that suspension would be inappropriate;
- Where the student's continued attendance at school would disrupt the orderly learning environment; or
- Would pose an unreasonable danger to the welfare of other students or staff.

Expulsion shall not be used to discipline a student in kindergarten through fifth ($5^{th}$) grade unless the student's behavior:

- Poses a physical risk to himself or herself or to others;
- Causes a serious disruption that cannot be addressed through other means; or
- Is the act of bringing a firearm on the school campus.

The Superintendent or his/her designee shall give written notice to the parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis (mailed to the address reflected on the district's records) that he/she will recommend to the

Board of Education that the student be expelled for the specified length of time and state the reasons for the recommendation to expel. The notice shall give the date, hour, and place where the Board of Education will consider and dispose of the recommendation.

The hearing shall be conducted within ten (10) school days following the date of the notice, except that representatives of the Board and student may agree in writing to a date not conforming to this limitation.

The President of the Board, Board attorney, or other designated Board member shall preside at the hearing. The student may choose to be represented by legal counsel. Both the District administration and School Board also may be represented by legal counsel. The hearing shall be conducted in open session of the Board unless the parent, legal guardian, person having lawful control of the student, person standing in loco parentis, or student age 18 or older, requests that the hearing be conducted in executive session. After all the facts have been presented, the school board members may enter into executive session to discuss the case. Any action taken by the Board shall be in open session.

During the hearing, the Superintendent, or designee, or representative will present evidence, including the calling of witnesses that gave rise to the recommendation of expulsion. The student, or his/her representative, may then present evidence including statements from persons with personal knowledge of the events or circumstances relevant to the charges against the student. Formal cross-examination will not be permitted. However, any member of the Board, the Superintendent, or designee, the student, or his/her representative may question anyone making a statement and/or the student. The presiding officer shall decide questions concerning the appropriateness or relevance of any questions asked during the hearing.

Except as permitted by the weapons policy, the Superintendent shall recommend the expulsion of any student for a period of not less than one (1) year for possession of any firearm prohibited on school campus by law. The Superintendent shall, however, have the discretion to modify the expulsion recommendation for a student on a case-by-case basis. Parents, legal guardians, persons having lawful control of a student, or persons standing in loco parentis of a student enrolling from another school after the expiration of an expulsion period for a weapons policy violation shall be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a weapon on school property. The parents, legal guardians, persons having lawful control of a student, or persons standing in loco parentis shall sign a statement acknowledging that they have read and understand said laws prior to the student being enrolled in school.

The Superintendent and the Board of Education shall complete the expulsion process of any student that was initiated because the student possessed a firearm or other prohibited weapon on school property regardless of the enrollment status of the student.

The District shall establish programs, measures, or alternative means and methods to continue student engagement and access to education during a student's period of expulsion.

If all graduation requirements are met, expelled students may apply to walk at graduation in the Superintendent's office.

## DISCIPLINE FOR STUDENTS WITH DISABILITIES

Students with disabilities who engage in misbehavior are subject to normal school disciplinary rules and procedures so long as such treatment does not abridge the right to free and appropriate public education.

The individualized education program (IEP) team for a student with disabilities should consider whether particular discipline procedures should be adopted for a student and include those procedures in the IEP.

The building principal shall deal with any grievance relating to students with disabilities. All actions and procedures shall be in accordance with the Individuals with Disabilities Education Act (IDEA), as revised in 1997 and Act 102 of 1973.

## DISRUPTION OF SCHOOL (4:20)

### Definitions

"Appropriate interim learning environment" means an appropriate learning environment that is used for a period of time not to exceed ten (10) days.

"Appropriate learning environment" means a setting within the District that provides a similar structure to the following, without limitation:

1. A classroom; or
2. In-school suspension.

"Violent or abusive behavior" means, without limitation:

a) Using threatening language;
b) Throwing an item that risks or causes:
   - Harm to another individual;
   - Injury to another individual; or
   - Damage to property;
c) Physically abusing a teacher or another student; or
d) Any other similar action that presents a physical danger or a threat of physical danger to a teacher or another student.

No student shall by the use of violence, force, noise, coercion, threat, intimidation, fear, passive resistance, or any other conduct, intentionally cause the disruption of any lawful mission, process, or function of the school, or engage in any such conduct for the purpose of causing disruption or obstruction of any lawful mission, process, or function. Nor shall any student encourage any other student to engage in such activities.

Disorderly activities by any student or group of students that adversely affect the school's orderly educational environment shall not be tolerated at any time on school grounds.

A teacher may, but is not required to, remove a student from class:

- Who has been documented by the teacher as repeatedly interfering with the teacher's ability to teach the students in the class or with the ability of the student's classmates to learn; or
- Whose behavior is so unruly, disruptive, violent, or abusive that it seriously interferes with the teacher's ability to teach the students, the class, or with the ability of the student's classmates to learn.

A student who is removed from class shall:

- Be sent to the office of the principal or the principal's designee;
- Be escorted from the classroom by the school administration if the student refuses to leave the classroom voluntarily;
- Not be returned to the teacher's class until a conference is held; and
- Be placed in another appropriate classroom learning environment until the conference is completed.

The conference shall be held for the purpose of:

1. Determining the causes of the problem that led to the student's removal and possible solutions;
2. Serving as a manifestation determination review if the student removed from the class is a student with a disability;
3. Determining if a behavioral threat assessment is necessary for the student who was removed from the class due to violent behavior.

The following individuals shall be present at the conference:

a) The principal or the principal's designee;
b) The teacher;
c) The school counselor;
d) A 504/special education representative (if applicable);
e) The parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis; and
f) The student, if appropriate.

The failure of the parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis to attend the conference shall not prevent the conference from being held nor prevent any action from being taken as a result of that conference.

Following the conclusion of the conference, the principal or the principal's designee may take any of the following actions against a student who was removed from class:

- Place the student into another appropriate learning environment or into in-school suspension;

- Except for a student who was removed for violent or abusive behavior, return the student to the class; or
- Take other appropriate action consistent with the District's discipline policy, state law, and federal law.

A student who is removed from class three (3) times during the same school year shall be placed in another appropriate learning environment for the remainder of the school year.

The District shall follow all requirements under the IDEA and 504 for students with a disability, including those surrounding a change in placement.

**PROHIBITED CONDUCT (4:18)**

Students and staff require a safe and orderly learning environment that is conducive to high student achievement. Certain student behaviors are unacceptable in such an environment and are hereby prohibited by the Board. Prohibited behaviors include, but shall not be limited to, the following:

1. Disrespect for school employees and failing to comply with their reasonable directions or otherwise demonstrating insubordination;
2. Disruptive behavior that interferes with orderly school operations;
3. Willfully and intentionally assaulting or threatening to assault or physically abusing any student or school employee;
4. Possession of any weapon that can reasonably be considered capable of causing bodily harm to another individual;
5. Possession or use of tobacco/nicotine in any form, vapes or vape accessories, caffeine inhalers, or lighters on any property owned or leased by any public school;
6. Willfully or intentionally trespassing on school property, damaging, destroying, or stealing school property;
7. Use of cell phones or similar electronic communication devices, camera, MP 3 players, IPods, headphones and other portable music devices on school campus during normal school hours except as allowed by policy;
8. Sharing, diverting, transferring, applying to others (such as needles or lancets), or in any way misusing medication or any medical supplies in their possession;
9. Inappropriate public displays of affection;
10. Cheating, plagiarism, copying, or claiming another person's work to be his/her own;
11. Gambling;
12. Inappropriate student dress;
13. Use of vulgar, profane, or obscene language or gestures;
14. Truancy (leaving school without permission);
15. Excessive tardiness;
16. Engaging in behavior designed to taunt, degrade, or ridicule another person on the basis of race, ethnicity, national origin, sex, or disability;
17. Possess, view, distribute or electronically transmit sexually explicit or vulgar images or representations, whether electronically, on a data storage device, or in hard copy form;
18. Hazing, or aiding in the hazing of another student;

19. Gangs or gang-related activities, including belonging to secret societies of any kind, are forbidden on school property. Gang insignias, clothing, "throwing signs" or other gestures associated with gangs are prohibited;
20. Sexual harassment;
21. Bullying (see policy 4.43 on page 60);
22. Bringing skateboards to school; and
23. Fighting and/or acts of violence.
24. Wearing or displaying emblems, insignia, badges or other symbols if the message is intended to mock, ridicule, or otherwise demean or provoke others because of race, religion, national origin, or other individual view.
**25.** Selling and/or buying of goods on a school campus if it is not part of a pre-approved school fundraiser.
**26.** Antisemitism.

The Board directs each school in the district to develop implementation regulations for prohibited student conduct consistent with applicable Board policy, State and Federal laws, and judicial decisions.

**Violation Consequences:** **Minimum – Student Conference**
**Maximum - Expulsion**

**ANTISEMITISM PROHIBITED (4.65)**

"Antisemitism" means a certain perception of Jews, which may be expressed as hatred toward Jews. Rhetorical and physical manifestations of antisemitism are directed toward Jewish or non-Jewish individuals and/or their property, toward Jewish community institutions and religious facilities. Antisemitism may be expressed in speech; writing; visual forms; and actions, and employs sinister stereotypes and negative character traits.

The following are examples of actions, when taken as a whole, that may constitute antisemitism:

- The targeting of the state of Israel, conceived as a Jewish collectivity;
- Charging Jews with conspiring to harm humanity;
- Calling for, aiding, or justifying the killing or harming of Jews in the name of a radical ideology or an extremist view of religion;
- Making mendacious, dehumanizing, demonizing, or stereotypical allegations about Jews as such or the power of Jews as collective — such as, especially but not exclusively, the myth about a world Jewish conspiracy or of Jews controlling the media, economy, government or other societal institutions;
- Accusing Jews as a people of being responsible for real or imagined wrongdoing committed by a single Jewish person or group, or even for acts committed by non-Jews;
- Denying the fact, scope, mechanisms (e.g. gas chambers) or intentionality of the genocide of the Jewish people at the hands of National Socialist Germany and its supporters and accomplices during World War II (the Holocaust);

- Accusing the Jews as a people, or Israel as a state, of inventing or exaggerating the Holocaust;
- Accusing Jewish citizens of being more loyal to Israel, or to the alleged priorities of Jews worldwide, than to the interests of their own nations;
- Denying the Jewish people their right to self-determination, e.g., by claiming that the existence of a State of Israel is a racist endeavor;
- Applying double standards by requiring of Israel a behavior not expected or demanded of any other democratic nation;
- Using the symbols and images associated with classic antisemitism (e.g., claims of Jews killing Jesus or blood libel) to characterize Israel or Israelis;
- Drawing comparisons of contemporary Israeli policy to that of the Nazis; or
- Holding Jews collectively responsible for actions of the state of Israel.

Antisemitism does not include criticism of Israel similar to the criticism leveled against any other country.

Discrimination and harassment based on antisemitism is expressly prohibited.

The District shall appoint an individual to act as the District's Title VI Coordinator, who shall be responsible for investigating any complaints of discrimination or harassment based on antisemitism. The District shall:

1. Include contact information for the Title VI Coordinator in information that is provided to staff, students, and parents; and
2. Provide the following on the District website that may be accessed through a link titled "Antisemitism/Title VI":
    a) The District's definition of antisemitism;
    b) A statement that antisemitism is prohibited in the District's educational programs and activities;
    c) A statement that complaints of discrimination or harassment based on antisemitism may be filed with the Title VI Coordinator;
    d) Contact information for the District's Title VI Coordinator; and
    e) Information on how to file a complaint of antisemitism with the Title VI Coordinator at the Arkansas Department of Education.

A student or a student's parent may contact the District Title VI Coordinator directly with any complaints of discrimination or harassment based on antisemitism. District employees are responsible for timely notifying the District Title VI Coordinator of any complaints they receive or incidents they witness of discrimination or harassment based on antisemitism.

A student who is found to have violated the provisions of this policy may be subject to discipline, up to and including expulsion.

The District Title VI Coordinator shall report an incident or complaint of discrimination or harassment under this policy to the Arkansas Department of Education Title VI Coordinator.

In addition to the filing of a complaint under this policy, complaints of discrimination or harassment based on antisemitism may be submitted directly to the Title VI Coordinator at the Arkansas Department of Education.

Nothing in this policy shall be construed to diminish or infringe upon any right protected under the First Amendment to the United States Constitution or Arkansas Constitution, Article 2, §§ 4, 6, and 24.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**OFF-CAMPUS EVENTS**

Elementary and middle school students should not be dropped off to attend school related activities, such as ballgames, without adult supervision.

Students at school sponsored events, both on and off campus, shall be governed by school regulations and are subject to the authority of school personnel. Any student who misbehaves at a school related activity, including failure to identify himself/herself or failure to follow reasonable instruction of school personnel, is subject to losing the privilege of attending all school-related activities for the remainder of the year, as well as being subject to all applicable discipline policies.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**POSSESSION AND USE OF PERSONAL ELECTRONIC DEVICES (4.47)**

**Definitions**

"Emergency" means a serious, unexpected, and dangerous situation that requires immediate action, including without limitation:

- An active fire;
- An active tornado or earthquake;
- An active shooter;
- An evacuation of school grounds; or
- A medical emergency

"Personal electronic device" means without limitation a:

a. Cellular telephone;
b. Paging device;
c. Beeper;
d. Mobile telephone that offers advanced computing and internet accessibility;
e. Digital media player;
f. Portable game console;

g. Tablet, notebook, or laptop computer;
h. Digital camera;
i. Digital video or audio recorder;
j. Smart watch; and
k. Device that can connect and transmit data through Bluetooth technology.

"School day" means from the time students are required to be at school until the time students are dismissed from school.

**Possession and Use of Personal Electronic Device**

Except as permitted under this policy, a student shall not be in possession of or use a personal electronic device during the school day. A student may possess and/or use a personal electronic device during the school day if:

- The personal electronic device is required by the student's individual education plan (IEP), 504 Plan, or Individual Health Plan for health reasons;
- The possession or use of the personal electronic device is during an emergency as defined by this policy;
- The personal electronic device is issued by the District for the student's use during the school day;
- The student is enrolled in an endorsed concurrent enrollment course at an institution of higher education, and the use of the personal electronic device is necessary in order to utilize **two-factor authentication** to access course work and resources for the endorsed concurrent enrollment course. The use of the personal electronic device shall be limited to the time necessary to complete the two-factor authentication process; or
- The possession or use of the personal electronic device is during a special event during the school day and at time and in locations designated by the Superintendent or his/her designee.

Students shall be deemed to not be in possession of a personal electronic device if it is stored away and not accessed during the school day except as permitted above.

**Misuse of Personal Electronic Devices**

Even if a student is allowed to possess or use a personal electronic device under this policy, the misuse of a personal electronic device is prohibited. Misuse of personal electronic devices includes, but is not limited to:

1. Using personal electronic devices issued by the District during class time in any manner other than specifically permitted by the classroom instructor;
2. Permitting any audible sound to come from the personal electronic device when not being used for reason #1 above;
3. Engaging in academic dishonesty, including cheating, intentionally plagiarizing, wrongfully giving or receiving help during an academic examination, or wrongfully obtaining test copies or scores;

4. Using the personal electronic device to record audio or video or to take photographs in areas where a general expectation of personal privacy exists, including but not limited to locker rooms and bathrooms;
5. Creating, sending, sharing, viewing, receiving, or possessing an indecent visual depiction of oneself or another person regardless of whether the image is real or created through the use of artificial intelligence;
6. Using a personal electronic device issued by the District in a manner that violates the Electronic Device and Internet Use Agreement regardless of whether the violation occurred on or off campus; or
7. Using a personal electronic device at an event during the school day that was not designated as a special school event or in a manner or location that was not authorized as part of the special school event.

**Discipline**

For a violation of this policy, a student may be subject to the following discipline:

- 1st Offense: Warning given and the electronic device will be taken and returned at the end of the school day;
- 2nd Offense: Student will be assigned detention (elementary schools), in-school suspension (middle schools) or Saturday school (junior highs, freshman academy, and high school). Electronic devices will be turned into the office and returned at the end of the day;
- 3rd Offense: Electronic devices must be turned into the office every morning and picked up every afternoon for a number of days to be set at the building administrator's discretion.

To protect the integrity of the administration of the assessments under the Arkansas Educational Support and Accountability Act, a student who is found to be in possession of or to use a personal electronic device during the administration of a statewide assessment that is not required by the student's IEP, 504 Plan, or issued by the District may have the discipline the student is subject to increase by an additional level.

A student may have a personal electronic device confiscated if:

- The student is found to possess or use a personal electronic device when the use or possession is not authorized by this policy and the personal electronic device was not issued by the District; or
- The student misuses a personal electronic device as defined by this policy.

Confiscated personal electronic devices may be picked up at the school's administration office by the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis. Students have no right of privacy as to the content contained on any personal electronic devices that have been confiscated. A search of a confiscated device shall meet the reasonable individualized suspicion requirements of Policy 4.32—SEARCH, SEIZURE, AND INTERROGATIONS.

A student and the student's parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis expressly assume any risk associated with a

student's possession or use of a student's personal electronic device that is not issued by the District. The District shall not be liable for a personal electronic device that is confiscated if the personal electronic device is lost, stolen, or damaged.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**BULLYING (4.43)**

Respect for the dignity of others is a cornerstone of civil society. Bullying creates an atmosphere of fear and intimidation, robs a person of their dignity, detracts from the safe environment necessary to promote student learning, and will not be tolerated by the faculty, staff, administration and board of the Cabot School District. Students who bully another person shall be held accountable for their actions whether they occur on the school grounds, off school grounds at a school sponsored or approved function, activity or event; or going to or from school or a school activity in a school vehicle or school bus; or at designated school bus stops.

**Definitions:**

"Attribute" means an actual or perceived personal characteristic including, without limitation, race, color, religion, ancestry, national origin, socioeconomic status, academic status, disability, gender, gender identity, physical appearance, health condition, or sexual orientation;

**Bullying** means intentional harassment, intimidation, humiliation, ridicule, defamation, or threat or incitement of violence by a student against another student or public school employee by a written, verbal, electronic, or physical act that:

1. May address an attribute of the other student, public school employee, or person with whom the other student or public school employee is associated;
2. Involves an actual or reasonably perceived power imbalance;
3. Is repeated or has a high likelihood of repetition; and
4. Causes or creates actual or reasonably foreseeable;

- Physical harm to a public school employee or student or damage to the public school employee's or student's property;
- Substantial interference with a student's education or with a public school employee's role in education;
- A hostile educational environment for one (1) or more students or public school employees due to the severity, persistence, or pervasiveness of the act; or
- Substantial disruption of the orderly operation of the school or educational environment.

Examples of "Bullying" might include but are not limited to a pattern of behavior involving one or more of the following:

1. Cyberbullying;

2. Sarcastic comments or "compliments" about another student's personal appearance or actual or perceived attributes;
3. Pointed comments or questions intended to embarrass or humiliate;
4. Mocking, taunting or belittling;
5. Non-verbal threats and/or intimidation such as "fronting" or "chesting" a person;
6. Demeaning humor relating to a student's actual or perceived attributes;
7. Blackmail, extortion, demands for protection money or other involuntary donations or loans;
8. Blocking access to school property or facilities;
9. Deliberate physical contact or injury to person or property;
10. Stealing or hiding books or belongings;
11. Threats of harm to student(s), possessions, or others;
12. Sexual harassment is also a form of bullying (see Sexual Harassment Policy); and or
13. Teasing or name-calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether the student self-identifies as homosexual or transgender.

**"Cyberbullying"** means any form of communication by electronic act that is sent with the purpose to:

- Harass, intimidate, humiliate, ridicule, defame, or threaten a student, school employee, or person with whom the other student or school employee is associated; or
- Incite violence towards a student, school employee, or person with whom the other student or school employee is associated.

Cyberbullying of school employees includes, but is not limited to:

a. Building a fake profile or website of the employee;
b. Posting or encouraging others to post on the Internet private, personal, or sexual information pertaining to a school employee;
c. Posting an original or edited image of the school employee on the Internet;
d. Accessing, altering or erasing any computer network, computer data program, or computer software, including breaking into a password-protected account or stealing or otherwise accessing passwords of a school employee;
e. Making repeated, continuing, ,or sustained electronic communications, including electronic mail or transmission, to a school employee;
f. Making, or causing to be made, and disseminating an unauthorized copy of data pertaining to a school employee in any form, including without limitation the printed or electronic form of computer data, computer programs, or computer software residing in, communicated by, or produced by a computer or computer network;
g. Signing up a school employee for a pornographic Internet site; or

h. Without authorization of the school employee, signing up a school employee for electronic mailing lists or to receive junk electronic messages and instant messages.

Cyberbullying is prohibited whether or not the cyberbullying originated on school property or with school equipment, if the cyberbullying results in the substantial disruption of the orderly operation of the school or educational environment or is directed specifically at students or school personnel and maliciously intended for the purpose of disrupting school and has a high likelihood of succeeding in that purpose.

**Harassment** means a pattern of unwelcome verbal or physical conduct relating to another person's constitutionally or statutorily protected status that causes, or reasonably should be expected to cause, substantial interference with the other's performance in the school environment.

**Substantial disruption** means without limitation that any one or more of the following occur as a result of the bullying:

- Necessary cessation of instruction or educational activities;
- Inability of students or educational staff to focus on learning or function as an educational unit because of a hostile environment;
- Severe or repetitive disciplinary measures are needed in the classroom or during educational activities; or
- Exhibition of other behaviors by students or educational staff that substantially interfere with the learning environment.

Students are encouraged to report behavior they consider to be bullying, including a single action which if allowed to continue would constitute bullying, to their teacher or principal. The report may be made anonymously. Teachers and other school employees who have witnessed, or are reliably informed that, a student has been a victim of behavior they consider to be bullying, including a single action, which if allowed to continue would constitute bullying, shall report the incident(s) to the principal. Parents or legal guardians may submit written reports of incidents they feel constitute bullying, or if allowed to continue would constitute bullying, to the principal.

The person or persons reporting behavior they consider to be bullying shall not be subject to retaliation or reprisal in any form.

A building principal who receives a credible report or complaint of bullying shall:

1) As soon as reasonably practicable, but by no later than the end of the school day following the receipt of the credible report of bullying:
    1) Report to a parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student that their student is the victim in a credible report of bullying; and
    2) Prepare a written report of the alleged incident of bullying;

2) Promptly investigate the credible report or complaint of bullying, which shall be completed by no later than the fifth ($5^{th}$ ) school day following the completion of the written report.
3) Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student who was the alleged victim in a credible report of bullying, whether the investigation found the credible report or complaint of bullying to be true and offer the availability of counseling and other intervention services.
4) Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of the student, or person acting in loco parentis of the student who is alleged to have been the perpetrator of the incident of bullying;
    1) That a credible report or complaint of bullying against their student exists;
    2) Whether the investigation found the credible report or complaint of bullying to be true;
    3) Whether action was taken against their student upon the conclusion of the investigation of the alleged incident of bullying, and ;
    4) Information regarding the reporting of another alleged incident of bullying, including potential consequences of continued incidents of bullying;
5) Make a written record of the investigation, which shall include:
    1) A detailed description of the alleged incident of bullying, including without limitation a detailed summary of the statements from all material witnesses to the alleged incident of bullying;
    2) Any action taken as a result of the investigation; and
6) Discuss, as appropriate, the availability of counseling and other intervention services with students involved in the incident of bullying.

Students found to be in violation of this policy shall be subject to disciplinary action up to and including expulsion. The student's previous disciplinary offenses will be considered in determining the appropriate disciplinary action; consideration may be given to other violations of the student handbook, which may have simultaneously occurred.

Notice of what constitutes bullying, the district's prohibition against bullying, and the consequences for students who bully shall be posted in areas throughout the district. Parents, students, school volunteers, and employees shall be given copies of the notice upon request.

The superintendent shall make a report annually to the Board of Directors on student discipline data, which shall include, without limitation, the number of incidents of bullying reported and the actions taken regarding the reported incidents of bullying.

To prevent multiple, simultaneous investigations into the same alleged conduct, if the facts that support an alleged incident of bullying may also constitute a violation of another District policy; state or federal law; state rule; or federal regulation, then the District shall

investigate and dispose of the alleged incident of bullying in accordance with the other applicable District policy; state or federal law; state rule; or federal regulation in lieu of the requirements of this policy.

Copies of this policy shall be available upon request.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

## ASSAULT, BATTERY, VERBAL ABUSE AND THREATS OF VIOLENCE (4:21)

Definitions
**Fight** – physical combat between two or more students
**Assault** – a threat or attempt to inflict physical contact or bodily harm on another person
**Bullying** – behavior by a student or a group of students that is intended to harass, intimidate, ridicule, humiliate or instill fear in another student or public school employee by a written, verbal, electronic, or physical act that causes or creates a clear and present danger as defined in the bullying policy
**Act of Violence** – action whereby physical force is exerted so as to injure or abuse another person
**Vulgar** – offensive or profanely indecent
**Taunt** – challenge in a mocking or insulting manner
**Harass** – uninvited and unwelcomed persistent annoying behavior to create a violent or hostile situation
**Intimidate** – to frighten into submission; inducing fear or a sense of inferiority into another person
**Threat** – expressing an intention to inflict evil, injury or damage on another
**Ridicule** –to deride or belittle another person through the use of scornful or contemptuous words or actions
**Humiliate** – to reduce to a lower position in one's own eyes or the eyes of others
**Instill Fear** – making someone afraid or apprehensive
**Initiate –** to cause or begin

The Cabot School District is strongly opposed to bullying, fighting, and other acts of violence, in person or in a digital format that may cause students and/or their parents to feel unsure about the physical and emotional welfare of students at school. A student shall not threaten, physically abuse, attempt to physically abuse, or behave in such a way as to be perceived to threaten bodily harm to any other person (student, school employee, or school visitor). Any gestures; vulgar, abusive or insulting language; taunting, threatening, harassing, or intimidating remarks by a student toward another person that threatens their well-being is strictly forbidden.

The District will not tolerate harassment on the basis of gender, race, ethnicity, religion, or sexual orientation. This includes, but is not limited to, fighting, racial, ethnic, religious, or sexual slurs.

Students who make death threats, of any kind, will be immediately suspended. After a thorough inquiry/investigation, in which administration and/or law enforcement personnel determines the student's potential for violence, school officials will decide what additional action is warranted, up to and including an expulsion recommendation and legal charges.

Disciplinary records are not permanent and students will begin each year with a clean disciplinary slate. **The exception to this "clean slate" position is when the unacceptable behaviors fall into the area of fighting, assault, bullying, acts of violence, or threats of violence.**

A student who intentionally harasses, threatens, taunts, or exhibits other behaviors towards another student will be held responsible for initiating any conflict that results from such behavior.

A student who initiates more than one violent act will be subject to increasingly stronger disciplinary action for each offense. Two or more acts of violence initiated by a student in his/her secondary school years in the Cabot School District may result in a placement in alternative school or a maximum punishment of a one-year expulsion from the district. In any act of violence, legal charges may result.

Students who willingly participate in a fight will receive the same punishment if both parties were equally responsible for initiating the violent act. When a student participates in an act of violence in reaction to being taunted, harassed, threatened, humiliated or ridiculed, the punishment assigned may be significantly less than the punishment assigned the student who initiated the conflict.

Furthermore, it is unlawful, during regular school hours and in a place where a public school employee is required to be in the course of his or her duties for any person to address a public school employee using language which, in its common understanding, is calculated to: a) cause a breach of the peace; b) materially and substantially interfere with the operation of the school; c) arouse the person to whom it is addressed to anger to the extent likely to cause imminent retaliation. Students guilty of such an offense may be subject to legal proceedings in addition to student disciplinary measures.

It is required by law that the principal or the person-in-charge report to the police any incidents where a person has committed or threatened to commit an act of violence or any crime involving a deadly weapon on school property or while under school supervision.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**WEAPONS AND DANGEROUS INSTRUMENTS (4.22)**

No student shall possess a weapon, display what appears to be a weapon, or threaten to use a weapon while in school, on or about school property, before or after school, in attendance at school or any school sponsored activity, en route to or from school or any school sponsored activity, off the school grounds at any school bus stop, or at any school sponsored activity or event.

The superintendent shall designate an off-campus location to store equipment related to school sponsored activities that involve the use of firearms and shall establish guidelines for transporting weapons to and from school sponsored events such as trap shooting practices and competitions.

A weapon is defined as any knife, gun, pistol, revolver, shotgun, BB gun, rifle, pellet gun, razor, ice pick, dirk, box cutter, nunchucks, taser, brass knuckles, pepper spray or other noxious spray, explosive, or any other instrument or substance capable of causing bodily harm. A student guilty of having a weapon at school will be suspended until a conference can be set up with the superintendent or designee to determine if an expulsion recommendation is necessary or if other consequences are more appropriate.

Possession means having a weapon, as defined in this policy, on the student's body or in an area under his/her control. If, prior to any questioning or search by any school personnel, a student discovers that he/she has accidentally brought a weapon to school and immediately takes the weapon to the principal's office, or a student realizes that he/she has brought a weapon to school that is in a vehicle on school grounds, and the student informs the principal or a staff person immediately, the student will not be considered to be in possession of a weapon. The weapon shall be confiscated and held in the office until such time as the student's parent/legal guardian shall pick up the weapon from the school's office.

Except as permitted in this policy, students found to be in possession of a firearm on the school campus shall be recommended for expulsion for a period of no less than one year. The Superintendent shall have the discretion to modify such expulsion recommendation for a student on a case-by-case basis. Parents or legal guardians of students expelled under this policy shall be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a weapon on school property. Parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to readmitting the student. Parents or legal guardians of a student enrolling from another school after the expiration of an expulsion period for a weapons policy violation shall also be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a weapon on school property. The parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to the student being enrolled in school.

The district shall report any student who brings a firearm to school to the criminal justice system or juvenile delinquency system by notifying local law enforcement.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**TOBACCO AND TOBACCO PRODUCTS (4.23)**

Smoking, possession or use of tobacco or products containing tobacco/nicotine in any form (including, but not limited to, cigarettes, cigars, e-cigarettes, "vaping" device, e-liquids, Juul devices, Juul pods, any "lookalike" device or paraphernalia, chewing tobacco, and snuff) in or on any property owned or leased by a district school, including school buses, is prohibited. Students and/or legal guardians who violate this policy may be subject to legal proceedings in addition to student disciplinary measures.

1. **First Violation** – Three (3) days in-school suspension, completion of a tobacco cessation intervention program
2. **Second Violation** – Three (3) days of out-of-school suspension.
3. **Third Violation** –Additional in-school/out-of-school suspension and/or consideration for alternative school placement.

**DRUGS AND ALCOHOL POLICY (4.24)**

The purpose of this policy is to maintain a safe and healthy environment for students.

**Definitions**

**"Drug"** is any substance that affects the way the body or mind functions, which includes medications, cannabis, synthetics, and illegal substances. All drugs are subject to school policies regardless of their legal status outside of school.

**"Alcohol"** includes any alcoholic beverage, malt beverage, fortified wine, or other intoxicating liquor or any substance represented as alcohol.

**"Toxic substances"** includes glue, cement, aerosol paint, or other substances used or possessed with the intent of inducing intoxication.

**"Use,"** as a Level I offense, includes using, possessing, or being under the influence of alcohol, illegal or illicit drugs, toxic substances, or misused medications. As a Level II offense, it includes selling, manufacturing, distributing, or dispensing alcohol, illegal or illicit drugs, and toxic substances.

**"Attempted distribution"** includes attempting to sell or attempting to buy alcohol, toxic substances, illegal or illicit drugs, or any medications (or anything represented to be alcohol, toxic substances, illegal or illicit drugs, or medications). It also includes attempting to give alcohol, toxic substances, illegal or illicit drugs, or prescription medications (or anything represented to be alcohol, toxic substances, illegal or illicit drugs, or prescription medications).

**"Possess"** means to have on one's person, in one's effects, or in an area subject to one's control (e.g., automobile, purses, backpack, etc.).

**"School location"** includes any school building or on any school premises; on any school-owned vehicle or in any other school-approved vehicle used to transport students

to and from school or school activities; off school property at any school-sponsored or school approved activity, event, or function, such as a field trip or athletic event, where students are under the jurisdiction of the school district.
**"Drug paraphernalia"** means all equipment, products, and materials of any kind which are used, or designed for use, in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into the human body an illegal or illicit drug or toxic substance. It also includes anything represented to be drug paraphernalia.

**Violations**
Violations of this policy include, but are not limited to, the following at a school location:

**Level I Offenses**

- Possession, use, and/or being under the influence of drugs, illegal or illicit substances, toxic substances, alcohol, or anything represented to be a drug, illegal or illicit substance, toxic substance, or alcohol;
- Possession of paraphernalia (or anything represented to be paraphernalia) associated with prescription medications, illegal or illicit drugs, toxic substances, or alcohol; and
- Misuse of medication, which would include possessing the prescription medication of another, and may include misuse of over-the-counter medications.

**Level II Offenses**

- Selling any medication or drug;
- Giving prescription medication to another; and
- Distribution and/or attempted distribution of drugs, illegal or illicit substances, toxic substances, alcohol, or anything represented to be a drug, illegal or illicit substance, toxic substance, or alcohol.

The school district will act to enforce this policy and to discipline or take appropriate action against any student who violates this policy.

**Consequences**
For Level I Offenses, Level II Offenses, or Subsequent Offenses, the student will be placed on immediate out-of-school suspension for up to ten (10) days. After a thorough investigation by the building administrator, a disciplinary conference will be scheduled with the superintendent/designee to consider expulsion.

The building administrator may recommend an ALE placement in-lieu of a disciplinary conference with the superintendent/designee. The building administrator, parent(s)/guardian(s) and the student should be present at the conference. The purpose of this conference is to review the offense with the parents/guardians and determine the

length of placement in the alternative learning environment. After a student completes all point requirements, they will return to their home campus. Each additional offense may result in a discipline conference with the superintendent/designee to determine a consequence. The alternative to placement in ALE shall be a recommendation for expulsion from school.

Any drug or alcohol offense (Level I or Level II) while enrolled at ALE will result in a recommendation for expulsion.

A violation of this policy and the Medication Policy for students in grades K-6 will be determined on a case-by-case basis in a conference with the parents/guardians, principal, and superintendent/designee.

If all graduation requirements are met, ALE students may apply with the Superintendent's office to walk at graduation.

## ALTERNATIVE SCHOOL

Alternative education (ALE) is a student intervention program consisting of an alternate class or program within a public school or school district. The ALE program affords all students an environment that seeks to eliminate traditional barriers to learning for students whose academic and social progress are negatively affected by the student's personal characteristics or situation. It is not a punitive environment, but is one that is conducive to meeting the individual needs of students to ensure they are successful no matter the setting. The mission of ALE is to provide individualized programs outside of a standard classroom setting in which students learn the skills necessary to redirect their behavior. Any appeal regarding the ALE placement shall be made in writing to the Superintendent. **Refusal to participate in the ALE placement shall result in a recommendation for expulsion.**

If all graduation requirements are met, ALE students may apply with the Superintendent's office to walk at graduation.

## CONDUCT TO AND FROM SCHOOL AND TRANSPORTATION ELIGIBILITY (4.19)

Students being transported on a school vehicle are subject to the same rules of conduct while traveling to and from school as they are while on school grounds. Appropriate disciplinary actions may be taken against commuting students who violate student code of conduct rules.

The preceding paragraph also applies to student conduct while on school buses. Students shall be instructed in safe riding practices. The driver of a school bus shall not operate the school bus until every passenger is seated. Disciplinary measures for problems related to bus behavior shall include suspension or expulsion from school, or suspending or terminating the student's bus transportation privileges. Transporting students to and from school who have lost their bus transportation privileges shall become the responsibility of the student's parent or legal guardian.

Behavior guidelines include, but are not limited to, the following:

1. Obey and be respectful of the bus driver at all times. This is our first and most important rule. The driver may recommend to temporarily suspend a student from riding the bus.
2. Be at the bus stop ten (10) minutes prior to the scheduled time. Understand that scheduled times are tentative and may vary by ten (10) minutes. Stand back about ten (10) feet from the bus stop and wait until the door is opened before moving closer to the bus. Do not play on the highway or road. If you miss the bus, do not attempt to hitchhike or walk to or from school.
3. While loading or unloading, enter or leave the bus quickly and in an orderly fashion.
4. Students are not allowed to eat, drink (water in approved containers permitted), or chew gum on the school bus. Water transported on buses must be in a sealable, non-glass container, not to exceed 32 fluid ounces.
5. No knives or sharp objects of any kind, firearms, or live animals are allowed on the bus.
6. You are not to tamper with any of the safety devices such as door latches, fire extinguishers, etc. Students must keep seated while the bus is in motion and must not move while it is stopped except as the driver directs. Students are not to put their hands or bodies out of the window. Do not yell at anyone outside of the bus.
7. Glass containers and balloons are not allowed.
8. Students are not to deface the bus or any school property. Do not write on the bus or damage seats, etc. Do not throw paper or other objects on the floor of the bus. Keep the aisle of the bus clear from books, lunches, coats, etc. Do not put feet in the aisle.
9. Do not ask the driver to let you off at any place except your regular stop.
10. Students should only cross the street to wait for their bus on streets where the posted speed limit is 25 MPH or less, where crossing the street can be performed safely, and where there is a safe place to wait. Students should **not** attempt to cross any street with a published speed limit greater than 25 MPH or attempt to cross a highway of any kind. Students who wait for their bus on the opposite side of the street from the bus stop will wait until the bus has come to a complete stop, and the driver has signaled to cross in front of the bus before entering the roadway. (Unless the driver directs you differently.)
11. Students who must cross the road after leaving the bus in the afternoon must go to a point on the shoulder of the road ten (10) feet in front of the bus. Cross the road only after the driver has signaled you to do so.
12. Bus seats are designed for three (3) people. In view of federal regulations that require all students to be seated, the bus driver will see that three (3) students are in each seat, if necessary.
13. Students are expected to conduct themselves in a manner such that they will not distract the attention of their driver or disturb other riders on the bus (which

includes keeping your hands to yourself, attend to your own matters, let other pupils alone and be reasonably quiet).

14. This is not intended to cover all the "do's and don'ts," but it is a very specific guide. The driver may find it necessary to interpret these policies in light of his/her own bus needs.
15. A student's behavior on school buses is a determining factor in transportation eligibility. When a student is referred for a disciplinary issue, an investigation shall be conducted; and, if it is determined that the referral merits disciplinary measures, these measures may range from a student conference up to and including expulsion.
16. The transportation director must approve requests for students to ride a bus other than their assigned bus.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**GANGS AND GANG ACTIVITY (4.26)**

The Board is committed to ensuring a safe school environment conducive to promoting a learning environment where students and staff can excel. An orderly environment cannot exist where unlawful acts occur causing fear, intimidation, or physical harm to students or school staff. Gangs and their activities create such an atmosphere and shall not be allowed on school grounds or at school functions.

The following actions are prohibited by students on school property or at school functions:

1. Wearing or possessing any clothing, bandanas, jewelry, symbol, or other sign associated with membership in, or representative of, any gang;
2. Engaging in any verbal or nonverbal act such as throwing signs, gestures, or handshakes representative of membership in any gang;
3. Recruiting, soliciting, or encouraging any person through duress or intimidation to become or remain a member of any gang; and/or
4. Extorting payment from any individual in return for protection from harm from any gang.

Students found to be in violation of this policy shall be subject to disciplinary action up to and including expulsion.

Students arrested for gang related activities occurring off school grounds shall be subject to the same disciplinary actions as if they had occurred on school grounds.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**STUDENT SEXUAL HARASSMENT (4.27)**

The Cabot School District is committed to having an academic environment in which all students are treated with respect and dignity. Student achievement is best attained in an atmosphere of equal educational opportunity that is free of discrimination. Sexual

harassment is a form of discrimination that undermines the integrity of the educational environment and will not be tolerated.

## DEFINITIONS

**Complainant**: An individual who is alleged to be the victim of conduct that could constitute sexual harassment.

**Education Program or Activity:** Locations, events, or circumstances where the District exercised substantial control over both the respondent and the context in which the sexual harassment occurs.

**Formal Complaint:** A document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting an investigation of the allegation of sexual harassment.

**Respondent:** An individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

**Sexual Harassment:** Conduct on the basis of sex that satisfies one or more of the following:

1. A District employee conditions the provision of an aid, benefit, or service of the District on an individual's participation in unwelcome sexual conduct OR uses the rejection of sexual conduct as the basis for academic decisions affecting that individual.
2. The conduct is unwelcome and determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the District's education program or activities OR it constitutes sexual assault, dating violence, domestic violence, or stalking.

## ROLES

The Title IX Coordinator is the Director of Human Resources and Legal Affairs. Investigators may be administrators or directors. The decision-maker is the Assistant Superintendent. Appeals are made to the Superintendent.

## TRAINING

The District believes the best policy to create an educational environment free from sexual harassment is prevention; therefore, the District shall provide informational materials and training to students, parents/legal guardians/other responsible adults, and employees on sexual harassment. The informational materials and training on sexual harassment shall be age appropriate and, when necessary, provided in a language other than English or in an accessible format. The informational materials and training shall include, but are not limited to:

- the nature of sexual harassment;
- the District's written procedures governing and instructions regarding formal complaints and the process;

- that the District does not tolerate sexual harassment;
- that students can report inappropriate behavior of a sexual nature without fear of adverse consequences;
- the support that is available to individuals experiencing sexual harassment; and
- the potential discipline for perpetrating sexual harassment.

## GENERAL PROVISIONS

Within the educational environment, sexual harassment is prohibited between any of the following:

- students;
- employees and students; and
- non-employees and students.

Actionable sexual harassment is generally established when an individual is exposed to a pattern of objectionable behaviors or when a single, serious act is committed. What is or is not sexual harassment will depend upon all of the surrounding circumstances and may occur regardless of the sex(es) of the individuals involved. Depending upon the circumstances, examples of sexual harassment include, but are not limited to:

- making sexual propositions or pressuring for sexual activities;
- unwelcome touching;
- writing graffiti of a sexual nature;
- displaying or distributing sexually explicit drawings, pictures, or written materials;
- performing sexual gestures or touching oneself sexually in front of others;
- telling sexual or crude jokes;
- spreading rumors related to a person's alleged sexual activities;
- discussions of sexual experiences;
- rating other students or employees as to sexual activity or performance;
- circulating or showing emails or websites of a sexual nature;
- intimidation by words, actions, insults, or name calling; and
- teasing or name calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether the student self-identifies as homosexual or transgender.

## SUPPORTIVE MEASURES

Supportive measures are individualized services that are offered to the complainant or made available to the respondent designed to restore or preserve equal access to the District's education program or activities without unreasonably burdening the other party. The supportive measures must be non-disciplinary and non-punitive in nature; offered before or after the filing of a formal complaint or where no formal complaint has been filed; and offered to either party as appropriate, reasonably available, and without fee or charge. Examples of supportive measures include, but are not limited to:

- measures designed to protect the safety of all parties or the District's educational environment or deter sexual harassment;
- counseling;
- extensions of deadlines or other course-related adjustments;
- modifications of work or class schedules;
- mutual restrictions on contact between the parties;
- changes in work or class locations;
- leaves of absence; and
- increased security and monitoring of specific areas of campus.

The District shall provide the individualized supportive measures to the complainant unless declined in writing and shall provide individualized supportive measures to the respondent that are non-disciplinary and non-punitive. A complainant who initially declined the District's offer of supportive measures may request them at a later time and the District shall provide them based on the circumstances when the subsequent request is received.

## INITIATING AN INFORMAL COMPLAINT

Students who believe they have been subjected to sexual harassment, or the parent/legal guardian/other responsible adult of a student who believes their student has been subjected to sexual harassment, are encouraged to bring their concerns to **any** District staff member, including a counselor, teacher, Title IX Coordinator, or administrator. If the District staff member who received a report of alleged sexual harassment is not the Title IX Coordinator, then the District staff person shall inform the Title IX Coordinator of the alleged sexual harassment. As soon as reasonably possible after receiving a report of alleged sexual harassment from another District staff member or after receiving a report directly through any means, the Title IX Coordinator shall contact the complainant to:

- discuss the availability of supportive measures;
- inform the complainant of the availability of supportive measures with or without the filing of a formal complaint; and
- explain to the complainant the process for filing a formal complaint.

## INITIATING A FORMAL COMPLAINT

A formal complaint may be filed with the Title IX Coordinator in person, by phone, by mail, or by . Upon receipt of a formal complaint, the District shall simultaneously provide the following written notice to the parties who are known:

- notice of the District's process and a copy of the procedures governing the process;
- notice of the allegations of sexual harassment, including sufficient details known at the time and with sufficient time to prepare a response before any initial interview. Sufficient details include identity of the parties involved in the

incident (if known), the conduct allegedly constituting sexual harassment, and the date and location of the alleged incident (if known);

- a statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the process;
- that the parties may have an advisor of their choice, who may be, but is not required to be, an attorney;
- that the parties may inspect and review evidence relevant to the complaint of sexual harassment; and
- that the District's code of conduct prohibits knowingly making false statements or knowingly submitting false information during the process.

If, in the course of an investigation, the District decides to investigate allegations about the complainant or respondent that are not included in the previous notice, the District shall simultaneously provide notice of the additional allegations to the parties whose identities are known.

The District may consolidate formal complaints of allegations of sexual harassment where the allegations of sexual harassment arise out of the same facts or circumstances and the formal complaints are against more than one respondent, by more than one complainant against one or more respondents, or by one party against the other party.

## INVESTIGATING A FORMAL COMPLAINT

There shall be an investigation of every formal complaint and that investigation should happen in a reasonable amount of time in light of the circumstances. When investigating a formal complaint and throughout the process, the District shall adhere to the following directives:

- ensure that the burden of proof is not on the respondent;
- ensure that the burden to gather evidence sufficient to reach a determination regarding responsibility rests on the District and not on the parties;
- if the District seeks to access or use questions or evidence that require disclosure of information protected by a legally recognized privilege or access or use records that are maintained by a physician, psychiatrist, psychologist, or other recognized professional acting in the professional's capacity which are made and maintained for treating the party, the District must obtain the voluntary written consent of that party if the party is over the age of eighteen (18) or, if under eighteen (18), the party's parent, legal guardian, or other responsible adult;
- provide an equal opportunity for the parties to present witnesses, including fact and expert witnesses, and other inculpatory or exculpatory evidence. Both parties must have an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint so that each party can meaningfully respond to the evidence prior to the conclusion of the investigation. This includes evidence

obtained from any source, evidence that the District does not intend to rely on in determining responsibility, and evidence that is inculpatory or exculpatory;

- not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;
- provide the parties with the same opportunity to have others present during any proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be an attorney, and not limit the choice or presence of the advisor in any meeting or proceeding;
- provide, to a party whose participation is invited or expected, written notice of the date, time, location, participants, and purpose of all hearings, investigative interviews, or other meetings, with sufficient time for the party to prepare or participate; and
- create an investigative report that fairly summarizes relevant evidence.

At least ten (10) days prior to the completion of the investigative report, the District shall send to each party and the party's advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy. The parties shall have at least ten (10) days to submit a written response to the evidence. The investigator will consider the written responses prior to the completion of the investigative report. All evidence subject to inspection and review shall be available for inspection and review at any meeting to give each party equal opportunity to refer to such evidence during the meeting.

Should the process need to be delayed for good cause, notice should be provided to all parties for the reasons for the action, which may include:

- the absence of a party, a party's advisor, or a witness;
- concurrent law enforcement activity; or
- the need for language assistance or accommodation of disabilities.

The District may hire an individual or individuals to conduct the investigation when necessary.

## MAKING A DECISION

After the investigative report is sent to the parties, the decision-maker shall:

- provide each party the opportunity to submit written, relevant questions that a party wants asked of any party or witness;
- provide each party with answers;
- allow for additional, limited follow-up questions from each party; and
- provide an explanation to the party proposing the questions any decision to exclude a question as not relevant. Specifically, questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and

evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent.

No earlier than ten (10) days following the completion of the investigation period, the decision-maker, who cannot be the Title IX Coordinator or the investigator, shall issue a written determination regarding responsibility. The written determination shall include:

- identification of the allegations potentially constituting sexual harassment;
- a description of the procedural steps taken from receipt of the formal complaint through the determination, specifically including notice to the parties, interviews, site visits, methods used to gather evidence, and hearings;
- findings of fact supporting the determination;
- conclusions regarding the application of the District's personnel policies or code of conduct to the facts;
- a statement of, and rationale for, the result as to each allegation, including determining responsibility, noting disciplinary sanctions imposed on the respondent, and stating supportive measures that will be provided to the complainant; and
- notice of procedures and permissible bases for the complainant and respondent to appeal.

The written determination shall be provided to the parties simultaneously. The determination shall become final on the earlier of the following: (1) if an appeal is not filed, the day after the filing period expires; or (2) if an appeal is filed, the date the written determination of the result of the appeal is provided to the parties.
The District may hire an individual or individuals to act as the decision-maker when necessary.

## DISMISSAL OF FORMAL COMPLAINT

While a dismissal for the reasons below does not preclude action under other provisions of the District's code of conduct, the District shall dismiss a complaint as not meeting the definition of sexual harassment under this policy if the conduct alleged in the formal complaint:

- would not constitute sexual harassment as defined in this policy even if proved;
- did not occur in the District's education program or activity; or
- did not occur against a person in the United States.

The District may dismiss the formal complaint or any allegations included if at any time during the process:

- the complainant notifies the Title IX Coordinator in writing that the complainant would like to withdraw the formal complaint or any allegations therein;
- the respondent is no longer enrolled in or employed by the District; or
- specific circumstances prevent the District from gathering evidence sufficient to reach a determination as to the formal complaint or allegations therein.

Upon the dismissal of a formal complaint for any reason, the District shall promptly send written notice of the dismissal and reason(s) for the dismissal simultaneously to the parties.

## APPEALS

An appeal must be filed no more than ten (10) business days after the original determination was sent. A statement noting the desire to appeal and the basis for the appeal must be sent to the decision-maker in the same manner that the original determination was received. Either party may appeal a determination of responsibility or a dismissal or any allegations therein on the following bases:

- procedural irregularity that affected the outcome;
- discovery of new evidence that was not reasonably available at the time of the determination or dismissal that could affect the outcome;
- the Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias for or against complainants or respondents, generally or specifically, that affected the outcome of the matter; or
- specific appeals of the disciplinary sanctions.

For all appeals, the District shall:

- notify the other party in writing that an appeal has been filed;
- simultaneously provide all parties a written copy of the District's procedures governing the appeal process;
- implement appeal procedures equally for both parties;
- ensure that the decision-maker for the appeal is not the same person as the decision-maker in the original determination, the investigator, or the Title IX Coordinator;
- provide all parties a reasonable, equal opportunity to submit a written statement in support of or challenging the original determination;
- issue a written decision describing the determination of the appeal and the rationale for the result; and
- provide the written decision simultaneously to both parties.

## DISCIPLINARY SANCTIONS

It shall be a violation of this policy for any student to be subjected to or to subject another person to sexual harassment. Following the completion of the District's process, any student who is found by the evidence to more likely than not have engaged in sexual harassment will be subject to disciplinary action up to, and including, expulsion. No disciplinary sanction or other action that is not a supportive measure may be taken against a respondent until the conclusion of the process.

Students who knowingly fabricate allegations of sexual harassment or purposely provide inaccurate facts shall be subject to disciplinary action up to and including expulsion. A determination that the allegations do not rise to the level of sexual harassment alone is

not sufficient to conclude that any party made a false allegation or materially false statement in bad faith.

## CONFIDENTIALITY

Reports of sexual harassment, both informal and formal complaints, will be treated in a confidential manner to the extent possible. Limited disclosure may be provided to:

- individuals who are responsible for handling the investigation and determination of responsibility to the extent necessary to complete that process;
- submit a report to the child maltreatment hotline;
- submit a report to the Professional Licensure Standards Board for reports alleging sexual harassment by an employee toward a student; or
- provide either party due process during the process.

Except in the situations listed above, the District shall keep confidential the identity of:

- any individual who has made a report or complaint of sex discrimination;
- any individual who has made a report or filed a formal complaint of sexual harassment;
- any complainant or respondent; and
- any witness.

Any supportive measures provided to either party shall be kept confidential to the extent that maintaining such confidentiality does not impair the ability of the District to provide those measures.

## RECORDKEEPING

The District shall maintain the following records for a minimum of seven (7) years:

- each sexual harassment investigation, including determinations, disciplinary sanctions imposed, supportive measures provided, appeal and determination, and the basis for the District's conclusion that its response was not deliberately indifferent;
- all materials used to train Title IX Coordinators, investigators, and decision-makers; and
- any actions, including supportive measures, taken in response to a report or formal complaint of sexual harassment or the reasons why supportive measures were not taken and why that response was not clearly unreasonable.

## OTHER PROVISIONS

The District may remove a respondent from the District's education program or activities on an emergency basis only after the completion of an individualized safety and risk analysis that determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal. A removed student will be provided with notice and an opportunity to challenge the removal decision immediately following the removal.

The District shall take steps to prevent retaliation and shall take immediate action if any form of retaliation is perpetrated by District officials, students, or third parties. Students or the parents/legal guardians/other responsible adult of a student shall not be subjected to retaliation or reprisal in any form—including threats, intimidation, coercion, discrimination, or charged with code of conduct violations that do not involve sex discrimination or sexual harassment and are made for the purpose of interfering with any right or privilege under this policy—for doing any of the following:

- submitting a report of sexual harassment;
- filing a formal complaint of sexual harassment;
- testifying, assisting, participating in an investigation, proceeding, or hearing; or
- refusing to participate in an investigation, proceeding, or hearing.

**Violation Consequences:** **Minimum - Student Conference;**
**Maximum – Expulsion**

**LASER POINTERS (4.28)**

Students shall not possess any hand-held laser pointer while in school; on or about school property, before or after school; in attendance at school or any school-sponsored activity; en route to or from school or any school-sponsored activity; off the school grounds at any school bus stop or at any school-sponsored activity or event. School personnel shall seize any laser pointer from the student possessing it and the student may reclaim it at the close of the school year, or when the student is no longer enrolled in the District.

**Violation Consequences:** **Minimum - Student Conference;**
**Maximum – Expulsion**

**TECHNOLOGY DEVICE USE POLICY (4.29)**

The Cabot School District makes electronic devices and/or computer Internet access available to students, to permit students to perform research and to allow students to learn how to use computer technology. Use of district technology devices is for educational and/or instructional purposes only. It is the policy of this school district to utilize Internet filtering software designed to prevent users from accessing material that is harmful to minors. For the purposes of this policy "harmful to minors" is defined as any picture, image graphic image file, or other visual depiction that: (A) Taken as a whole and with respect to minors, appeals to a prurient interest in nudity, sex or excretion; (B) Depicts describes, or represents, in a patently offensive way with respect to what is suitable for minors, and actual or simulated sexual act or sexual contact, actual or simulated normal or perverted sexual acts, or lewd exhibition of the genitals; and (C) taken as a whole, lacks serious literary, artistic, political, or scientific value as to minors. No student will be granted Internet access until and unless a computer-use agreement, signed by both the student and the parent or legal guardian (if the student is under the age of eighteen [18] is on file. The current version of the technology device use agreement is incorporated by reference into Board policy and is considered part of the student handbook.

Student use of technology devices shall only be as directed or assigned by staff or teachers. Students are advised that they enjoy no expectation of privacy in any aspect of their device use, including e-mail, and that monitoring of student technology device use is continuous. Students must not disable or bypass security procedures, compromise, attempt to compromise, or defeat the district's technology network security or Internet filtering software, alter data without authorization, or disclose passwords to other students. Students who misuse district-owned devices or Internet access in any way, including using devices to violate any other policy or contrary to the technology device use agreement, or using the devices to access or create sexually explicit or pornographic text or graphics, will face progressive disciplinary action, as specified in the student handbook and/or electronic device use agreement.

In an effort to help protect student welfare when they navigate the Internet, the district will work to educate students about appropriate online behavior, including interacting with other individuals on social networking websites and in chat rooms and cyber bullying awareness and response.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**DAMAGING, DESTROYING OR STEALING SCHOOL PROPERTY (4.58)**

Any student, who vandalizes, destroys or steals school property shall be held liable for the cost of restitution, repair or replacement of that property. The student shall also be subject to school discipline and possible legal action.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

**SEARCH, SEIZURE AND INTERROGATIONS (4.32)**

The District respects the rights of its students against arbitrary intrusion of their person and property. At the same time, it is the responsibility of school officials to protect the health, safety, and welfare of all students enrolled in the District in order to promote an environment conducive to student learning. The Superintendent, principals, and their designees have the right to inspect and search school property and equipment. They may also search students and their personal property in which the student has a reasonable expectation of privacy when there is reasonable suspicion to believe such student or property contains illegal items or other items in violation of Board policy or dangerous to the school community. School authorities may seize evidence found in the search and disciplinary action may be taken. Evidence found which appears to be in violation of the law shall be reported to the appropriate authority.

School property shall include, but not be limited to, lockers, desks, and parking lots, as well as personal effects left there by students. When possible, prior notice will be given and the student will be allowed to be present along with an adult witness, however, searches may be done at any time with or without notice or the student's consent. A personal search

must not be excessively intrusive in light of the age and gender of the student and the nature of the infraction. A school official of the same gender shall conduct personal searches with an adult witness present.

The Superintendent, principals, and their designees may request the assistance of law enforcement officials to help conduct searches. Such searches may include the use of specially trained dogs.

Should a student refuse to cooperate with a search, there will be a presumption of possession of the contraband in question resulting in suspension pending a conference with the assistant superintendent.

State Law requires that Department of Human Services employees, local law enforcement, or agents of the Crimes Against Children Division of the Division of Arkansas State Police, may interview students without a court order for the purpose of investigating suspected child abuse. In instances where the interviewers deem it necessary, they may exercise a "72-hour hold" without first obtaining a court order. Other questioning of students by non-school personnel shall be granted only with a court order directing such questioning, with permission of the parents of a student (or the student if above eighteen [18] years of age), or in response to a subpoena or arrest warrant.

If the District makes a report to any law enforcement agency concerning student misconduct or if access to a student is granted to a law enforcement agency due to a court order, the principal or the principal's designee shall make a good faith effort to contact the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis. The principal or the principal's designee shall not attempt to make such contact if presented documentation by the investigator that notification is prohibited because a parent, guardian, person having lawful control of the student, or person standing in loco parentis is named as an alleged offender of the suspected child maltreatment. This exception applies only to interview requests made by a law enforcement officer, an investigator of the Crimes Against Children Division of the Division of Arkansas State Police, or an investigator or employee of the Department of Human Services.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student, or a warrant for arrest, or to an agent of state social services or an agent of a court with jurisdiction over a child with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis notice that the student has been taken into custody by law enforcement personnel or a state's social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number. Search refusal may result in consequences issued ranging from student conference to expulsion.

**ACADEMIC INTEGRITY**

The Cabot School District is committed to maintaining high standards and expectations for academic integrity among all students.

Following the principles of academic integrity means:

- Presenting one's own work honestly and authentically;
- Synthesizing with other students only when directed by a teacher;
- Confiding in teachers or administrators when an infraction has been committed;
- Being willing to give credit to others whose ideas or work has been assimilated into one's own work;
- Utilizing technology including but not limited to Chromebooks, calculators, Artificial Intelligence and smartphones in appropriate ways.

Behavior that fails to sustain the principles of academic integrity includes, but is not limited to:

- Plagiarizing another's work;
- Helping, receiving help, or attempting to use any unapproved materials for an assignment or test;
- Falsely representing the source of any academic work;
- Unapproved changing of any grades;
- Forging of documents or misuse of school approval forms;
- Any other dishonest act regarding academic work;
- Utilizing technology including but not limited to Chromebooks, calculators, Artificial Intelligence, and smartphones in order to create a unique product and represent it as your own.

Violation of Academic Integrity expectations may result in the loss of credit for the assignment and/or disciplinary consequences.

**Violation Consequences: Minimum - Student Conference;**
**Maximum – Expulsion**

## SECTION 4 – SAFETY AND SECURITY

**SCHOOL RESOURCE OFFICERS**

The Cabot School District has uniformed police officers who are available to students, faculty, and parents as a law enforcement resource. The officers can be utilized to discuss and present topics including: drug and alcohol abuse, traffic safety, suicide prevention, crime prevention, family violence, and other issues.

**SURVEILLANCE AND OTHER STUDENT MONITORING (4.48)**

The Board of Directors has a responsibility to maintain discipline, protect the safety, security, and welfare of its students, staff, and visitors while at the same time safeguarding district facilities, vehicles, and equipment. As part of fulfilling this responsibility, the Board authorizes the use of digital surveillance cameras, automatic identification technology, data compilation devices, and technology capable of tracking the physical location of district equipment, students, and/or personnel.

The placement of surveillance cameras shall be based on the presumption and belief that students, staff and visitors have no reasonable expectation of privacy anywhere on or near school property, facilities, vehicles, or equipment, with the exception of places such as restrooms or dressing areas where an expectation of bodily privacy is reasonable and customary.

Signs shall be posted on campus buildings and in district vehicles to notify students, staff, and visitors that cameras may be in use. Parents and students shall also be notified through the student handbook that cameras may be in use in school buildings, on school grounds and in school vehicles. Students will be held responsible for any violations of school discipline rules caught by the cameras and other technologies authorized in this policy.

The district shall retain recordings until they are erased/deleted. Other than recordings being retained under the provisions of this policy's following paragraph, the district's recordings may be erased any time greater than 2 days after they were created.

Recordings, automatic identification, or data compilations containing evidence of a violation of student conduct rules and/or state or federal law shall be retained until the issue of the misconduct is no longer subject to review or appeal as determined by board policy or student handbook**;** any release or viewing of such records shall be in accordance with current law.

Students who vandalize, damage, disable, or render inoperable (temporarily or permanently) surveillance cameras and equipment, automatic identification, or data compilation devices shall be subject to appropriate disciplinary action and referral to appropriate law enforcement authorities.

**WEATHER RELATED CLOSING PROCEDURES**

When it becomes necessary to close school, the decision will be made as early as possible. Decisions will be made based on road conditions rather than weather forecasts. Students and parents will be notified through the following communication sources:

Local television stations
District's Internet Website: www.cabotschools.org
Cabot Public Schools mobile device app
School Announcements Phone Messaging System

Other media outlets

Should conditions develop during a school day which warrants early dismissal from school, these same stations will be notified. This decision will generally be made as late as is practical and will, if at all possible, come after lunchtime.

Whenever it is known that school will not be open on a day following a weather related closing day, notification of the decision to remain closed will be made.

**EMERGENCY DRILLS (4.37)**

All schools in the district shall conduct fire drills at least monthly. Tornado drills shall be conducted at least three (3) times per year. The Cabot School District will also participate in drills required by the Safe School Initiative Act (6-15-1303). Students, who ride school buses shall also participate in emergency evacuation drills at least twice a school year.

The District shall annually conduct a lockdown drill at all schools in the District in collaboration with local law enforcement, medical professionals, fire department officials, and emergency management personnel. The lockdown drill training will include use of the District's emergency communication method with law enforcement. Students will be included in the drills to the extent that it is developmentally appropriate for the age of both the students and grade configuration of the school.

Drills may be conducted during the instruction day or during non-instructional time periods.

Other types of emergency drills may also be conducted to test the implementation of the District's emergency plans in the event of violence, terrorist attack, natural disaster, other emergency, or the District's emergency communication with law enforcement method. Students shall be included in the drills to the extent practicable.

## SECTION 5 – Health and Wellness Policies

**SCHOOL LUNCH SUBSTITUTIONS (4.50)**

The district only provides substitute meal components on menus to accommodate students with handicapping conditions meeting the definition of a disability as defined in USDA regulations. A parent/guardian wishing to request such a dietary accommodation must submit a Certification of Disability for Special Dietary Needs Form completed by a licensed physician to the District Food Service Director. The district will not prepare meals outside the normal menu to accommodate a family's religious or personal health beliefs.

**FOOD SERVICE (4.51)**

The goal of the Cabot School District is to provide students with healthy meals each day.

The purpose of this policy is to insure compliance with federal reporting requirements for the USDA Child Nutrition Program, and to provide oversight and accountability for the collection of outstanding student meal balances.

**Full Pay & Reduced Students**
Students will pay for meals at the district's published standard rate each day. A student will be allowed to charge a maximum of $10.00. Any student that has money to purchase a reduced or paid meal at the time of meal service will be provided a regular meal.

**Free Meal Benefit**
Free status students will be allowed to receive one free breakfast and lunch each day. A la carte and second meal purchases must be prepaid.

**Free Breakfast**
In accordance with A.C.A. § 6-18-722, a student shall be provided one (1) breakfast at no cost during each school day upon the student's request regardless of whether the student qualifies for a federally funded free or reduced-price meal.

**Negative Balance Notification**
Parents/Guardians will be notified by food service personnel or school administration via email, phone or written payment reminder when the student reaches a low or negative balance. All school cafeterias possess computerized point of sale/cash register systems that maintain records of all monies deposited and spent for each student. Records are available by setting up an account at www.ezschoolpay.com or by speaking with the cafeteria manager. Students/Parents/Guardians are encouraged to pay for meals in advance via www.ezschoolpay.com, cash or check.

**Refunds**
A written request for a refund of any money remaining in a student's account must be submitted to the food service department. An e-mail request is also acceptable.

**Remaining funds or negative balances** for a student will be carried over to the next school year.

**Unclaimed funds** must be requested within one school year. Unclaimed funds will then become the property of the Cabot Public School Food Service Program.

**Balances Owed with No Response by Parent/Guardian**
If the payment is not received, the Superintendent or his/her designee may take one or more of the following actions:
1) Delay the issuance of report cards, transfer cards, and class assignments until obligations are met.
2) Prohibit student participation in senior activities or graduation exercises.

If financial hardship exists, parents and families are encouraged to apply for free or reduced price lunches for their child. Free and reduced meal applications can be found at www.ezmealapp.com, each school office and the Central Administration Office.

**SNACKS AND TREATS AT SCHOOL (6:9)**

School Events/Parties - Students may be given any food and/or beverage items during the school day for up to nine different events each school year to be determined and approved by school officials. These items may not be given during meal times in the areas where school meals are being served or consumed. Foods for such events must be sealed and packaged when brought to school and disseminated using safety precautions, such as plastic gloves. Homemade foods and snacks cannot be provided to students. Any prepared foods must have been prepared in an Arkansas Health Department inspected and approved kitchen and properly stored until being served.

Snacks During the Declared School Day – Snacks may be provided or distributed by the school as part of the planned instructional program, for example, afternoon snack for kindergarten students who eat early lunch. Snacks shall meet the United States Department of Agriculture Child and Adult Care Snack Patterns.

Foods for Instructional Purposes – Foods integrated as a vital part of the instructional program are allowed at any time. Examples include edible manipulatives such as a square of cheese to teach fractions, a nutrition food experience, food production in family and consumer science units, and food science units.

No food or beverage shall be used as rewards for academic, classroom or sport performances and/or activities with the exception of those occasions outlined previously in this policy.

**COMMUNICABLE DISEASES AND PARASITES (4.34)**

Students with communicable diseases or with parasites shall demonstrate respect for other students by not attending school while they are contagious. In some instances, a letter from a health care provider may be required prior to the student being readmitted to the school.

When a student has suspected head lice:

1. The school nurse or trained staff member will assess the student and determine action to be taken.
2. If live adult lice are found, the student's parent/guardian will be notified to pick the child up from school.
3. If nits (eggs) are found ONLY, the student may remain in class and the parent/guardian will be notified by phone and/or written notification.
4. Treatment and prevention instructions will be sent home with identified students.
5. Student must be properly treated with an approved pediculicide such as Rid® or Nix®, or the generic equivalent.

6. Proof of treatment must be provided to the school nurse upon returning to school. If live lice were identified, the student must provide proof of treatment and be evaluated by the school nurse or trained staff before returning to class.
7. A follow up assessment of the student will be completed by the school nurse or trained staff member within 7 – 10 days of the initial discovery.
8. Screening of students, who have close contact with the identified student, will be evaluated at the discretion of the school nurse.
9. Only students who have active head lice will be sent notification from the school nurse, unless 20% or more of the students in the class have active lice. If they classroom reaches 20% or more with active lice, then all students in that classroom will receive a notification.
10. The American Academy of Pediatric Physicians does not recommend conducting routine screenings of the entire school population, nor any school wide notification when a student has head lice. Therefore, the school district does not recommend school wide screenings/notifications.
11. The parent should check their child's head and remove lice and/or nits DAILY for at least two (2) weeks.
12. Parents should apply a second pediculicide treatment, seven (7) to ten (10) days after the first treatment.
13. Fourteen (14) days after the initial discovery of head lice or nits, the school nurse or trained staff member will evaluate the student for signs of lice or nits. The student will once again be sent home if lice and/or nits are found. Parent will need to accompany student upon returning to school and the school nurse or trained staff member will determine if student is cleared to return to class.

Each school may conduct screenings of students for head lice as needed. The screenings shall be conducted in a manner that respects the confidentiality of each student.

When a student has suspected bed bugs:

The Cabot School District will follow guidelines set forth by the Arkansas Department of Health and the Arkansas Department of Education's Division of Elementary and Secondary Education. This information can be found at https://dese.ade.arkansas.gov/Files/ADE-ADH_Head_Lice_Bed_Bug_Manual_-_FINAL_LS.pdf.

## IMMUNIZATION REQUIREMENTS

**Definitions**

"In process" means the student has received a t least one does of the required immunizations and is waiting the minimum time interval to receive the additional does(s).

"Serologic testing" refers to a medical procedure used to determine an individual's immunity to Hepatitis B, Measles, Mumps, Rubella, and Varicella.

**General Requirements**

Unless otherwise provided by law or this policy, no student shall be admitted to attend classes in the District who has not been age appropriately immunized against:

- Poliomyelitis;
- Diphtheria;
- Tetanus;
- Pertussis;
- Red (Rubeola) measles;
- Rubella:
- Mumps;
- Hepatitis A;
- Hepatitis B;
- Meningococcal disease;
- Varicella (chickenpox); and
- Any other immunization required by the Arkansas Department of Health (ADH).

The District administration has the responsibility to evaluate the immunization student of District students. The District shall maintain a list of all students who are not fully age appropriately immunized or who have an exemption provided by ADH to the immunization requirements based on medical, religious, or philosophical grounds. Students who are not fully age appropriately immunized when seeking admittance shall be referred to a medical authority for consultation.

The only types of proof of immunization the District will accept are immunization records provided by a:

A. Licensed physician;
B. Health department;
C. Military service;
D. Official record from another educational institution in Arkansas; or
E. An immunization record printed off the statewide immunization registry with the Office Seal of the State of Arkansas.

The proof of immunization must include the vaccine type and dates of vaccine administration. Documents stating "up-to-date", "complete", "adequate", and the like will not be accepted as proof of immunization. No self or parental history of varicella disease will be accepted, as a history of varicella must be documented by a licensed physician, advanced practice nurse, doctor of osteopathy, or physician assistant. Valid proof of immunization and/or of immunity based on serological testing shall be entered into the student's record.

In order to continue attending classes in the District, the student must have submitted at least one of the following:

1) Proof of immunization showing the student to be fully age appropriately vaccinated;
2) Written documentation by a public health nurse or private physician of proof the student is in the process of being age appropriately immunized, which includes a schedule of the student's next immunization;
3) A copy of a letter from ADH indicating immunity based on serologic testing; and/or
4) A copy of the letter from ADH exempting the student from the immunization requirements for the current school year, or a copy of the application for an exemption for the current school year fi the exemption letter has not yet arrived.

Students whose immunization records or serology results are lost or unavailable are required to receive all age appropriate vaccinations or submit number 4 above.

**Temporary Admittance**

While students who are not fully age appropriately immunized or have not yet submitted an immunization waiver may be enrolled to attend school, such students shall be allowed to attend school on a temporary basis only. Students admitted on a temporary basis may be admitted for a maximum of thirty (30) days (or until October 1st of the current school year for the tetanus, diphtheria, pertussis, and meningococcal vaccinations required at ages eleven (11) and sixteen (16) respectively if October 1st is later in the current school year than the thirty (30) days following the student's admittance). No student shall be withdrawn and readmitted in order to extend the thirty (30) day period. Students may be allowed to continue attending beyond the thirty (30) days period if the student submits a copy of either number 2 or number 4 above.

Students who are in process shall be required to adhere to the submitted schedule. Failure of the student to submit written documentation from a public health nurse or private physician demonstrating the student received the vaccinations set forth in the schedule may lead to the revocation of the student's temporary admittance; such students shall be excluded from school until the documentation is provided.

The District will not accept copies of applications requesting an exemption for the current school year that are older than two (2) weeks based on the date on the application. Students who submit a copy of an application to receive an exemption from the immunization requirements for the current year to gain temporary admittance have thirty (30) days from the admission date to submit either a letter from ADH granting the exemption or documentation demonstrating the student is in process and a copy of the immunization schedule. Failure to submit the necessary documentation by the close of the thirty (30) days will result in the student being excluded until the documentation is submitted.

**Exclusion from School**

In the event of an outbreak, students who are not fully age appropriately immunized, are in process, or are exempt from the immunization requirements may be required to be excluded from school in order to protect the student. ADH shall determine if it is necessary for students to be excluded in the event of an outbreak. Students may be excluded for new fewer than twenty-one (21) days or even longer, depending on the outbreak. No student excluded due to an outbreak shall be allowed to return to school until the District receives approval from ADH.

If a student is unable to receive immunizations for a medical or non-medical reason, the parent must take the following steps before the child is eligible to attend school:

- Contact the Arkansas Department of Health, Division of Communicable Disease at 501-661-2169.
- Submit a request and documentation for exemption to ADH.

ADH will give the parent a letter granting or denying exemption which must be returned to the school nurse. ***Exemptions must be renewed yearly by the parent.***

**PHYSICAL EXAMINATIONS OR SCREENINGS (4.41)**

The District conducts the following state mandated health screenings:

- Hearing and Vision --- Pre K, K, 1, 2, 4, 6, 8
- Height and Weight --- K, 2, 4, 6, 8, 10
- Scoliosis --- 6th and 8th grade girls and 8th grade boys

The intent of the exams or screenings is to detect defects in hearing, vision, or other elements of health that would adversely affect the student ability to achieve to his/her full potential. The parent rights, provided under this policy, transfer to the student when the student turns 18 years of age. **Except in instances where a student is suspected of having a contagious or infectious disease, parents shall have the right to opt their student out of the exams or screenings by using form 4.41F (located in the school nurse's office) or by providing a written statement to the school nurse.**

**PERSONAL ILLNESS**

In order to provide our student with a healthy environment in which to learn, these guidelines should be followed:

1. If a child complains before school, take his/her temperature and keep the child home if the temperature exceeds 99.9 degrees.
2. If a child complains with stomach disorders such as nausea, vomiting or diarrhea, he/she should not be sent to school. Stomach viruses are contagious.
3. If a child has a rash of unknown origin or has a suspected condition (such as chicken pox), which may be contagious, do not send him/her to school until a physician has diagnosed the condition.
4. If a student is sent home from school with fever, vomiting, diarrhea, rash, or any other symptom that is suspected to be contagious, he/she should not return to school the next day. A child should be free from any signs or symptoms that are believed to be contagious for twenty-four (24) hours before returning to school.

## When Should I Keep My Child Home?

**Guidelines for exclusion from school due to illness:**

| ILLNESS | SYMPTOMS | INCUBATION PERIOD | SCHOOL ACTION & PERIOD OF COMMUNICABILITY |
|---|---|---|---|
| Bed Bugs | Redness: intense itching; small, red lesions; bleeding from the center of a bite: fatigue; fever; blisters; insomnia; anxiety; swelling; angioedema; generalized urticaria; iron deficiency; anemia; rarely anaphylaxis. | Eggs typically hatch in 6 to 10 days. | Cabot School District will follow guidelines set forth by the Arkansas Department of Health and the Arkansas Department of Education's Division of Elementary and Secondary Education.<br><br>https://dese.ade.arkansas.gov/Files/ADE-ADH_Head_Lice_Bed_Bug_Manual_-_FINAL_LS.pdf |
| Chickenpox | Slight fever, general feeling of illness, skin lesions resembling water blister that appear after 3-4 days. Scabs appear later. Rash usually begins on face and trunk. | 2 – 3 weeks | • Exclude from school until vesicles are dry and crusted (usually 5 – 7 days from appearance of rash) and is fever free for 24 hours (without the aid of fever-reducing medication).<br>• Contagious 5 days before eruption. |
| Cold Sores (Herpes Simplex) | Vesicles usually on lips but may occur anywhere on skin or in | 2 – 12 days | • No restriction. |

| | | | |
|---|---|---|---|
| | mucous membranes. | | |
| Common Cold | Acute upper respiratory symptoms including watery eyes, sneezing, runny nose, nasal congestion, general feeling of illness. | 12 hours – 3 days | • Exclude from school if clinically ill and/or fever of 100 degrees or higher. |
| Conjunctivitis (pink eye) | Bacterial: Pink or red conjunctiva with pus that causes matting of the eyelids.<br>Viral: Pink conjunctiva with clear, watery discharge. | 24 – 72 hours | Bacterial (with pus):<br>• Until 24 hours after treatment.<br>Viral (without pus):<br>• No exclusion.<br>Allergy (clear yellow drainage):<br>• No exclusion. |
| Coughing | Severe, uncontrolled coughing or wheezing or breathing difficulty. | | • Medical attention may be necessary if coughing is uncontrollable and/or clinically ill.<br>Note: Students with Asthma Care Plans that include specific doctor's orders and prescription medication will be treated accordingly. |
| COVID | COVID-19 symptoms may include, but are not limited to, the following: | Symptoms may appear 2-14 days after exposure to the virus. | Cabot School District will follow guidelines set forth by the Arkansas Department of Health and the Arkansas Department of Education's |

| | | | |
|---|---|---|---|
| | Fever or chills; cough, shortness of breath or difficulty breathing; fatigue; muscle or body aches; headache; new loss of taste or smell; sore throat; congestion or runny nose; nausea or vomiting; diarrhea | | Division of Elementary and Secondary Education. |
| Coxsackie Virus (Hand, foot and mouth) | Slight fever, poor appetite and sore throat. Painful sores will develop in the mouth. Blisters may be seen on the hands, feet and occasionally on the buttocks. | 3 – 5 days | • No exclusion necessary unless there are active lesions in the mouth, drooling, or fever of 100 degrees or higher. |
| Diarrhea | Loose or watery stools not caused by diet or medication. | | • Exclude from school until 24 hours after the last episode. |
| Fever | Oral temperature of 100 degrees or higher. | | • Exclude from school until fever free for 24 hours without the aid of fever-reducing medication. |

| | | | |
|---|---|---|---|
| Fifth's Disease (erythema infectiosum) | Cold symptoms and a slight fever may be present 1-3 weeks before a rash appears. An ill child usually develops bright red cheeks (slapped cheek appearance), followed by a lacy red rash on the arms, legs and trunk. Rash usually gets better in 7-10 days but may come and go for days or even weeks. | 6 – 14 days | • Exclusion not necessary unless there is a fever of 100 degrees or higher. Infectious period is typically prior to the appearance of the rash. |
| Illness of two or more weeks, surgery or other change in health status. | | | • Written instructions and plan of care (medication, medical equipment, classroom accommodations, diet, physical restrictions, etc.) must be provided before returning to school. |
| Influenza (flu) | Flu is different from a cold and usually comes on quickly. | 24 – 72 hours | Confirmed case of influenza (flu):<br>• Exclude from school for at least 5 days from the onset |

| | | | |
|---|---|---|---|
| | Fever, chills, body aches, sore throat, cough, runny nose and possibly vomiting and diarrhea. | | of symptoms **AND** fever free for 24 hours (without the aid of fever reducing medication). |
| Impetigo/Staph/MRSA | Impetigo: skin infection most often occurring on the face and around the mouth.<br>Staph: Minor skin infection caused by bacteria.<br>MRSA: A type of staph that is resistant to antibiotics. | | • Exclude from school until 24 hours after treatment and fever free for 24 hours (without the aid of fever reducing medication).<br>• Wound must be completely covered with a dressing while at school. |
| Lice (pediculosis) | Small, wingless, blood-sucking insects that infest the scalp and hair of the human head. Common among school-age children. | Variable. Eggs hatch in 1 week. | • Exclusion from school if live bugs are present. May return when no live bugs are present and proof of treatment has been received.<br>• No exclusion necessary if nits (eggs) are found ONLY. Student may remain in class but cannot return to school until proof of treatment has been received. |

| | | | |
|---|---|---|---|
| | | | • Refer to Student Handbook, (4.43) for entire policy. |
| Molloscum Contagiosum | Small bumps on the skin that have a waxy, white or pinkish look and a small pit in the center. The bumps spread by scratching and touching another area on the body. Without treatment, the bumps usually go away after a few months. | 2 – 3 months | • Exclusion from school not necessary unless there is fever. |
| Mononucleosis | Fever, sore throat, swollen lymph glands (neck) and tiredness. | 4 – 6 weeks | • Exclude/restrict only according to doctor's orders. |
| Pin Worms | Itching of anal area, sometimes disturbed sleep and irritability. | 4 – 6 weeks | • Exclude from school until 24 hours after treatment.<br>• Communicable as long as worms are present in the intestines. |
| Ringworm | Ring-shaped or irregular lesion with elevated | Body: 4-10 days | • Exclude from school until 24 hours after treatment. |

| | | | |
|---|---|---|---|
| | vesicular or scaly borders. May show central clearing. May become inflamed and crusted. | Scalp: 10-14 days | • Area should be covered while at school. |
| Scabies | Itching, scratch marks or burrow marks. Common sites are thighs, beltline, wrists, elbows, and webs of fingers and toes. Scratching may cause secondary infections or rash. | 2 – 6 weeks | • Exclude from school until 24 hours after treatment. |
| Strep Throat (Scarlet Fever) | Fever, sore throat, headache, nausea, vomiting, stomach ache, possibly a fine rash. | 1 – 3 days | • Exclude from school until at least 24 hours after treatment and fever free for 24 hours (without the aid of fever reducing medication). |
| Vaccine Preventable Diseases (mumps, measles, whooping cough) | | | • Exclusion until determined not infectious by a medical provider and Health Department. |
| Vomiting (2 or more episodes in the past 24 hours) | | | • Exclude from school until 24 hours after last episode. |

***Minimum school exclusions, listed in the chart above, will be strictly enforced regardless of doctor's notes received.***

Many times children become ill at school and it is necessary for parents to be notified. The following criteria will be used as a guide for notifying parents:

1. Fever of 100 degrees or higher;
2. Vomiting and/or diarrhea;
3. Symptoms of contagious conjunctivitis;
4. Symptoms of contagious diseases;
5. Skin rash of unknown origin;
6. Serious injuries;
7. Symptoms of head lice; or
8. Symptoms that the school nurse deems as a possible health risk to the student and/or to other students at school.

**TOILET TRAINING (4.56)**

All children entering Cabot Schools shall have toilet training to the point that each one can take care of their toileting needs without adult assistance. Any exceptions shall be made in advance of the start of school by the parent providing medical documentation of a health related cause to the building principal from the child's physician. If there is a health related reason for a child not being able to control his/her bowels or bladder, a health plan will be developed by the school nurse with input from the parent/guardian and physician. A child who has multiple toileting accidents weekly because they have not been trained at home may be withheld from school until the parent/guardian has completed toilet training with their child.

**CHRONIC ILLNESS**

There are occasions where a student may have a chronic condition that requires the student to miss school more than is allowed under the attendance policy. If such a condition exists the parents, the physician and the school may work together to develop a health care plan that addresses the illness and modifies the attendance policy.
When this is necessary the School Principal and the Director of Nursing for the district must be involved and the plan must be submitted to the Assistant Superintendent or his/her designee for
final approval.

It is the policy of the Cabot School District to provide all life saving measures within our capability to all students in medical emergencies. When able, the District will provide any relevant written orders, such as do-not-resuscitate orders, along with the standard medical information and documentation that is provided to emergency responders.

**STUDENT MEDICATIONS (4.35)**

The purpose of this policy is to set forth the provisions that must be followed when administering medication to students. The Cabot School District acknowledges that some students may require medication during the school day when a schedule for dispensing medication at home is not feasible. The school district's licensed school nurse, principal or designee will dispense the student's medication in accordance with the school district's policy.

**Definitions**:

**"Prescription Medication**" is a medication that can be obtained only by means of a licensed and duly authorized medical practitioner.

**"Nonprescription Medication"** is an over-the-counter medication that can be obtained without a licensed medical practitioner.

**"Medication**" is a Food and Drug Administration (FDA) approved drug or preparation of drugs in suitable form for use as a curative or remedial substance.

**"School Location"** includes any school building or on any school premises; in any school-owned vehicle or in any other school-approved vehicle used to transport students to and from school or school activities; off school property at any school-sponsored or school approved activity, event or function, such as a field trip or athletic event, where students are under the jurisdiction of the school district.

**Requirements**:

Administration of prescription medication by school personnel must only be done according to the written order of a licensed medical practitioner and written authorization of parent/guardian. Non-prescription medication will be administered to students only with parent/guardian written authorization. School personnel will dispense only oral, nasal and topical medications unless a condition exists for which an exception is made in accordance with the requirements of this policy.

Non FDA approved products, herbal/dietary products, medications purchased in foreign countries, or non-traditional preparations (including but not limited to: vitamins, supplements, homeopathic remedies and essential oils) may not be administered by school personnel. The parent/guardian may administer the products so long as the use does not interfere with the health or well-being of other students.

No medication will be given unless a **Medication Form** is filled out for each medication. ALL medications must be delivered to the school office, by a parent or other responsible adult, in the original pharmacy-labeled **or** manufacturer's container. **No loose pills in "baggies", envelopes or taped to a note will be accepted.**

Prescription medication must have the following information on the label: student's full name; name and dosage of medication; time and directions for administration; the physician's name; and a current date.

Non-prescription medication may be given with parental permission for a total of **five** doses per semester. A licensed prescriber order will be required if administration exceeds five doses. **Medicine will be given *no more than once* during the school day, without a prescriber order**. All non-prescription medications must be delivered to the school by the parent/guardian in the original, unopened container.

Temporarily Prescribed Medications that require three (3) doses or fewer per day will not be administered at school. In most cases, these medications can be administered outside of school hours, such as before school, after school and prior to bedtime. In situations where extenuating circumstances exist, a plan for medication administration during the school day may be developed collaboratively between the parent/guardian, the school nurse and the building administrator.

This policy does not apply to temporary medications prescribed for injuries or pain management that may require administration during school hours.

Prescribed Morning Medications should be administered at home unless there are extenuating circumstances. In situations where extenuating circumstances exist, a plan for medication administration in the morning may be developed collaboratively between the parent/guardian, the school nurse and the building administrator.

**Narcotic pain medications may cause many side effects that hinder a student's ability to learn. Medications, such as but not limited to: hydrocodone, oxycodone, vicodin, Percocet, Tylenol with codeine, etc., will not be administered at school.**

**Stock Medications**

The following over-the-counter (OTC) medications are kept in the nurse's office:

Acetaminophen (Tylenol), ibuprofen, antacid (Tums), Caladryl (topical anti-itch, diphenhydramine (Benadryl), oral pain reliever (Ora-jel), antibiotic ointment, basic first aid supplies.

All medications will be given according to label instructions and in accordance with OTC school district policy.

These medications will only be administered at the discretion of the school nurse. Acetaminophen and ibuprofen may be given according to the following guidelines:

- Fever over 102 degrees (or as deemed necessary be school nurse).
- Headaches and/or other pains not relieved by other measures such as ice, heat, food, fluids, rest, etc.
- Health care provider's order

Tylenol, ibuprofen, and antacids will not be administered before 10:00am or after 2:00pm.

Student "Health Information" form must be filled out completely and signed by a parent/guardian and returned to your child's school nurse in order to receive any stock medications supplied by the school nurse.

Students that require frequent doses of OTC medications MUST have a doctor's note and will need to supply their own medication.

All medications dispensed at school will be kept in a school designated locked drawer, cabinet or file. Medications are not to be carried by students. Students are not permitted to have medication in their possession on school property or on the school bus. No medicine will be sent home with a student. The only exceptions to this are those developed by a team that includes the parent(s), the principal and the school nurse following strict district guidelines.

Students who need to carry an asthma inhaler, auto-injectable or nasal spray epinephrine, diabetes supplies, or stress dose for adrenal insufficiency during the school day will be allowed to carry and be responsible for administration of their own medication(s) only when the school has received written consent from the student's physician and parent/guardian. Forms may be obtained from the school nurse. Students allowed to self-carry medications will be subject to punishment under the drug policy if they allow use of their medication(s) by any other student.

Special arrangements must be made with the school nurse concerning medically ordered procedures for children with disabilities or special medical needs.

Guidelines for dispensing medication at school and at school activities, developed by the Director of Nursing, shall be a part of these policies.

Outdated medications will not be kept in the school health room. All medications not picked up by the last day of school will be disposed of properly.

**Seizure Disorder Medications**

Students who have been diagnosed with a seizure disorder shall have a seizure action plan that shall be a written IHP designed to acknowledge and prepare for the healthcare needs of the student. The student's seizure action plan shall be created in collaboration between District staff and the student's Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis or the student if over eighteen (18). As part of the creation of the student's seizure action plan, the student's Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis shall:

1. Provide the school with written authorization to administer the seizure medication at school;
2. Provide a written statement from the student's healthcare provider that shall contain the following information:

- The student's name;
- The name and purpose of the medication;
- The prescribed dosage;
- The route of administration;
- The frequency that the medication should be administered; and
- The circumstances under which the medication should be administered;

3. Provide the prescribed medication to the school in its unopened, sealed package with the label affixed by the dispensing pharmacy intact, which shall be stored in a safe and secure location accessible only by District personnel or volunteers with training to administer seizure medication.

The written authorization, written statement, and seizure action plan shall be kept on file in the office of the school nurse or school administrator and distributed to any school personnel or volunteers responsible for the supervision or care of the student.

**Emergency Administration of Glucagon**

Students may be administered Glucagon in emergency situations by the school nurse or in the absence of the school nurse, a trained volunteer school employee designated as a care provider, provided the student has:

1. An Individualized Health Plan (IHP) that provides for the administration of Glucagon in emergency situations; and
2. A current, valid consent form on file from the parent or guardian.

When the nurse is unavailable, the trained volunteer school employee who is responsible for a student shall be released from other duties when it is necessary to administer glucagon in an emergency situation.

If the school nurse is unavailable and there is not a trained volunteer school employee, Emergency Medical Services will be activated to administer emergency medication.

**Emergency Administration of Epinephrine**

The school nurse or other trained school employees designated by the school nurse as a care provider who have been certified by a licensed physician, may administer epinephrine, either through an auto-injector or nasal spray, in emergency situations to students who have an IHP that provides for the administration of epinephrine in emergency situations.

The parent or guardian of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other trained school employee(s)

certified to administer auto-injector or nasal spray epinephrine to the student when the employee believes the student is having a life-threatening anaphylactic reaction.

Students with an order from a licensed health care provider to self-administer epinephrine, either through an auto-injector or nasal spray, and who have written permission from their parent or guardian shall provide the school nurse either an auto-injector or nasal spray epinephrine. The epinephrine will be used in the event the school nurse, or other school employee certified to administer epinephrine, in good faith professionally believes the student is having a life-threatening anaphylactic reaction and the student is either not self-carrying his/her epinephrine or the nurse is unable to locate it.

The school nurse may keep an epinephrine on hand that is suitable for the students the school serves. The school nurse or other trained school employee designated by the school nurse as a care provider who has been trained and certified by a licensed physician may administer epinephrine to those students who the school nurse, or other trained school employee certified to administer auto-injector epinephrine, in good faith professionally believes is having a life-threatening anaphylactic reaction.

**Emergency Administration of Albuterol**

The school nurse or other trained school employees designated by the school nurse as a care provider who have been certified by a licensed physician may administer albuterol in emergency situations to students who have an IHP that provides for the administration of albuterol in emergency situations.

The parent or guardian of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other trained school employee(s) to administer albuterol. Albuterol may be administered to the student when the employee believes the student is in perceived respiratory distress.

Students with an order from a licensed health care provider to self-administer albuterol and who have written permission from their parent or guardian shall provide the school nurse an albuterol inhaler. The albuterol inhaler will be used in the event the school nurse, or other school employee certified to administer an albuterol inhaler, in good faith professionally believes the student is in respiratory distress and the student is either not self-carrying his/her albuterol inhaler or the nurse is unable to locate it.

The school nurse may keep albuterol on hand. The school nurse or other trained school employee designated by the school nurse as a care provider who has been certified by a licensed physician, advanced practice registered nurse, or physician assistant may administer albuterol to those students who the school nurse, or other trained school employee certified to administer albuterol, in good faith professionally believes is in perceived respiratory distress.

**Emergency Administration of Emergency Adrenal Insufficiency Medication**

The school nurse or other trained school employees designated by the school nurse as a care provider who have been certified by a licensed physician may administer an injectable emergency dose medication in emergency situations to students who have an IHP that provides for the administration of an injectable emergency dose medication in emergency situations.

The parent of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other trained school employee(s) to administer an injectable emergency dose to the student when the employee believes the student is having an adrenal crisis due to adrenal insufficiency
Students who have met the requirements to be authorized to self-administer a stress dose medication under this policy shall provide the school nurse an emergency injectable dose of the student's medication. This emergency injectable dose will be used in the event the school nurse, or other school employee trained to administer an injectable emergency dose medication, in good faith professionally believes the student is having an adrenal crisis due to adrenal insufficiency.

**Emergency Administration of Anti-Opioid**
The school nurse for each District school shall keep anti-opioid injectors on hand and the school nurse and school resource officer shall possess an anti-opioid at all times when on duty. The school nurse, other school employee, volunteer, or student may administer anti-opioid in accordance with the District's procedures to a student who the school nurse, or other observer, in good faith believes is having an opioid overdose.

An opioid overdose rescue kit shall be placed within all storage locations in the District high school buildings that currently contain an automated external defibrillator for public use. The opioid overdose rescue kits shall be located where it is readily available to the public, be visually free of advertisement, and contain an anti-opioid.

**Violations of the Student Medication Policy**
A. It is a violation of this policy for a student to keep any over-the-counter medications or his/her own prescription medication in his/her possession at school or at school locations unless an exception has been granted as outlined in this policy. This violation shall result in discipline as follows:

- First offense: a conference with parent/guardian and three (3) days in-school suspension or one (1) day out-of-school suspension;
- Second offense: a conference with parent/guardian and up to ten (10) days out-of-school suspension or a discipline conference with the Superintendent/designee.

- Third offense: may result in an expulsion conference with the superintendent/designee

B. It is a violation of this policy for a student to give an over-the-counter medication to another student. This violation shall result in discipline as follows:
    - First offense: a conference with parent/guardian and up to ten (10) days out-of-school suspension;
    - Second offense: a conference with parent/guardian and up to ten (10) days out-of-school suspension with possible placement in ALE;
    - Third offense: shall result in a discipline conference with the superintendent/designee.

C. It is a violation of this policy for a student to receive an over-the-counter medication from another student.
    - First offense: a conference with parent/guardian and up to five (5) days in-school or out-of-school suspension;
    - Second offense: a conference with parent/guardian and up to ten (10) days out-of-school suspension;
    - Third offense: shall result in a discipline conference with superintendent/designee

D. It is a violation of the Drugs and Alcohol Policy (4.24) for a student to sell any medication, give a prescription medication to another student, or misuse a prescription medication, which includes possessing a prescription medication that is prescribed to someone else.

E. It may be a violation of the Drugs and Alcohol Policy (4.24) for a student to misuse an over-the-counter medication.

Consequences for a violation of this policy and the Drugs and Alcohol Policy for students in grades K-6 will be determined on a case-by-case basis in a conference with the parents/guardians, principal, and superintendent/designee.

Students may possess and self-apply topical sunscreen. However, sharing with or providing to another student is a violation of the medication policy. (Act 247 of 2019)

**STUDENT ILLNESS/ACCIDENTS/INSURANCE (4.36)**

If a student becomes too ill to remain in class and/or could be contagious to other students, the principal or designee will attempt to notify the student's parent or legal guardian. The student will remain in the school's health room or a place where he/she can be supervised until the end of the school day or until the parent/legal guardian can remove the student from school.

If a student becomes seriously ill or is injured while at school and the parent/legal guardian cannot be contacted, the failure to make such contact shall not unreasonably delay the school's expeditious transport of the student to an appropriate medical care facility. The school assumes no responsibility for treatment of the student. When available, current, and

applicable, the student's emergency contact numbers and medical information will be utilized. Parents are strongly encouraged to keep this information up to date.

**The school does not carry liability insurance and is immune from liability and from suit for damages. (A.C.A. § 21-9-301) It is strongly recommended that parents purchase student insurance to cover their child while at school, particularly if no other health coverage is in force.**

## SECTION 6 - ACADEMIC POLICIES AND PROCEDURES

**CABOT CHARTER SCHOOL: CABOT PANTHER ACADEMY, CABOT PANTHER DIGITAL ACADEMY, AND ALE**

There are three components to the district charter school: Cabot Panther Academy (CPA), Cabot Panther Digital Academy (CPDA), and the Alternative Learning Environment (ALE). The students in these programs are subject to the rules, regulations and procedures contained in this handbook with the following exception: There are some rules and regulations unique to these programs. Parents will be provided additional documentation during the orientation and/or placement conference. Where CPA, CPDA or ALE rules and regulations differ from the ones in this handbook, the CPA, CPDA, and ALE students are to follow the rules and regulations unique to those programs**.** Students assigned to ALE are not allowed on any campus in the district during their assignment to ALE with the following exception: a one-event pass can be obtained if the ALE principal and the principal of the campus on which the ALE student wishes to attend an event both issue written approval to the student. The student must have this written approval with them and be accompanied by his/her parent/guardian while on a campus other than ALE.

**CABOT PANTHER DIGITAL ACADEMY (CPDA)**

**Discipline**:

Students enrolled in CPDA will be required to follow all school district policies while on-site and/or engaged in synchronous learning regardless of physical location.

**Attendance**:

A student in a digital or remote environment who is not physically present on campus will be marked present so long as they are actively engaged in both asynchronous and synchronous lessons.

Active engagement in an asynchronous lesson is defined as a student who logs in to the LMS and submits assignments according to specified due dates. Adjustments may be made to meet an individual student based on their IEP, 504, LPAC, or other programmatic plans. Active engagement in synchronous lessons is defined as a student logged on to the scheduled Google Meet and actively participating in the lesson as required by the teacher.

A student with extenuating circumstances who may require longer periods of time to submit assignments due to an emergency will need to coordinate attendance options with the building administrator for approval to ensure their attendance is not negatively impacted.

**Grading**:
Students will be subject to the grading policy as outlined in the student handbook (5.15) and the digital learning agreement.

**ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME-SCHOOLED STUDENTS (4.59)**

The District allows private school and homeschooled students whose parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis with whom the student resides are residents of the District to attend academic courses offered in grades 7-12.

A private school or homeschooled student who desires to attend one or more of the available academic courses shall submit a written request to attend the academic course(s) to the superintendent, or designee, no later than:

a. August 10 for Fall semester courses; or
b. December 15 for Spring semester courses.

The superintendent, or designee, is authorized to waive the application deadline under extenuating circumstances.

The District permits a private school or homeschooled student to attend a maximum of three (3) courses per semester.

The District may reject a private school or homeschooled student's request for attendance if the District's acceptance would:

- Require the addition of staff or classrooms;
- Exceed the capacity of a program, class, grade level, or school building;
- Cost the District more for the student to attend the academic course than the District receives for the student's attendance; or
- Cause the District to provide educational services the District does not currently provide at a financial burden to the District;

As part of the request to attend academic courses in the District, a private school or homeschooled student shall:

- Indicate the course(s) the private school or homeschooled student is interested in attending;
- Submit, along with the student's application, a copy of the student's transcript indicating that the student has received credit for the course(s), or equivalent

course(s), that are a prerequisite to the course(s) the student desires to attend at the District;
- Agree to follow the District's discipline policies; and
- Submit all required enrollment documents, including immunization records.

A private school or homeschooled student who fails to attend an academic course by the eleventh (11) day of class or who is absent without excuse for eleven (11) consecutive days during the semester shall be dropped from the course. A private school or homeschooled student shall not be considered truant for unexcused absences from the course(s) the student is attending in the District.

Private school or homeschooled students shall receive a final grade and transcript for each academic course the student completes.

The responsibility for transportation of any private school or homeschooled student attending academic courses in the District shall be borne by the student or the student's parents/guardians.

**GRADING AND REPORTING (5:15)**

Parents or guardians shall be kept informed concerning the progress of their student. Time will be set aside in the district calendar for parent-teacher conferences each semester. Parent-teacher conferences are encouraged and may be requested by parents, guardians, or teachers. If the progress of a student is unsatisfactory in a subject, the teacher shall attempt to schedule a parent-teacher conference. In the conference, the teacher shall explain the reasons for difficulties and shall develop, cooperatively with the parents, a plan for remediation which may enhance the probability of the student succeeding. The school shall also send timely progress reports and issue grades for each nine-week grading period to keep parents/guardians informed of their student's progress.

Parents may utilize the Home Access Center (HAC) to view information on their child's grades and attendance. Login information for HAC is available from your child's school.

The evaluation of each student's performance on a regular basis serves to give the parents/guardians, students, and the school necessary information to help effect academic improvement. Students' grades shall reflect only the extent to which a student has achieved the expressed educational objectives of the course.

The elementary schools, housing students from Kindergarten through grade 4, will use "standards based" monitoring and reporting system for evaluating student progress. The targeted standards for each grade level are listed on the reporting form using a numerical scale of 4,3, 2 or 1. These numbers are defined as follows:
4 – All learning goals are consistently met or extended
3 - Most of the learning goals are consistently met
2 – More than half of the learning goals are consistently met

1 – Few or none of the learning goals are consistently met

Students in grade 3 will begin the transition to letter grades (A, B ,C, D) which correspond to the numerical (4, 3, 2, 1) scale.
Students in grade 4 will receive letter grades which correspond to the numerical (4, 3, 2, 1) scale.

For citizenship and activity class grades the K-4 schools will use "O" for outstanding; "S" for Satisfactory or "N" for Needs Improvement.

The grading scale for grades five – twelve (middle schools, junior high schools, freshman academy and high schools) shall be as follows:

A =100 – 90
B = 89 – 80
C = 79 – 70
D = 69-60
F = 59 and below

For the purpose of determining grade point averages, the numeric value of each letter grade shall be:

A = 4 points
B = 3 points
C = 2 points
D = 1 point
F = 0 points

The grade point values for Advanced Placement (AP), International Baccalaureate (IB), and DESE approved honor courses shall be one point greater than for regular or advanced courses with the exception that an F shall still be worth 0 points.

The final grades of students who transfer in for part of a semester will be determined by blending the grades in the district with those earned outside the district. Each final grade will be the sum of the percentage of days in the grading period transferred from outside the district times the transferred grade from outside the district plus the percentage of days in the grading period while in the district times the grade earned in the district.

For example: The grading period had 40 days. A student transferred in with a grade of 83% earned in 10 days at the previous school. The student had a grade of 75% in Cabot School District while attending 30 days of the grading period. 10 days is 25% of 40 days while 30 days is 75% of 40 days. Thus the final grade would be .25(83) + .75(73) = 75.5%.

**NINE-WEEK EXAMS (GRADES 7-12)**

Students in grades 7-12 will be assessed using nine-week exams at the end of each grading period as opposed to a semester exam.

Test Weighting – The value of a nine-week exam will be equal to the test of the greatest weight in the same quarter in a particular class. Therefore, the weight of the exam will vary between teachers but will more closely correspond to the weight of other tests given in each individual class.

## CONCURRENT AND DUAL ENROLLMENT COURSES (5:18)

**Concurrent Enrollment Courses:**

Concurrent courses will be taken to fulfill a high school graduation requirement. Students will earn high school credit simultaneously with college credit. The grade earned will appear on the student's high school transcript and will be calculated into their cumulative high school GPA. All concurrent courses will be offered on the Cabot High School campus during the regular school day and will be taught by Cabot Public Schools faculty. NOTE: If a student has an IEP or 504 Plan, it will be followed as written.

As defined in the memorandum of understanding with ASU-Beebe, the courses noted in the District's Course Selection Guide are the District's only concurrent course offerings. Students successfully completing these courses will receive 1 credit per course which will count toward Cabot High School graduation requirements. Students will also receive three (3) hours of college credit through Arkansas State University at Beebe. These hours will be recorded on an ASU Beebe transcript.

**Dual Enrollment Courses:**

Dual enrollment courses will be taken for college credit only. However, upon successful completion, the student may request that the course fulfill a high school graduation requirement and be added to his/her high school transcript and may be calculated into their cumulative high school GPA by submitting the course description, syllabus, and college transcript to the Student Success Center. These courses will be offered by post-secondary institutions (on their campus or online) and are taught by their faculty. NOTE: If a student has an IEP or 504 Plan, the student should contact the post-secondary institution's office of disability services to discuss accommodations as soon as possible. IEP and 504 Plan accommodations do NOT automatically transfer to these courses.

## HOMEWORK (5:14)

The Cabot Public School District recognizes homework as a beneficial extension of the instructional program. The term homework refers to school-related work that is assigned to be completed by the student after regular instruction is completed. This may be accomplished during the remainder of a class period or at home. Assignments should fulfill the following purposes:

1. Develop independent study skills by stimulating effort, independence, responsibility, and self-direction
2. Gain maximum benefit from classroom instruction through prior preparation
3. Reinforce skills being taught in the classroom
4. Stimulate further interests in topics being taught in the classroom.

Teachers, parents, and students all have crucial responsibilities that must be fulfilled if homework and independent study activities are to advance the student's education as intended.

The teacher must be certain that the homework and independent study activity assignments are clearly communicated, relevant to the learning objectives, and reasonable in length.

Parents should ensure that the student has an appropriate home environment for schoolwork, sufficient time without distractions, and appropriate supervision (depending on the age, maturity and responsibility level of the student).

Students must be certain that they understand the assignments, ask for help if they do not understand the assignments, and then make every effort to complete the assignments.

Occasionally, at the secondary level, a combination of some of the longer homework assignments from several teachers at one time may unavoidably result in more than the desired amount of homework for a student on one night. However, efforts will be made to minimize such occurrences through informal grade level communication.

At the beginning of the school year, students will receive and deliver to parents written communication from their teachers regarding homework expectations.

The types and length of homework assignments should vary according to the student's level:

Kindergarten: minimal; as needed

Grades l-3: This is the beginning of the expected practice of homework as a part of the educational program. Homework is assigned at the discretion of the teacher.

Grades 4-6: Assignments are given which, in the judgment of the teacher, will assist the student to learn and develop initiative and responsibility. Homework is a regular part of the educational program. With the student having multiple teachers in these grade levels, coordination between teachers is important.

Junior High (7-8)
- Homework is to be a well-established part of the student's educational program
- Homework is to include routine assignments, review of classroom material, and preparation for specific academic and classroom subjects
- Homework is to provide opportunities for research and further development of initiative and responsibility.

Freshman Academy & High School (9-12)
- Homework is to be a fundamental part of the student's educational program

- Homework is to include routine assignments, review of classroom material, and preparation for specific academic and classroom subjects.
- Homework is to expand the use of previously developed independent study skills for research and longer-term projects.

**STUDENT USE OF ARTIFICIAL INTELLIGENCE (4.64)**

"Artificial Intelligence (AI) Tools" means software applications or platforms that utilize machine learning algorithms to perform tasks typically requiring human intelligence., such as generating content, providing recommendations, or solving problems. For purposes of this policy, AI tools do not include the use of spell check or grammar check.

The purpose of this policy is to establish guidelines for the responsible use of AI tools by District students. The policy applies to all students enrolled in the District and covers the use of AI tools when completing District assignments or projects.

The District shall provide teachers and students with resources and education on AI literacy and digital citizenship. The District shall establish a committee who shall be responsible for the review and selection of AI tools that shall be available for students to use. All AI tools selected by the committee shall comply with applicable state and federal data privacy laws. Students shall only use AI tools that were approved by the District committee for classroom assignments or projects.

Teachers are responsible for providing instructions on when and how AI tools may be used for classroom assignments. Students may use AI tools as approved by their classroom teacher to enhance learning and develop future-ready skills.

Students should use AI tools ethically and responsibly, aligning with the District's educational objectives and in a manner that does not harm themselves or others. As part of using AI tools responsibly, students should be cautious about the information they provide to AI tools and consult with a teacher if unsure. At no time shall students share personal, sensitive, or confidential information with AI tools, especially AI tools requiring data input.

When a student uses AI tools, a student shall:

1) Review and verify the accuracy of content that is generated by an AI tool;
2) Cite AI tools used as part of an assignment or project as a source, following District citation guidelines; and
3) Be transparent about their use of AI in completing assignments.

Students must ensure all submitted work is their own and properly acknowledge or cite any assistance from AI tools. Students are encouraged to ask questions if they are unsure about the acceptable use of AI tools.

The following actions regarding AI tools are strictly prohibited:

- Misuse of AI tools for cheating, plagiarism, or any form of academic dishonesty, including the submission of assignments that were fully generated by an AI tool and presented as original student work;
- Altering or falsifying academic documents or records using AI tools;
- Using AI tools to:
    - Gain unauthorized access to District systems; or
    - Bypass District security measures;
- Using AI tools to produce misleading or false information, imagery, or any form of false outputs about themselves, other students, or staff members.

Students should report any inappropriate content or security concerns encountered while using AI tools to a teacher or administrator.

Violations of this policy shall be handled in accordance with the District's disciplinary procedures.

**PROMOTION/RETENTION/COURSE CREDIT FOR K-12 SCHOOLS (5:12)**

A disservice is done to students through social promotion and is prohibited by state law. The district shall, at a minimum, evaluate each student annually in an effort to help each student who is not performing at grade level. Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis shall be kept informed concerning the progress of their student(s). Notice of a student's possible retention or required retaking of a course shall be included with the student's grades sent home to each parent, legal guardian, person having lawful control of the student, or person standing in loco parentis, or the student, if eighteen (18) or older. Parent-teacher conferences are encouraged and may be held as necessary in an effort to improve a student's academic success.

Promotion or retention of students or their required retaking of a course shall be primarily based on the following criteria:

Grades 9-12: Promotion will be based on earning credit for a course based on achieving a passing grade. Moving from one grade level to another will be based on the total number of credits accumulated. See the "Classification of Students" policy.

Grades 5-8: Promotion or retention of students shall be primarily based on their ability to succeed in the next grade. Promotion/retention decisions will be based on the academic performance. Performance indicators to be considered include, but are not limited to the following: grades; standardized assessments including Benchmark tests and nationally normed achievement tests.

Grades K-4: Promotion/retention decisions will be based on the developmental maturity of the student as well as their academic performance. Performance indicators may include, but are not limited to the student's performance on district assessment data and IRI-

Interventions done during the school year. When considering the developmental maturity level of the student some indicators to consider are as follows: attendance; birthday; health/wellness; emotional readiness; and social readiness.

If there is doubt concerning the promotion or retention of a student, or their required retaking of a course, a conference between the parents/guardians, teacher(s), other pertinent personnel, and principal shall be held before a final decision is made. The conference shall be held at a time and place that best accommodates those participating in the conference. The school shall document participation or non-participation in required conferences. If the conference attendees fail to agree concerning the student's placement, the final decision to promote or retain shall rest with the principal or his/her designee.

Any student transferring into the district from a private, or home school be assessed will be assessed to determine appropriate placement.

Promotion/retention of students with an Individual Educational Plan (IEP) shall be based on their successful attainment of the goals set forth in their IEP.

Building principals are responsible for grade level placement of students. The principal will make the final decision on placement of students, grades K-8, after reviewing all relevant information.

In order for ninth (9th) grade students to be promoted to the high school, they should successfully complete two and a half (2-1/2) credits. Students in the second semester of their freshman year who fail a core class, may be scheduled into a credit recovery course.

## ACCELERATION POLICY

### K-6

The Cabot School District recognizes the need of educational alternatives for students who demonstrate advanced academic achievement. Acceleration is used to match high level academic ability and specific talent with optimal learning opportunities. The purposes of acceleration as a practice are 1) to adjust the pace of instruction to the student's capability in order to develop a sound work ethic, 2) to provide an appropriate level of challenge in order to avoid the boredom from repetitious learning, and 3) to reduce the time period for students to complete traditional schooling (NAGC, 2008).

### Acceleration Pre-Referral Qualifications

Prior to an acceleration referral, a student should demonstrate achievement and ability in the following areas.

- High academic performance in core content areas
- High intellectual ability on assessments administered through the gifted program

**Acceleration Referral**

A student may be referred for acceleration by a parent, administrator, counselor, teacher, or student. A written request stating the reason for the referral should be made to the building principal by May 1 in order for acceleration to be considered for the following school year.

**Acceleration Committee**

Once a referral for acceleration is made to the building principal, he/she will contact the Director of Gifted Programs and a committee will be formed. The committee will include the following:

- Director of Gifted/AP Programs
- Building Principal
- G/T Specialist
- Counselor
- Teachers

**Factors Considered by the Acceleration Committee**

In reaching a decision, committee members shall consider the following:

- Teacher Recommendation
- Academic Ability
- Learning Aptitude
- Educational Achievement
- Interpersonal and Emotional Maturity
- Developmental Factors
- Parental/Guardian Support

**Acceleration Procedures**

- Upon referral, student data will be collected and reviewed by the Director of Gifted/AP Programs. The district reserves the right to conduct further testing if warranted. Parents will sign a permission to test form prior to testing administered by the gifted program.
- Parents and teachers may be asked to fill out a rating scale on characteristics of giftedness.
- The counselor, G/T specialist, and/or Director of Gifted/AP Programs may consult with the student.
- Committee members will review records, grades, assessments, and written comments from parents and teachers.
- The committee will meet to discuss appropriate placement for the student. Parents of the student may request to address the committee members prior to the acceleration meeting.
- A decision will be made by the committee after review of the data collected. Committee decisions are subject to review by the Director of Gifted/AP Programs.

- Parents will be notified of the placement decision by the building principal within fourteen (14) days of the initial committee meeting.
- The placement decision may be appealed to the Director of Gifted Programs.
- When the decision is made to accelerate a student, an evaluation of the implementation will be conducted each quarter during the first year and will continue subsequent years if warranted.

**7-12**

Students in grades 7-12 may be eligible for subject-specific or entire-grade acceleration based upon completed coursework from an outside district, knowledge of course content, or performance in the classroom. In order to be considered for acceleration, a student will submit a letter of request **to the counselor**. Students may also seek to graduate in less than four years. In order, to graduate early, a student will submit a letter of request **to the principal** signed by parents/guardians prior to the final year of high school. The additional credits required for graduation must be provided through a program, fully accredited by the Division of Elementary and Secondary Education or the Southern Association of Colleges and Schools Council on Accreditation and School Improvement (SACS/CASI).

**SPECIAL EDUCATION (4:49)**

The district shall provide a free appropriate public education and necessary related services to all children with disabilities residing within the district as required under the Individuals With Disabilities Education Act ("IDEA"), Section 504 of the Rehabilitation Act of 1973, the Americans With Disabilities Act, and Arkansas Statutes.

It is the intent of the district to ensure that students who are disabled within the definition of Section 504 of the Rehabilitation Act of 1973 are identified, evaluated and provided with appropriate educational services. Students may be disabled within the meaning of Section 504 of the Rehabilitation Act even though they do not require services pursuant to the IDEA. The 504 Coordinator for the District is the Director of Special Education and may be reached by telephone at 501-743-3543.

For students eligible for services under IDEA, the District shall follow procedures for identification, evaluation, placement, and delivery of services to children with disabilities provided in the state and federal statutes governing special education. Implementation of an Individualized Education Program (IEP) in accordance with the IDEA satisfies the district's obligation to provide a free and appropriate education under Section 504.

The Board directs the superintendent to ensure procedures are in place for the implementation of special education services and that programs are developed to conform to the requirements of state and federal legislation. The superintendent is responsible for appointing a coordinator for overseeing district fulfillment of its responsibilities regarding students with disabilities. The IDEA Coordinator for the Cabot School District is the

Director of Special Education and may be reached by phone at 843-3363. Among the director's responsibilities shall be ensuring district enforcement of the due process rights of students with disabilities and their parents.

**PERMANENT RECORDS (4:38)**

Permanent school records, as required by the Division of Elementary and Secondary Education, shall be maintained for each student enrolled in the district until the student receives a high school diploma or its equivalent or is beyond the age of compulsory school attendance. A copy of the student's permanent record shall be provided to the receiving school district within ten (10) school days after the date a request from the receiving school district is received.

**DROPPING AND CHANGING COURSES**

Each student is registered individually and given ample opportunities to make his/her schedule choices and select alternate courses. Because the number of staff and classes needed is determined in the spring, schedule changes will be granted only for very specific reasons – such as meeting graduation requirements, course prerequisites or other extenuating circumstances.

Students will not be allowed to change or drop courses after the first five (5) days of the fall and spring semesters, unless the course in question is an Honors or AP course. Students who drop a course after these deadlines will receive a failing grade for that semester, which may affect eligibility in student organizations and/or extracurricular activities.

**GRADE POINT AVERAGE AND RANK-IN-CLASS PROCEDURES (5:19)**

The student's GPA will be determined by the grades received on credit classes (those classes in which a student earns a unit toward graduation). All credit classes attempted, will be counted in the GPA.

Point values for grades for weighted and all other courses for calculating GPA and class rank are as follows: (Act 1070 of 1991, Act 341 of 2025)

Point Values

| GRADING | REGULAR/ADV Honors | Weighted Credit COURSES |
|---|---|---|
| A = 90 - 100% | 4 pts. | 5 pts. |
| B = 80 - 89% | 3 pts. | 4 pts. |
| C = 70 - 79% | 2 pts. | 3 pts. |
| D = 60 - 69% | 1 pt. | 2 pts. |
| F = 59% and below | 0 pts. | 0 pts. |

In order to receive weighted credit for, students must take both semesters of the course and take the appropriate exam, if applicable. Weighting will be reduced to a 4.0 scale on the

final transcript for students who do not take the applicable exams**.**

GPA's will be used to determine class rank with the exception of students with a modified curriculum. High school students who have taken weighted credit courses and whose GPA exceeds a 4.0 will have their GPA and class ranking figured on the number of credits required for graduation. This is to prevent students from being penalized for taking a larger number of credit classes. Any grade lower than an "A" must be included in the 22 ½ credits and all weighted credit grades will be counted in the 22 ½ credits.

Final class ranking will be computed on the basis of eight (8) semesters. Students will be advised on preliminary GPA and class ranking at the end of six (6) and seven (7) semesters.

To qualify for graduation speakers such as valedictorian or salutatorian, a student must have been enrolled at Cabot High School for three (3) of the last four (4) semesters beginning with the first semester of the junior year.

The senior(s) with the highest grade point average (GPA) after eight (8) semesters will be named Valedictorian(s). The senior(s) with the second highest GPA will be named Salutatorian(s).

For students graduating in less than eight (8) semesters, the preliminary GPA and class ranking will be at the end of the first semester of the senior year and final GPA and ranking will be at the time the graduation requirements are completed.

Grades will reflect academic achievement only. Parents who are concerned about helping their students to improve their school progress through better study habits may contact the guidance counselor, either by telephone or a scheduled personal visit.

**RETAKING A COURSE TO IMPROVE GPA**

Students may retake a course if dissatisfied with their grade in that course. (A regular course may be taken to replace the grade in an AP or Honors course, but will not be weighted as an AP Grade.) In order to replace a grade, the course may be retaken in the regular school session, summer school or by correspondence. If it is a higher grade, the grade on the retaken course will replace the grade on the transcript. Students retaking courses will be allowed to use the improvement grade to improve their overall GPA, **but the replacement grade will not be used to qualify for honors such as valedictorian, salutatorian, academic letters or medallions.**

**CORRESPONDENCE COURSES**

Students who take correspondence courses must take course work that adequately covers subject matter. All correspondence courses that are expected to count toward graduation must be pre-approved by the principal/designee. Students are limited to two (2) credits by correspondence.

**GRADUATION HONORS (4:20)**

Graduating with "Honors" will be the recognition for students who have earned a GPA of 3.5 – 3.75. Graduating with "High Honors" will be the recognition given for students who have earned a GPA higher than a 3.75 and successfully completed one (1) additional AP/Concurrent Course beyond the required junior and senior English. Graduating with "Distinguished Honors" will the recognition given for students who have earned a GPA higher than 4.0 and successfully completed two (2) or more AP/Concurrent Courses beyond the required junior and senior English.

In order to qualify for graduation honors, students shall have no grade of D or F on their final transcript. Additionally, students may not have lost academic credit due to lack of attendance. Any course retaken for grade improvement, with the exception of Honors Algebra I and Honors Geometry, must be the identical course (e.g. to improve a grade in Honors Biology, the student shall retake Honors Biology).

**HONORS PROGRAM CURRICULUM (5:16.1)**

Students graduating with "Honors," "High Honors," or "Distinguished Honors" must also complete the following Honors Program Curriculum.

1. Four (4) units of English, including junior and senior level Advanced Placement English, Advanced English or college level English
2. Four (4) units of Math, including Algebra I and II, Geometry, and either an advanced math course or a computer science course
3. Three (3) units of Science: Physical Science, Biology and Chemistry or Physics
4. Three (3) units of Social Studies: American History, World History, and Civics/Economics
5. One-half (1/2) unit of Physical Education
6. One-half (1/2) unit of Health
7. One-half (1/2) unit of Fine Arts
8. One-half (1/2) unit of Oral Communications
9. Two (2) units of the same foreign language
    - 4 semesters of an approved high school foreign language class; or
    - 2 semesters of an approved concurrent college foreign language class
10. Four and one-half (4-1/2) units of electives

**Total 22 ½ units**

Students who accept placement into an advanced level course should be aware of the significant time commitment that they are making. Students should not over-commit to part-time jobs, and they should balance extracurricular activities, total obligations and responsibilities with time necessary to prepare for honors level course work. Students who must work many hours in part-time jobs or who have many other time commitments should seriously consider enrolling in regular level courses. A student enrolling in Cabot High School as a senior who did not have the opportunity to take an advanced level English course during their junior year may enroll in two advanced level courses during their senior year in order to qualify for honor graduate status (e.g. AP Language & Composition + AP Literature).

**MINIMUM CORE CURRICULUM COURSES RECOMMENDED BY HIGHER EDUCATON**

The recommended core of courses is designed to be a standards-based set of rigorous courses for students preparing for success in college. The first component designates the core courses designed for unconditional admission to any public two (2) - or four (4)-year institution of higher education in Arkansas. The second component designates the core requirements for the Challenge Scholarship.

Component One: Core Curriculum for Unconditional Admission

| | |
|---|---|
| English | Four (4) units with emphasis on writing skills, not to include courses in oral communications, journalism, drama or debate. |
| Natural Science | Three (3) units, with laboratories, chosen from Physical Science, Biology, Chemistry, or Physics. **Only** one (1) unit may come from a Life Science. |
| Mathematics | Four (4) units, including Algebra I and II, Geometry, and an advanced math course. It is strongly recommended that students take a math course during their senior year. |
| Social Studies | Three (3) units, including one (1) of American History (does not include Contemporary American History), one (1) of World History (not to include World Cultures, World Geography, Global Studies, or AP European History), and at least one-half (1/2) unit of Civics or Economics or American Government (not to include courses in practical arts). |

**ACADEMIC LETTERS**

1. The academic letter will be awarded based upon the previous year's record when a student enrolled in 4 or more classes each semester has maintained a grade point average of 3.5 and no grade with a value point less than 3.0 for the year that the honor is awarded. State mandated regulations in regard to weighting grades in certain classes will be followed when determining recipients of the award.
2. Eligibility for qualification will begin in the 9th grade.
3. Letters will be awarded only to students who are in attendance a full year's grading cycle in Cabot.
4. The first (1) year to qualify, the student will receive a letter.
5. The second (2) year to qualify, the student will receive a bar to be put on the letter.
6. The third (3) year to qualify, the student will receive a bar to be put on the letter.

**MEDALLIONS**

The student will receive a medallion with a ribbon to be worn at graduation if he/she has the following: A 3.5 GPA or higher for each semester, grades 9-11 and the first semester of the 12$^{th}$ grade year; and no grade with a value point less than 3.0 for each semester in grades 9 – 11 and the first semester of the 12$^{th}$ grade year.

To receive a medallion, a student must be enrolled in four or more classes each semester at Cabot High School for two (2) of the last three (3) semesters. (see section in handbook titled "Retaking a Course to Improve GPA")

**CLASSIFICATION OF STUDENTS**

Students are classified according to the number of credits earned. The following is the classification scale:

- Freshman - School Board Requirements
- Sophomore –5 credits earned
- Junior -10 credits earned
- Senior – 15 credits earned

Note: Students who have 14.5 credits and who declare that they intend to graduate at the end of the current school year and are enrolled in enough classes to earn eight (8) credits will be pictured in the yearbook with the seniors.

**EXTRACURRICULAR ACTIVITIES (5:22)**

- Extracurricular activities shall not be a hindrance or interference to classroom instruction.
- Non-instructional activities will be scheduled evenly over the school day.
- Students shall abide by student organization constitutions, rules and guidelines.
- In order to participate in extracurricular activities, a student must have and maintain the grade or grade point average specified in the by-laws and/or constitution of the student's activity/organization or pass the number of courses with grades as required by the Division of Elementary and Secondary Education as contained in Regulatory Bulletin 98-54, dated November, 1997. Copies of the above cited bulletin are available from the principals' offices and from coaches.
- Absenteeism will affect participation. If a student is absent from school, participation in that day's activity will be prohibited without prior approval of the principal. (Extracurricular activities include practice).
- Disciplinary action, such as In-School Suspension, Saturday class and suspension may affect a student's future eligibility for participation in extracurricular activities, student groups and special school functions.
- After four (4) weeks of a semester, students who drop a course will receive a failing grade for that semester which may affect eligibility in student organizations and/or extracurricular activities.

No student shall be required to pay for individual or group instruction in order to participate in an extracurricular activity.

A student may participate in two (2) or more activities even though there are occasional scheduling conflicts, e.g. band and athletics, or cheerleading and Forensics. However, a student in grades 9-12 can only participate in one non-credit class during the school day (Act 675).

It shall be the responsibility of the teachers/sponsors to anticipate direct conflicts and agree on a plan which will permit the student to participate without penalty in the other activity. At the same time, students should be aware of the constitution that governs their actions in participating in extracurricular activities. When schedules conflict, and there is a way for the student to participate in both activities, it is the responsibility of the student and/or parent to do so even at extra expense and/or sacrifice. If an academic extracurricular activity is involved, and the student chooses not to attend after it has been worked out for the student to attend both activities, the student's grade in the academic class could be affected.

Students who are determined to be experiencing homelessness by the school's homeless LEA shall be eligible for participation in interscholastic activities.

When the District receives official notification that a student has been arrested and/or charged with a felony, regardless of whether the alleged offense occurred on or off school grounds, the student will be indefinitely suspended from all AAA-affiliated activities and/or will not be allowed to compete in contests, participate in presentations, or hold a leadership role in any groups/activities sponsored by the Cabot Public School District pending disposition of the charge(s). In order to be reinstated, the student's parent or guardian (or the student if over eighteen (18) years of age) must provide an official, final disposition of the charge(s) to the principal. If the student is convicted of a criminal act that is a felony, the student will, at a minimum, be dismissed from the groups/activities noted above for one calendar year.

When the District receives official notification that a student has been arrested and/or charged with a misdemeanor or is convicted of a misdemeanor, regardless of whether the offense occurred on or off school grounds, the student may be suspended from the groups/activities noted above for a definite or indefinite period of time. In order to be reinstated, the student's parent or guardian (or the student if over eighteen (18) years of age) must provide an official, final disposition of the charge(s) to the principal.

**School Choice Transfers**

A student who transfers under a legal school choice option shall not be denied participation in an extracurricular activity where the student transfers based exclusively on the student's decision to transfer. A student who transfers after June 1 of the year the student enters grades seven through ten (7-10) shall complete a Changing Schools/Athletic Participation form as defined by AAA, which must be signed by the:

- Superintendent of the student's resident school district;
- Superintendent of the nonresident school district to which the student transfers; and
- Parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

The completed Changing Schools/Athletic Participation form shall be filed with the non-resident school district where the student transfers and the AAA. The Changing

Schools/Athletic Participation form shall be signed by the superintendent of a student's resident school district and the superintendent of the nonresident school district to which a student transfers unless there is demonstrable evidence of recruiting by the receiving school district personnel or that the student is transferring to the nonresident school district solely for athletic purposes.

A student who transfers into the District and is enrolled in the District by June 1 of the school year the transfer student will be enrolled in grade seven (7), eight (8), nine (9), or ten (10) shall be immediately eligible to participate in an extracurricular activity that is an athletic activity. If a transfer student is not enrolled in the District by June 1 of the school year the student will be enrolled in grade seven (7), eight (8), nine (9), or ten (10), then the transfer student shall not be eligible to participate in an extracurricular activity that is a varsity athletic activity for up to three hundred sixty-five (365) days.

**FREE TEXTBOOKS (4:41)**

Textbooks or instructional materials, if issued for a class, will be issued at no charge to the student.

If books are issued for a secondary school course, a classroom set of books will be provided at school so that students will not have to carry the core content books back and forth from home to school. This is an effort to reduce the weight and strain of the backpacks on students' backs.

Students will be charged for lost or damaged books. Books are not to be written in except for the name label. Fines and charges must be paid before receiving a schedule for the next year.

**ARKANSAS DIRECT ADMISSIONS PROGRAM (4.66)**

The District does not participate in the Arkansas Direct Admissions Program.

The District shall inform all students about how the student may participate in the Arkansas Direct Admissions Program.

The District shall not actively discourage or prohibit an eligible student from participating in the Arkansas Direct Admissions Program.

**4.45—GRADUATION REQUIREMENTS**

Information regarding graduation requirements will be sent home with students prior to their enrolling in seventh ($7^{th}$) grade, or when a seventh ($7^{th}$) through twelfth ($12^{th}$) grade student enrolls in the district for the first time. This policy is to be included in student handbooks for grades six (6) through twelve (12) and both students and parents must sign an acknowledgement they have received the policy. All students are required to fulfill the

Core curriculum or the Alternate Pathway to Graduation when required by their IEP to be eligible for graduation. Counseling by trained personnel shall be available to students and their parents or legal guardians as part of the creation of the student's Student Success Plan.

This policy, and the courses necessary for graduation shall be reviewed by staff, students, and parents as part of the annual school district strategic plan development process to determine if changes need to be made to better serve the needs of the district's students. The superintendent, or the superintendent's designee, shall select the composition of the review panel.

Sufficient information relating to the district's graduation requirements shall be communicated to parents and students to ensure their informed understanding; this shall be accomplished through holding an informational meeting for parents, legal guardians, or persons standing in loco parentis to students enrolled in grades six through twelve (6-12) with the school counselor and may be accomplished through any or all of the additional following means:

- Inclusion in the student handbook of the graduation requirements;
- Discussion of the graduation requirements at the school's annual public meeting, PTA meetings, or a meeting held specifically for the purpose of informing the public on this matter; and/or
- Distribution of a newsletter(s) to parents or guardians of the district's students.

Administrators, or their designees, shall train newly hired employees, required to be licensed as a condition of their employment, regarding this policy. The district's annual professional development shall include the training required by this paragraph.

To the best of its ability, the District shall follow the requirements covering the transfer of course credit and graduation set forth in the Interstate Compact on Educational Opportunity for Military Children and the Arkansas Military Child School Transitions Act of 2021 for all students who meet the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS including the waiving of specific courses that are required for graduation if similar coursework has been satisfactorily completed.

**GRADUATION REQUIREMENTS**

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the district requires an additional ½ units to graduate for a total of 22 ½ units. The additional half-unit will be earned in the 9$^{th}$ grade Keystone course. Accelerated learning courses or career education courses that are determined by DESE to be eligible for use in the place of a listed course may be substituted for the course as designated by DESE.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

Students shall be trained in quality psychomotor skill bases in cardiopulmonary resuscitation and the use of automated external defibrillators in order to graduate.

**Personal and Family Finance**

All students shall receive credit in a course covering the Personal and Family Finance Standards in order to graduate.

**Computer Science**

All students shall earn one (1) unit of credit in a computer science or computer science related career and technical education course in order to graduate.

**Community Service**

Except as otherwise provided by this policy or the student's IEP, each student must receive seventy-five (75) clock hours of community service that is certified by the service agency or organization where the student volunteers or the student's parent.
The community service must be in programs or activities, either in Arkansas or outside of Arkansas, that meet the requirements established by the State Board and the District Board of Directors and include preparation, action, and reflection components. A student who transfers into the District after ninth ($9^{th}$) grade must receive at least the following documented clock hours of community service each year:

- Fifteen (15) hours for students in grade nine (9);
- Twenty (20) hours for students in grade ten (10);
- Twenty (20) hours for students in grade eleven (11); and
- Twenty (20) hours for students in grade twelve (12).

Students transferring into the District after grade nine (9) or students who are graduating early may receive a diploma provided that the minimum requirement for each year the student attends the District is met. The District Board of Directors may grant a waiver of the community service requirement for extenuating circumstances on a case-by-case basis, which may include without limitation:

- A major illness associated with a student or a family member of a student;
- Student homelessness or housing insecurity; and
- Notice to the public school district board of directors if the student is a major contributor to family income.

English: four (4) units –

- English 1
- English 2
- English 3
- English 4

Oral Communications: one-half (½) unit

Mathematics: four (4) units

- Algebra or its equivalent***** - 1 unit
- Geometry or its equivalent***** - 1 unit
- All math units must build on the base of algebra and geometry knowledge and skills. (Comparable accelerated learning courses may be substituted where applicable)
- An applicable computer science flex credit may be taken in the place of a math credit beyond Algebra I and Geometry

***** A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four (4) unit requirement.

Science: three (3) units

a. DESE approved biology – 1 credit;
b. DESE approved physical science – 1 credit; and
c. A third unit that is either:
    - An additional science credit approved by DESE; or
    - A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics one-half (½) unit
- World history, one (1) unit
- American History, one (1) unit
- Other social studies – one-half (½) unit

Physical Education: one-half (½) unit
**Note:** While one-half (½) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half (½) unit

Economics – one half (½) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.

Fine Arts: one-half (½) unit

**CAREER FOCUS: - Six (6) units**
All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

**GRADUATION CEREMONY**

In order to participate in graduation exercises, all students must have completed graduation requirements no later than the Friday prior to the graduation ceremony. If a student is taking a correspondence course, the grade must be recorded on the student's transcript. Any student who does not meet graduation requirements before the graduation ceremony may continue to complete the requirements for his expected graduation class, but may not be allowed to participate in the ceremony.

Participation in the graduation ceremony is a privilege. In the event disciplinary corrective actions are imposed for violations of school rules and/or the student has been scheduled attendance make-up days, they may be denied participation in graduation ceremonies.

**CABOT FRESHMAN ACADEMY**

The Cabot Freshman Academy is a facility specifically designed to meet the unique academic, social and emotional needs of ninth grade students. Programming for the academy includes instruction in the following areas:

- Core curriculum areas (English/Language Arts, Mathematics, Science and Social Studies)
- Keystone – A Career and Technical course designed for ninth grade students to aid in the development of skills which lead to high school success, long-term planning, and life skills
- Health – A course required for graduation, taught via digital curriculum and delivery.(Arkansas Digital Learning Act of 2013)
- Oral Communications – A course required for graduation
- Elective options including: Agricultural Science, Athletics, Art, Band, Choir, Construction Technology, Foreign language, Forensics, Introduction to Engineering, Physical Education, and ROTC.

## SECTION 7 - FORMS

The following forms are available in the school offices:

- Student Internet use Agreement
- Objection to Publication of Directory Information